

N.J. Stat. § 52:27D-119

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§ 52:27D-119. Short title [State Uniform Construction Code Act]

This act shall be known, and may be cited and referred to, as the “State Uniform Construction Code Act.”

History

L. 1975, c. 217, § 1.

Annotations

CASE NOTES

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In denying an occupancy permit due to the inadequacy of a sprinkler system, a construction board of appeals failed to adhere to the procedures and safeguards of the State Uniform Construction Code Act, [N.J. Stat. Ann. § 52:27D-119](#) et seq., in conducting the hearing under [N.J. Stat. Ann. § 52:27D-127](#) because the decision was based entirely upon a staff report with no opportunity for the applicant to cross-examine or challenge the author thereof. *In re "Analysis of Walsh Trucking Occupancy & Sprinkler System"*, 215 N.J. Super. 222, 521 A.2d 883, 1987 N.J. Super. LEXIS 1042 (App.Div. 1987).

Administrative Law: Separation of Powers: Jurisdiction

In plaintiff state builders association's suit against defendant commissioner of the department of community affairs, defendant exceeded the authority granted to defendant under the State Uniform Construction Code Act, [N.J. Stat. Ann. § 52:27D-119](#) et seq., by substantially amending the state's energy subcode. *New Jersey Builders Asso. v. Coleman*, 227 N.J. Super. 23, 545 A.2d 783, 1988 N.J. Super. LEXIS 326 (App.Div. 1988).

Constitutional Law: Bill of Rights: Fundamental Rights: Procedural Due Process: Scope of Protection

Plaintiff's claim that defendants, a borough and its zoning and land use chairman, violated his due process rights for issuing stop work orders, allegedly failing to give plaintiff a construction permit, and for delaying approval of his site plan, were properly dismissed via summary judgment because plaintiff failed to pursue the administrative and judicial remedies available to him via the Uniform Construction Code Act and the Municipal Land Use Law for redress of the alleged arbitrary action by the municipal officials, as such statutes satisfied the requirements of procedural due process. Further, the alleged arbitrary actions by defendants did not constitute egregious official conduct that shocked the conscience so as to violate plaintiff's substantive due process rights. *Plemmons v. Blue Chip Ins. Services, Inc.*, 387 N.J. Super. 551, 904 A.2d 825, 2006 N.J. Super. LEXIS 256 (App.Div. 2006), overruled in part, *Shaw v. Shand*, 460 N.J. Super. 592, 217 A.3d 1180, 2019 N.J. Super. LEXIS 129 (App.Div. 2019).

Constitutional Law: State Autonomy: General Overview

On-site inspection agency's damages claims against the Commissioner of the New Jersey Department of Community Affairs for her alleged failure to properly enforce the New Jersey Uniform Construction Code were barred by the Eleventh Amendment because it sued her in her official capacity and it could not establish that her actions denied it equal protection under the Fourteenth Amendment. *Garden State Elec. Inspection Servs., Inc. v. Levin*, 144 Fed. Appx. 247, 2005 U.S. App. LEXIS 16409 (3d Cir. N.J. 2005).

Constitutional Law: Substantive Due Process: Scope of Protection

Plaintiff's claim that defendants, a borough and its zoning and land use chairman, violated his due process rights for issuing stop work orders, allegedly failing to give plaintiff a construction permit, and for delaying approval of his site plan, were properly dismissed via summary judgment because plaintiff failed to pursue the administrative and judicial remedies available to him via the Uniform Construction Code Act and the Municipal Land Use Law for redress of the alleged arbitrary action by the municipal officials, as such statutes satisfied the requirements of procedural due process. Further, the alleged arbitrary actions by defendants did not constitute egregious official conduct that shocked the conscience so as to violate plaintiff's substantive due process rights. [*Plemmons v. Blue Chip Ins. Services, Inc.*, 387 N.J. Super. 551, 904 A.2d 825, 2006 N.J. Super. LEXIS 256 \(App.Div. 2006\)](#), overruled in part, [*Shaw v. Shand*, 460 N.J. Super. 592, 217 A.3d 1180, 2019 N.J. Super. LEXIS 129 \(App.Div. 2019\)](#).

Constitutional Law: Equal Protection: Scope of Protection

On-site inspection agency was not entitled to injunctive and declaratory relief to end an alleged Equal Protection Clause violation, as it could not show: (1) that the Commissioner of the New Jersey Department of Community Affairs was improperly enforcing the New Jersey Uniform Construction Code; (2) that on-site inspection agencies and municipal subcode officials were similarly situated under the Code; or (3) that the classifications within the Code were not rationally related to a legitimate State interest. [*Garden State Elec. Inspection Servs., Inc. v. Levin*, 144 Fed. Appx. 247, 2005 U.S. App. LEXIS 16409 \(3d Cir. N.J. 2005\)](#).

Governments: Legislation: Statutes of Limitations: General Overview

No patently repugnant or inconsistent conflicts exist between the Uniform Construction Code, [*N.J. Stat. Ann. § 52:27D-119*](#) through [*N.J. Stat. Ann. § 52:27D-141*](#), and the statute of repose, [*N.J. Stat. Ann. § 2A:14-1.1*](#). [*Cyktor v. Aspen Manor Condominium Ass'n*, 359 N.J. Super. 459, 820 A.2d 129, 2003 N.J. Super. LEXIS 143 \(App.Div. 2003\)](#).

There was no patent repugnance or inconsistency found between the statute of repose of [*N.J. Stat. Ann. § 2A:14-1.1*](#) and the Uniform Construction Code (UCC), [*N.J. Stat. Ann. §§ 52:27D-119 to 52:27D-141*](#), so it was held that the UCC did not prevail over the statute of repose. [*Cyktor v. Aspen Manor Condominium Ass'n*, 359 N.J. Super. 459, 820 A.2d 129, 2003 N.J. Super. LEXIS 143 \(App.Div. 2003\)](#).

Governments: Local Governments: Duties & Powers

Motel owner was exempt from placing fire extinguishers in "efficiency units" that had kitchen facilities because the units were "individual dwelling units" under the State Uniform Construction Code Act, [*N.J. Stat. Ann. § 52:27D-119*](#), so fire suppression systems were not required. [*Venuti v. Cape May County Constr. Bd. of Appeals*, 231 N.J. Super. 546, 555 A.2d 1175, 1989 N.J. Super. LEXIS 110 \(App.Div. 1989\)](#).

Governments: Local Governments: Finance

[*N.J. Stat. Ann. § 52:27D-119*](#) preempted a borough's ordinance requiring, as a condition for the issuance of a building permit, that past-due real estate taxes on the property be paid; [*N.J. Stat. Ann. § 40:52-1.2*](#) did not provide the borough with authority for the ordinance because it was limited to authorizing the licensing of specifically enumerated merchants and businesses for the purpose of regulating them and generating revenue. [*Builders*](#)

[League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\).](#)

Governments: Local Governments: Licenses

Supreme Court of New Jersey could discern no clear indication in the penalty provision of [N.J. Stat. Ann. § 52:27D-119](#) to -141 (UCC Act) that compels a restrictive interpretation of its terms; nowhere in the UCC Act is there any express limitation against the imposition of penalties on a developer after a certificate of occupancy has issued. [DKM Residential Props. Corp. v. Twp. of Montgomery, 182 N.J. 296, 865 A.2d 649, 2005 N.J. LEXIS 3 \(N.J. 2005\).](#)

Because the penalties accomplish goals other than merely to secure immediate compliance with the Uniform Construction Code Act, [N.J. Stat. Ann. § 52:27D-119](#) to -141 (UCC Act), by exerting a continuing and increasing penalty for an unabated condition, the penalty section does not evince a legislative intent to restrict penalty enforcement to actions only against the landowner in possession, and not against a violating developer who had been issued a certificate of occupancy on the property. [DKM Residential Props. Corp. v. Twp. of Montgomery, 182 N.J. 296, 865 A.2d 649, 2005 N.J. LEXIS 3 \(N.J. 2005\).](#)

Municipal enforcing agency had the authority to issue notices of violations (NOVs) against a developer for building code violations relating to the stucco-like exterior of homes after the township had issued certificate of occupancy to the developer and the homes were sold. At the very least the agency's authority encompassed code violations of the sort that would have supported the withholding of the certificate of occupancy had they been known. [DKM Residential Props. Corp. v. Twp. of Montgomery, 182 N.J. 296, 865 A.2d 649, 2005 N.J. LEXIS 3 \(N.J. 2005\).](#)

There was no patent repugnance or inconsistency found between the statute of repose of [N.J. Stat. Ann. § 2A:14-1.1](#) and the Uniform Construction Code (UCC), [N.J. Stat. Ann. §§ 52:27D-119](#) to [52:27D-141](#), so it was held that the UCC did not prevail over the statute of repose. [Cyktor v. Aspen Manor Condominium Ass'n, 359 N.J. Super. 459, 820 A.2d 129, 2003 N.J. Super. LEXIS 143 \(App.Div. 2003\).](#)

Governments: Local Governments: Ordinances & Regulations

Even though the Uniform Fire Safety Act (UFSA), N.J. Stat. Ann. § 52:27D- 213, is not to be construed as authorizing the adoption of an ordinance, which requires that a building conforming in all respects to the requirements of the State Uniform Construction Code Act, [N.J. Stat. Ann. § 52:27D-119](#) et seq., be made to conform to more restrictive requirements, an ordinance may impose more stringent fire safety standards for seasonal rentals than the Uniform Fire Code since the UFSA does not preclude the right of any municipality to adopt an ordinance dealing with fire safety, whether or not it is more restrictive, pursuant to [N.J. Stat. Ann. § 52:27D-202](#). [United Prop. Owners Ass'n of Belmar v. Borough of Belmar, 343 N.J. Super. 1, 777 A.2d 950, 2001 N.J. Super. LEXIS 308 \(App.Div.\),](#) certif. denied, [170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1533 \(N.J. 2001\),](#) certif. denied, [170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1534 \(N.J. 2001\),](#) certif. denied, [170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1535 \(N.J. 2001\).](#)

[N.J. Stat. Ann. § 52:27D-119](#) preempted a borough's ordinance requiring, as a condition for the issuance of a building permit, that past-due real estate taxes on the property be paid; [N.J. Stat. Ann. § 40:52-1.2](#) did not provide the borough with authority for the ordinance because it was limited to authorizing the licensing of specifically enumerated merchants and businesses for the purpose of regulating them and generating revenue. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\).](#)

Local ordinance that required the payment of past-due real estate taxes as a condition for the issuance of a building permit was preempted by the Uniform Construction Code Act (UCCA), [N.J. Stat. Ann. § 52:27D-119](#) to [52:27D-141](#); building construction was not a "business or activity" pursuant to [N.J. Stat. Ann. § 40:52-1.2](#) for which the

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municipality could require such conditions. [*Builders League of S. Jersey v. Borough of Pine Hill*, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

Governments: Local Governments: Police Power

Even though the Uniform Fire Safety Act (UFSA), N.J. Stat. Ann. § 52:27D- 213, is not to be construed as authorizing the adoption of an ordinance, which requires that a building conforming in all respects to the requirements of the State Uniform Construction Code Act, [*N.J. Stat. Ann. § 52:27D-119*](#) et seq., be made to conform to more restrictive requirements, an ordinance may impose more stringent fire safety standards for seasonal rentals than the Uniform Fire Code since the UFSA does not preclude the right of any municipality to adopt an ordinance dealing with fire safety, whether or not it is more restrictive, pursuant to [*N.J. Stat. Ann. § 52:27D-202. United Prop. Owners Ass'n of Belmar v. Borough of Belmar*, 343 N.J. Super. 1, 777 A.2d 950, 2001 N.J. Super. LEXIS 308 \(App.Div.\)](#), certif. denied, [*170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1533 \(N.J. 2001\)*](#), certif. denied, [*170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1534 \(N.J. 2001\)*](#), certif. denied, [*170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1535 \(N.J. 2001\)*](#).

Governments: State & Territorial Governments: Relations With Governments

Uniform Construction Code Act, the Standard Barrier-Free Design Code, the Law Against Discrimination, and the Handicap Access Law standards for construction were in approbation and not in repudiation of the interstate compact; they did not affect the inner-workings of a bi-state agency and were properly applied to it. [*Eastern Paralyzed Veterans Asso. v. Camden*, 220 N.J. Super. 573, 533 A.2d 62, 1986 N.J. Super. LEXIS 1585 \(Ch.Div. 1986\)](#), aff'd, [*220 N.J. Super. 528, 533 A.2d 39, 1987 N.J. Super. LEXIS 1347 \(App.Div. 1987\)*](#), vacated, [*111 N.J. 389, 545 A.2d 127, 1988 N.J. LEXIS 88 \(N.J. 1988\)*](#).

Insurance Law: Property Insurance: Coverage: Replacement Costs

In a dispute involving property insurance coverage, a trial court properly granted summary judgment to the insured for repair work to other parts of a damaged building since there was a clear causal connection between the collapse of the seventh floor and the code official's mandate to bring the remaining floors into compliance to prevent them from collapsing. But for wind damage to the seventh floor of the insured's building (a covered claim), the insured would not have been required to bring the wall-to floor connections in the rest of the building up to current code standards, therefore, those additional repairs were covered under the policy. [*DEB Assocs. v. Greater New York Mut. Ins. Co.*, 407 N.J. Super. 287, 970 A.2d 1074, 2009 N.J. Super. LEXIS 124 \(App.Div.\)](#), certif. denied, [*200 N.J. 473, 983 A.2d 199, 2009 N.J. LEXIS 1261 \(N.J. 2009\)*](#).

Real Property Law: Landlord & Tenant: Lease Agreements: Residential Leases

Even though the Uniform Fire Safety Act (UFSA), N.J. Stat. Ann. § 52:27D- 213, is not to be construed as authorizing the adoption of an ordinance, which requires that a building conforming in all respects to the requirements of the State Uniform Construction Code Act, [*N.J. Stat. Ann. § 52:27D-119*](#) et seq., be made to conform to more restrictive requirements, an ordinance may impose more stringent fire safety standards for seasonal rentals than the Uniform Fire Code since the UFSA does not preclude the right of any municipality to adopt an ordinance dealing with fire safety, whether or not it is more restrictive, pursuant to [*N.J. Stat. Ann. § 52:27D-202. United Prop. Owners Ass'n of Belmar v. Borough of Belmar*, 343 N.J. Super. 1, 777 A.2d 950, 2001 N.J. Super. LEXIS 308 \(App.Div.\)](#), certif. denied, [*170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1533 \(N.J. 2001\)*](#), certif. denied, [*170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1534 \(N.J. 2001\)*](#), certif. denied, [*170 N.J. 390, 788 A.2d 774, 2001 N.J. LEXIS 1535 \(N.J. 2001\)*](#).

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs](#), 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 (App.Div. 2010).

Real Property Law: Zoning & Land Use: General Overview

Mobile home exclusion from an ordinance was null and void; therefore, township was directed to review developer's application for a mobile home park, as mobile homes were deemed to be a viable housing option, pursuant to the Uniform Construction Code, [N.J. Stat. Ann. § 52:27D-119](#) et seq. [Southern Burlington County NAACP v. Mt. Laurel](#), 161 N.J. Super. 317, 391 A.2d 935, 1978 N.J. Super. LEXIS 1003 (Law Div. 1978), rev'd, 92 N.J. 158, 456 A.2d 390, 1983 N.J. LEXIS 2344 (N.J. 1983).

Real Property Law: Zoning & Land Use: Building & Housing Codes

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Tax Law: State & Local Taxes: Administration & Proceedings: General Overview

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[N.J. Stat. Ann. § 52:27D-119](#) preempted a borough's ordinance requiring, as a condition for the issuance of a building permit, that past-due real estate taxes on the property be paid; [N.J. Stat. Ann. § 40:52-1.2](#) did not provide the borough with authority for the ordinance because it was limited to authorizing the licensing of specifically enumerated merchants and businesses for the purpose of regulating them and generating revenue. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

Torts: Premises Liability & Property: Lessees & Lessors: Liabilities of Lessors: Negligence: Premises Leased for Public Use

Although a New Jersey appellate court does not recognize a private cause of action stemming from any construction code violations, such violations may be evidential if not conclusive of a lessors' potential breach of a duty concerning a handrail. [Reyes v. Egner, 404 N.J. Super. 433, 962 A.2d 542, 2009 N.J. Super. LEXIS 4 \(App.Div. 2009\)](#), aff'd, [201 N.J. 417, 991 A.2d 216, 2010 N.J. LEXIS 385 \(N.J. 2010\)](#).

Torts: Premises Liability & Property: Lessees & Lessors: Liabilities of Lessors: Negligence: Safety Requirements

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Research References & Practice Aids

Cross References:

Requirement of voluntary act; omission as basis of liability; possession as an act, see [2C:2-1](#).

Powers of authority, see [5:10-5](#).

Failure to use barrier free housing standards, unlawful discrimination, see [10:5-12.4](#).

Construction and operation; inapplicability of local government approval or zoning ordinance; compliance with state law; inspections, see [13:1E-63](#).

Council to provide legal representation to local units, conditions, see [13:20-20](#).

Plans, regulations entitled to strong presumption of validity, see [13:20-22](#).

Other laws applicable, see [17:16K-13](#).

Fireworks showers, pyrotechnics, prohibited in certain buildings, exceptions, see [21:2-7](#).

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Promulgation of regulations, see [34:6A-32](#).

Uniform codes not superseded, permits required, see [34:6A-49](#).

Places where parking prohibited; exceptions; moving vehicle not under one's control into prohibited area, see 39:4-138.

Handicapped parking enforcement units, see [39:4-197.9](#).

Repair, closing or demolition; ordinance; authorization for order of public officer; summary proceedings to demolish unsafe building, see [40:48-2.5](#).

Restrictions or conditions on real property sold or leased by commission, see [40:55B-8.2](#).

Definitions relative to Statewide non-residential development fees, see [40:55D-8.3](#).

Definitions, see [40:55D-102](#).

Definitions, see [40:55D-132](#).

Municipal ordinances relative to small wind energy systems, see [40:55D-66.12](#).

Definitions relative to extension of certain permits and approvals, see [40:55D-136.3](#).

Duration of certain contracts, see [40A:11-15](#).

Practice of architecture; what constitutes; exceptions, see [45:3-10](#).

Exempt work or construction, see [45:5A-18](#).

Conformance of unit in converted development to [C.52:27D-119](#) et seq, see [45:22A-46.7](#).

Permit for public mausoleum, see [45:27-27](#).

Project report; review, see [52:18A-78.6](#).

Definitions, see [52:27D-121](#).

Powers of the commissioner, see 52:27D-124.

State buildings and buildings of interstate agencies; outdoor advertising signs on public property, see [52:27D-129](#).

Inspection of construction by enforcing agency; right of entry; stop construction orders; violations, reinspection, see 52:27D-132.

Regulations to provide reasonable degree of safety from fire, explosion, see [52:27D-198](#).

Applicability of act; inspection of government owned buildings, see [52:27D-213](#).

Definitions relative to fire protection equipment, see [52:27D-25n](#).

Definitions, see 52:27D-304.

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Duties of council, see [52:27D-307](#).

Findings, declarations relative to building construction codes, see [52:27D-122.1](#).

Applicability over law or regulation to contrary, see [52:27D-123.1](#).

Agricultural construction criteria, see [52:27D-123.2](#).

Building code, development, see [52:27D-123.5](#).

Development of building code to foster housing rehabilitation, see [52:27D-123.8](#).

Rules, regulations pertinent to playgrounds, see [52:27D-123.10](#).

Adoption of radon hazard code, see [52:27D-123a](#).

Functions, etc. relating to energy subcode continued and transferred, see [52:27D-124.2](#).

Submittal of bid, proposal by private agency under local public contracts law, see [52:27D-124.3](#).

Standards where no federal standard established; enforcement, see [52:27D-124b](#).

Fire prevention subcode officials; appointment; qualifications; removal, see [52:27D-126.1](#).

Persons appointed as construction officials or subcode officials; licenses, see [52:27D-126.2](#).

Waiving of construction permit and enforcing agency fees for work done to promote accessibility by disabled persons, see [52:27D-126e](#).

Definitions relative to testing, inspecting elevator devices; alternative testing; rules, regulations; review, analysis, see [52:27D-126f](#).

Construction permit surcharge fee; construction contracted for or conducted by municipality; prohibition, see [52:27D-130.1](#).

Removal, demolition of certain building, structure, see [52:27D-131.1](#).

Surcharge for violation of State Uniform Construction Code, see [52:27D-138.1](#).

Fire safety maintenance code; municipalities or fire districts; adoption; enforcement, see [52:27D-139.1](#).

Regulations relative to access for physically handicapped, see [52:32-5](#).

Definitions, see [52:32-6](#).

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Definitions, see [54:4-1.4](#).

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Definitions relative to certain renewable energy systems, see [54:4-3.113a](#).

Definitions relative to homestead credit act, see [54:4-8.58](#).

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Definitions relative to homestead property tax reimbursement, see [54:4-8.67](#).

Definitions, see [55:13A-3](#).

No code or standard to exceed standards under “State Uniform Construction Code Act”, see [55:13A-7.2](#).

Local governments or officers; authorization to inspect; reports; preemption of regulations; supplying information, see [55:13B-15](#).

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Cost of residential construction permits, disclosure by contractor; violations, penalties, see [56:12-2.1](#).

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Installation and use of alternative waste treatment systems and greywater systems, see [58:11-25b](#).

Administrative Code:

[N.J.A.C. 10A:34-2.3](#) (2013), CHAPTER NEW JERSEY MUNICIPAL DETENTION FACILITIES, Compliance with orders from a court of jurisdiction, codes, regulations and laws.

[N.J.A.C. 12:100-3A.2](#) (2013), CHAPTER SAFETY AND HEALTH STANDARDS FOR PUBLIC EMPLOYEES, Adoption of standards more stringent than Federal standards.

[N.J.A.C. 13:13-1.3](#) (2013), CHAPTER REGULATIONS PERTAINING TO DISCRIMINATION ON THE BASIS OF DISABILITY, Definitions.

[N.J.A.C. 13:13-3.7](#) (2013), CHAPTER REGULATIONS PERTAINING TO DISCRIMINATION ON THE BASIS OF DISABILITY, Covered multifamily dwellings.

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[N.J.A.C. 13:31-4.1](#) (2013), CHAPTER BOARD OF EXAMINERS OF ELECTRICAL CONTRACTORS, Limited telecommunications wiring exemption.

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[N.J.A.C. 13:31A-1.14](#) (2013), CHAPTER FIRE ALARM, BURGLAR ALARM AND LOCKSMITH LICENSEES AND BUSINESSES, Standards of practice.

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§ 52:27D-119. Short title [State Uniform Construction Code Act]

[N.J.A.C. 5:10-1B.2](#) (2013), CHAPTER MAINTENANCE OF HOTELS AND MULTIPLE DWELLINGS, Types of licenses.

[N.J.A.C. 5:10-1B.7](#) (2013), CHAPTER MAINTENANCE OF HOTELS AND MULTIPLE DWELLINGS, Revocation of licensure and alternative sanctions.

[N.J.A.C. 5:10-2.2](#) (2013), CHAPTER MAINTENANCE OF HOTELS AND MULTIPLE DWELLINGS, Definitions.

[N.J.A.C. 5:11-2.1](#) (2013), CHAPTER RELOCATION ASSISTANCE AND EVICTION, Building, housing, and health code enforcement.

[N.J.A.C. 5:17-1.1](#) (2013), CHAPTER LEAD HAZARD EVALUATION AND ABATEMENT CODE, Title; scope; intent.

[N.J.A.C. 5:21-1.9](#) (2013), CHAPTER RESIDENTIAL SITE IMPROVEMENT STANDARDS, Violations.

[N.J.A.C. 5:23-5.20](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Standards for educational programs.

[N.J.A.C. 5:23-8.1](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Title; scope; intent.

[N.J.A.C. 5:23-10.1](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Title, scope; intent.

[N.J.A.C. 5:23A-1.1](#) (2013), CHAPTER CONSTRUCTION BOARDS OF APPEALS, Title; authority; scope; intent.

[N.J.A.C. 5:25-1.3](#) (2013), CHAPTER REGULATIONS GOVERNING NEW HOME WARRANTIES AND BUILDERS' REGISTRATION, Definitions.

[N.J.A.C. 5:27-2.1](#) (2013), CHAPTER REGULATIONS GOVERNING ROOMING AND BOARDING HOUSES, Definitions.

[N.J.A.C. 5:43-2.4](#) (2013), CHAPTER NEIGHBORHOOD PRESERVATION BALANCED HOUSING PROGRAM, Eligibility requirements.

[N.J.A.C. 5:71-1.4](#) (2013), CHAPTER FIRE CODE ENFORCEMENT, Definitions.

[N.J.A.C. 5:71-4.6](#) (2013), CHAPTER FIRE CODE ENFORCEMENT, Revocation of certifications and alternative sanctions.

[N.J.A.C. 5:74-1.4](#) (2013), CHAPTER STANDARD FOR THE CERTIFICATION OF FIRE PROTECTION EQUIPMENT CONTRACTORS, Definitions.

[N.J.A.C. 6A:26-3.3](#) (2013), CHAPTER EDUCATIONAL FACILITIES, Review and approval of school facilities projects.

[N.J.A.C. 7:9A-7.7](#) (2013), CHAPTER STANDARDS FOR INDIVIDUAL SUBSURFACE SEWAGE DISPOSAL SYSTEMS, Building sewer.

[N.J.A.C. 7:26A-4.1](#) (2013), CHAPTER RECYCLING RULES, Design and operational standards for recycling centers which receive Class A, Class B, Class C and Class D recyclable materials.

N.J.A.C. 8:22-1.2 (2013), CHAPTER PUBLIC CAMPGROUNDS, Definitions.

N.J.A.C. 10:44B-1.3 (2013), CHAPTER MANUAL OF STANDARDS FOR COMMUNITY CARE RESIDENCES, Definitions.

§ 52:27D-119. Short title [State Uniform Construction Code Act]

[N.J.A.C. 10:44C-1.3](#) (2013), CHAPTER STANDARDS FOR COMMUNITY RESIDENCES FOR PERSONS WITH HEAD INJURIES, Definitions.

NJ ICLE:

[Commercial Real Estate Transactions in New Jersey 8.5](#) The Construction Process

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N.J. Stat. § 52:27D-120

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§ 52:27D-120. Purpose

It is the intent and purpose of this act:

- a.** To encourage innovation and economy in construction and to provide requirements for construction and construction materials consistent with nationally recognized standards.
- b.** To formulate such requirements, to the extent practicable, in terms of performance objectives, so as to make adequate performance for the use intended as the test of acceptability.
- c.** To permit to the fullest extent feasible the use of modern technical methods, devices and improvements, including premanufactured systems, consistent with reasonable requirements for the health, safety, and welfare of occupants or users of buildings and structures.
- d.** To eliminate restrictive, obsolete, conflicting and unnecessary construction regulations that tend to unnecessarily increase construction costs or retard the use of new materials, products or methods of construction, or provide preferential treatment to types or classes of materials or products or methods of construction.
- e.** To insure adequate maintenance of buildings and structures throughout the State and to adequately protect the health, safety and welfare of the people.
- f.** To eliminate unnecessary duplication of effort and fees in the review of construction plans and the inspection of construction.

History

L. 1975, c. 217, § 2.

Annotations

CASE NOTES

Governments: State & Territorial Governments: Police Power

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Real Property Law: Zoning & Land Use: Building & Housing Codes

Governments: State & Territorial Governments: Police Power

§ 52:27D-120. Purpose

Banister on the deck stairway where the injured party fell did not comply with the model building code under [N.J. Stat. Ann. § 52:27D-120\(e\)](#), as the banister ended nine inches short of the final step when it should have extended at least another 12 inches beyond the final step. [Parks v. Rogers, 176 N.J. 491, 825 A.2d 1128, 2003 N.J. LEXIS 665 \(N.J. 2003\)](#).

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

Real Property Law: Zoning & Land Use: Building & Housing Codes

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

N.J. Stat. § 52:27D-121

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§ 52:27D-121. Definitions

As used in P.L.1975, c.217 ([C.52:27D-119](#) et seq.):

“Building” means a structure enclosed with exterior walls or fire walls, built, erected and framed of component structural parts, designed for the housing, shelter, enclosure and support of individuals, animals or property of any kind.

“Business day” means any day of the year, exclusive of Saturdays, Sundays, and legal holidays.

“Certificate of occupancy” means the certificate provided for in section 15 of P.L.1975, c.217 ([C.52:27D-133](#)), indicating that the construction authorized by the construction permit has been completed in accordance with the construction permit, the State Uniform Construction Code and any ordinance implementing said code.

“Commissioner” means the Commissioner of Community Affairs.

“Code” means the State Uniform Construction Code.

“Commercial farm building” means any building located on a commercial farm which produces not less than \$2,500 worth of agricultural or horticultural products annually, which building’s main use or intended use is related to the production of agricultural or horticultural products produced on that farm. A building shall not be regarded as a commercial farm building if more than 1,200 square feet of its floor space is used for purposes other than its main use. A greenhouse constructed in conjunction with the odor control bio-filter of a solid waste or sludge composting facility, which greenhouse produces not less than \$2,500 worth of agricultural or horticultural products in addition to its function as a cover for the bio-filter, shall be considered a commercial farm building for the purposes of P.L.1975, c.217 ([C.52:27D-119](#) et seq.), provided, however, that the greenhouse is not intended for human occupancy.

“Construction” means the construction, erection, reconstruction, alteration, conversion, demolition, removal, repair or equipping of buildings or structures.

“Construction board of appeals” means the board provided for in section 9 of P.L.1975, c.217 ([C.52:27D-127](#)).

“Department” means the Department of Community Affairs.

“Enforcing agency” means the municipal or county construction official and subcode officials provided for in section 8 of P.L.1975, c.217 ([C.52:27D-126](#)), or section 1 of [P.L.2018, c.157](#) ([C.52:27D-126.8](#)) regarding a pilot county in the “County Code Enforcement Pilot Program,” and assistants thereto.

“Equipment” means plumbing, heating, electrical, ventilating, air conditioning, refrigerating and fire prevention equipment, and elevators, dumbwaiters, escalators, boilers, pressure vessels and other mechanical facilities or installations.

“Hearing examiner” means a person appointed by the commissioner to conduct hearings, summarize evidence, and make findings of fact.

§ 52:27D-121. Definitions

“Maintenance” means the replacement or mending of existing work with equivalent materials or the provision of additional work or material for the purpose of the safety, healthfulness, and upkeep of the structure and the adherence to the other standards of upkeep as are required in the interest of public safety, health and welfare.

“Manufactured home” or “mobile home” means a unit of housing which:

- (1) Consists of one or more transportable sections which are substantially constructed off site and, if more than one section, are joined together on site;
- (2) Is built on a permanent chassis;
- (3) Is designed to be used, when connected to utilities, as a dwelling on a permanent or nonpermanent foundation; and
- (4) Is manufactured in accordance with the standards promulgated for a manufactured home by the Secretary of the United States Department of Housing and Urban Development pursuant to the “National Manufactured Housing Construction and Safety Standards Act of 1974,” [Pub.L.93-383](#) (42 [U.S.C. § 5401](#) et seq.) and the standards promulgated by the commissioner pursuant to P.L.1975, c.217 ([C.52:27D-119](#) et seq.).

“Municipality” means any city, borough, town, township or village.

“Outdoor advertising sign” means a sign required to be permitted pursuant to P.L.1991. c.413 ([C.27:5-5](#) et seq.).

“Owner” means the owner or owners in fee of the property or a lesser estate therein, a mortgagee or vendee in possession, an assignee of rents, receiver, executor, trustee, lessee, or any other person, firm or corporation, directly or indirectly in control of a building, structure, or real property and shall include any subdivision thereof of the State.

“Premanufactured system” means an assembly of materials or products that is intended to comprise all or part of a building or structure and that is assembled off site by a repetitive process under circumstances intended to insure uniformity of quality and material content.

“Public school facility” means any building, or any part thereof, of a school, under college grade, owned and operated by a local, regional, or county school district.

“State sponsored code change proposal” means any proposed amendment or code change adopted by the commissioner in accordance with subsection c. of section 5 of P.L.1975, c.217 ([C.52:27D-123](#)) for the purpose of presenting the proposed amendment or code change at any of the periodic code change hearings held by the National Model Code Adoption Agencies, the codes of which have been adopted as subcodes under P.L.1975, c.217 ([C.52:27D-119](#) et seq.).

“Stop construction order” means the order provided for in section 14 of P.L.1975, c.217 ([C.52:27D-132](#)).

“State Uniform Construction Code” means the code provided for in section 5 of P.L.1975, c.217 ([C.52:27D-123](#)), or any portion thereof, and any modification of or amendment thereto.

“Structure” means a combination of materials to form a construction for occupancy, use, or ornamentation, whether installed on, above, or below the surface of a parcel of land; provided the word “structure” shall be construed when used herein as though followed by the words “or part or parts thereof and all equipment therein” unless the context clearly requires a different meaning.

History

L. 1975, c. 217, § 3; amended 1977, c. 221, § 1; 1981, c. 494, § 8; 1983, c. 388; 1983, c. 496, § 1; 1986, c. 119, § 1; [1992, c. 12](#); [2004, c. 42](#), § 9, eff. June 29, 2004; [2018, c. 157](#), § 2, effective December 17, 2018.

Annotations

Notes

Amendment Notes

The 2018 amendment, by Chapter 157, in the definition of “Enforcing agency”, inserted “or county” and substituted “P.L.1975, c.217 (C.52:27D-126), or section 1 of and, at the discretion of the board of education, electronic advertisement, regarding a pilot county in the ‘County Code Enforcement Pilot Program’” for “this act”; and updated references and made stylistic changes.

CASE NOTES

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Real Property Law: Zoning & Land Use: Building & Housing Codes

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs](#), 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 (App.Div. 2010).

Real Property Law: Zoning & Land Use: Building & Housing Codes

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs](#), 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 (App.Div. 2010).

N.J. Stat. § 52:27D-122

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§ 52:27D-122. Legislative findings

It is hereby found and declared:

- a. That a multiplicity of construction codes currently exists in this State and some of these codes contain needless restrictions which limit the use of certain materials, techniques or products without any benefits to the public. Moreover, the variation of construction standards caused by the multiplicity of codes slows the process of construction and increases the costs of construction.
- b. That the way to insure uniform, modern construction standards and regulations throughout the State of New Jersey which will lower the cost of housing and other construction without any detriment to the public health, safety and welfare is to adopt a uniform State construction code.
- c. That the need of new construction in the State can be met in part by the use of premanufactured systems which are fabricated in the geographical region of the United States of which New Jersey is a part and that a uniform construction code should include standards to permit the use of such systems.
- d. That the model codes of the Building Officials and Code Administrators International, Inc., the National Electrical Code and the National Standard Plumbing Code, or modification thereof, are construction codes which have been widely adopted in this State and in the geographical region of the United States of which New Jersey is a part and adoption of these nationally recognized codes pursuant to this act will insure that the State has a uniform, modern construction code which will insure health, safe, and sanitary construction but also less expensive construction for the citizens of this State.

History

L. 1975, c. 217, § 4.

Annotations

CASE NOTES

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Real Property Law: Zoning & Land Use: Building & Housing Codes

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is

§ 52:27D-122. Legislative findings

valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

Real Property Law: Zoning & Land Use: Building & Housing Codes

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

N.J. Stat. § 52:27D-122.1

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§ 52:27D-122.1. Findings, declarations relative to building construction codes

The Legislature finds and declares that:

- a. One of the specified purposes of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.), was the elimination of restrictive and unnecessary construction regulations that tend to unnecessarily increase construction costs.
- b. While the overall effect of the statutory requirement that the subcodes of the State Uniform Construction Code be adoptions of the model codes or standards of nationally recognized organizations, including all amendments or revisions to such codes or standards, has been consistent with the intent and purpose of the “State Uniform Construction Code Act,” there have been exceptional instances in which the amendment or revision of an adopted code or standard has included changes that are not consistent with that intent and purpose.
- c. It is therefore necessary and appropriate that the Commissioner of Community Affairs be given the authority to limit the adoption of later revisions to the model code to include only those standards in effect on July 1, 1995, and any later revisions or amendments of model codes which would not be inconsistent with the intent and purpose of the act.

History

L. [1996, c. 53](#), § 1.

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[N.J. Stat. § 52:27D-122.2](#)

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§ 52:27D-122.2. Findings, declarations relative to energy efficiency in buildings

The Legislature hereby finds and declares:

- a. It is the public policy of this State to encourage and facilitate the construction of energy-efficient buildings which are designed and built to reduce overall energy demand.
- b. While energy-efficient buildings may cost more to construct, the payback period to recoup the added investment is only a few years.
- c. Energy savings can be most fully realized when incorporated into new construction from the beginning.
- d. It is therefore necessary and appropriate that the Commissioner of Community Affairs, in consultation with the Board of Public Utilities, adopt energy-efficient building codes that may exceed the requirements of national model codes.

History

L. [2009, c. 106](#), § 1, eff. Aug. 6, 2009.

Annotations

Notes

Editor's Notes

Down payment assistance to purchasers of new homes meeting enhanced energy subcode requirements adopted pursuant to [52:27D-123](#), see [52:27F-11](#).

Research References & Practice Aids

Cross References:

State Uniform Construction Code; adoption, see [52:27D-123](#).

§ 52:27D-122.2. Findings, declarations relative to energy efficiency in buildings

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§ 52:27D-123. State Uniform Construction Code; adoption.

a. The commissioner shall after public hearing pursuant to section 4 of the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-4](#)) adopt a State Uniform Construction Code for the purpose of regulating the structural design, construction, maintenance, and use of buildings or structures to be erected and alteration, renovation, rehabilitation, repair, maintenance, removal, or demolition of buildings or structures already erected. Prior to the adoption of said code, the commissioner shall consult with the code advisory board and other departments, divisions, bureaus, boards, councils, or other agencies of State Government heretofore authorized to establish or administer construction regulations.

Such prior consultations with departments, divisions, bureaus, boards, councils, or other agencies of State Government shall include but not be limited to consultation with the Commissioner of Health and the Public Health Council prior to adoption of a plumbing subcode pursuant to paragraph b. of this section. Said code shall include any code, rule, or regulation incorporated therein by reference.

b. The code shall be divided into subcodes which may be adopted individually by the commissioner as the commissioner may from time to time consider appropriate. These subcodes shall include but not be limited to a building code, a plumbing code, an electrical code, an energy code, a fire prevention code, a manufactured or mobile home code, and a mechanical code.

These subcodes, except for the energy subcode, shall be adoptions of the model codes of the Building Officials and Code Administrators International, Inc., the National Electrical Code, and the National Standard Plumbing Code, provided that for good reasons, the commissioner may adopt as a subcode, a model code or standard of some other nationally recognized organization upon a finding that such model code or standard promotes the purposes of P.L.1975, c.217 ([C.52:27D-119](#) et seq.). The initial adoption of a model code or standard as a subcode shall constitute adoption of subsequent edition year publications of the model code or standard of such other nationally recognized organization, except as provided for in paragraphs (1) through (4) of this subsection. Adoption of publications shall not occur more frequently than once every three years; provided, however, that a revision or amendment may be adopted at any time in the event that the commissioner finds that there exists an imminent peril to the public health, safety, or welfare.

The energy subcode shall be based upon the model codes cited under this subsection or the International Energy Conservation Code. It may be amended or supplemented by the commissioner once before 2012 without regard to intervals between the adoption of the energy subcode in effect on the effective date [Aug. 6, 2009] of [P.L.2009, c.106 \(C.52:27D-122.2](#) et al.) and subsequent year revisions of that subcode. In amending or supplementing the energy subcode, the commissioner shall rely upon 10-year energy price projections provided by an institution of higher education within one year following the effective date of [P.L.2009, c.106 \(C.52:27D-122.2](#) et al.), and thereafter at three-year intervals. In developing the energy price projections, the institution of higher education shall consult with the Board of Public Utilities. The commissioner shall be authorized to amend the energy subcode to establish enhanced energy conservation construction requirements, the added cost of each of which may reasonably be recovered through energy conservation over a period of not more than seven years. Such requirements shall include

§ 52:27D-123. State Uniform Construction Code; adoption.

provisions to ensure that, in all parts of the State the anticipated energy savings shall be similarly proportionate to the additional costs of energy subcode compliance.

- (1) Except as otherwise provided in this subsection, the edition of a model code or standard in effect as a subcode as of July 1, 1995 shall continue in effect regardless of any publication of a subsequent edition of that model code or standard. Prior to establishing the effective date for any subsequent revision or amendment of any model code or standard adopted as a subcode, the commissioner shall review, in consultation with the code advisory board, the text of the revised or amended model code or standard and determine whether the amended or revised provisions of the model code are essential to carry out the intent and purpose of P.L.1975, c.217 ([C.52:27D-119](#) et seq.) as viewed in contrast to the corresponding provisions of the subcode then currently in effect.
- (2) In the event that the commissioner, pursuant to paragraph (1) of this subsection, determines that any amended or revised provision of a model code is essential to carry out the intent and purpose of this act as viewed in contrast to any corresponding provision of the subcode then currently in effect, the commissioner may then adopt that provision of the amended or revised model code.
- (3) The commissioner, in consultation with the code advisory board, shall have the authority to review any model code or standard currently in effect as a subcode of the State Uniform Construction Code and compare it with previously adopted editions of the same model code or standard in order to determine if the subcode currently in effect is at least as consistent with the intent and purpose of this act as were previously adopted editions of the same model code or standard.
- (4) In the event that the commissioner, after consultation with the code advisory board, determines pursuant to this subsection that a provision of a model code or standard currently in effect as a subcode of the State Uniform Construction Code is less consistent with the intent and purpose of P.L.1975, c.217 ([C.52:27D-119](#) et seq.) than was the corresponding provision of a previously adopted edition of the same model code or standard, the commissioner may delete the provision in effect and substitute in its place the corresponding provision of the previously adopted edition of the same model code or standard determined to be more consistent with the intent and purpose of P.L.1975, c.217 ([C.52:27D-119](#) et seq.).
- (5) The commissioner shall be authorized to adopt a barrier free subcode or to supplement or revise any model code adopted hereunder, for the purpose of insuring that adequate and sufficient features are available in buildings or structures so as to make them accessible to and usable by persons with physical disabilities. Multi-family residential buildings with four or more dwelling units in a single structure shall be constructed in accordance with the barrier free subcode; for the purposes of this subsection the term "multi-family residential buildings with four or more dwelling units in a single structure" shall not include buildings constructed as townhouses, which are single dwelling units with two or more stories of living space, exclusive of basement or attic, with most or all of the sleeping areas on one story and with most of the remaining habitable space, such as kitchen, living, and dining areas, on another story, and with an independent entrance at or near grade level.

c. Any municipality through its construction official, and any State agency or political subdivision of the State, may submit an application recommending to the commissioner that a State sponsored code change proposal be adopted. Such application shall contain such technical justification and shall be submitted in accordance with such rules of procedure as the commissioner may deem appropriate, except that whenever the State Board of Education shall determine that enhancements to the code are essential to the maintenance of a thorough and efficient system of education, the enhancements shall be made part of the code; provided that the amendments do not result in standards that fall below the adopted subcodes. The Commissioner of Education shall consult with the Commissioner of Community Affairs prior to publishing the intent of the State Board to adopt any amendments to the Uniform Construction Code. Upon adoption of any amendments by the State Board of Education they shall be transmitted forthwith to the Commissioner of Community Affairs who shall publish and incorporate the amendments as part of the Uniform Construction Code and the amendments shall be enforceable as if they had been adopted by the commissioner.

§ 52:27D-123. State Uniform Construction Code; adoption.

At least 45 days prior to the final date for the submission of amendments or code change proposals to the National Model Code Adoption Agency, the code of which has been adopted as a subcode under P.L.1975, c.217 ([C.52:27D-119](#) et seq.), the commissioner shall hold a public hearing in accordance with the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), at which testimony on any application recommending a State sponsored code change proposal will be heard.

The commissioner shall maintain a file of such applications, which shall be made available to the public upon request and upon payment of a fee to cover the cost of copying and mailing.

After public hearing, the code advisory board shall review any such applications and testimony and shall within 20 days of such hearing present its own recommendations to the commissioner.

The commissioner may adopt, reject, or return such recommendations to the code advisory board for further deliberation. If adopted, any such proposal shall be presented to the subsequent meeting of the National Model Code Agency by the commissioner or by persons designated by the commissioner as a State sponsored code change proposal. Nothing herein, however, shall limit the right of any municipality, the department, or any other person from presenting amendments to the National Model Code Agency on its own initiative.

The commissioner may adopt further rules and regulations pursuant to this subsection and may modify the procedures herein described when a model code change hearing has been scheduled so as not to permit adequate time to meet such procedures.

d. (Deleted by amendment, P.L.1983, c.496.)

History

L. 1975, c. 217, § 5; amended 1977, c. 221, § 2; 1981, c. 494, § 9; 1983, c. 496, § 2; [1993, c. 306](#); [1996, c. 53](#), § 2, eff. Sept. 1, 1996; [2003, c. 72](#), § 2, eff. May 5, 2003, retroactive to Apr. 6, 2001; [2009, c. 106](#), § 2, eff. Aug. 6, 2009; [2017, c. 131](#), § 191, effective July 21, 2017.

Annotations

Notes

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Editor's Notes

Down payment assistance to purchasers of new homes meeting the enhanced energy subcode requirements, see subsection g. of [52:27F-11](#).

Division of Energy Planning and Conservation to provide consultation to institution of higher education pursuant to subsection b. of [52:27D-123](#), see subsection y. of [52:27F-11](#).

Effective Dates:

Section 3 of L. [1996, c. 53](#) provides: “This act shall take effect on the first day of the third month following enactment.” Chapter 53, L. 1996, was approved on June 28, 1996.

§ 52:27D-123. State Uniform Construction Code; adoption.

Section 5 of L. [2003, c. 72](#) provides: “This act shall take effect immediately and be applied retroactively from April 6, 2001.” Chapter 72, L. 2003, was approved on May 5, 2003.

Amendment Note:

2009 amendment, by Chapter 106, inserted the third paragraph of b., pertaining to the energy subcode; and in the second paragraph of b., in the first sentence, inserted “except for the energy subcode” and inserted a comma following “adopt as a subcode”, and in the second sentence, inserted “of such other nationally recognized.”

2017 amendment, by Chapter 131, deleted “and Senior Services” following “Commissioner of Health” in the second paragraph of a.; substituted “the commissioner” for “he” in the first paragraph of b.; substituted “P.L.1975, c.217 (C.52:27D-119 et seq.)” for “this act” in the second paragraph of b., b.(1), twice in b.(4), and in the second paragraph of c.; substituted “persons with physical disabilities” for “the physically handicapped” in b.(5); in c., substituted “Commissioner of Education” for “Commissioner of the Department of Education” and “Commissioner of Community Affairs” for “Commissioner of the Department of Community Affairs” twice; and made stylistic changes.

CASE NOTES

Civil Rights Law: Protection of Disabled Persons: General Overview

Governments: State & Territorial Governments: Relations With Governments

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Real Property Law: Zoning & Land Use: Building & Housing Codes

Civil Rights Law: Protection of Disabled Persons: General Overview

[N.J. Stat. Ann. § 32:1-8](#) precluded unilateral application to the Port Authority of New York and New Jersey of the New Jersey Barrier-Free Statute and the New Jersey Barrier-Free Subcode, [N.J. Admin. Code § 5:23-7.1](#) et seq.; the court declined to apply a distinction between the Port Authority’s internal operations and external conduct, as the language of [N.J. Stat. Ann. § 32:1-8](#) did not suggest that a single state could limit the Port Authority’s external activities. *hip (Heightened Independence & Progress), Inc. v. Port Auth. of N.Y. & N.J.*, 2008 U.S. Dist. LEXIS 25368 (D.N.J. Mar. 27, 2008), *aff’d*, 693 F.3d 345, 2012 U.S. App. LEXIS 19045 (3d Cir. N.J. 2012).

Governments: State & Territorial Governments: Relations With Governments

[N.J. Stat. Ann. § 32:1-8](#) precluded unilateral application to the Port Authority of New York and New Jersey of the New Jersey Barrier-Free Statute and the New Jersey Barrier-Free Subcode, [N.J. Admin. Code § 5:23-7.1](#) et seq.; the court declined to apply a distinction between the Port Authority’s internal operations and external conduct, as the language of [N.J. Stat. Ann. § 32:1-8](#) did not suggest that a single state could limit the Port Authority’s external activities. *hip (Heightened Independence & Progress), Inc. v. Port Auth. of N.Y. & N.J.*, 2008 U.S. Dist. LEXIS 25368 (D.N.J. Mar. 27, 2008), *aff’d*, 693 F.3d 345, 2012 U.S. App. LEXIS 19045 (3d Cir. N.J. 2012).

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development

Department of Community Affairs’ interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department’s regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for

§ 52:27D-123. State Uniform Construction Code; adoption.

such trailers. [*Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs*, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

Real Property Law: Zoning & Land Use: Building & Housing Codes

Department of Community Affairs' interpretive regulation, [*N.J. Admin. Code § 5:23-9.3*](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [*N.J. Stat. Ann. §§ 52:27D-119*](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [*42 U.S.C.S. §§ 5401-5426*](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [*Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs*, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

Research References & Practice Aids

Cross References:

Failure to use barrier free housing standards, unlawful discrimination, see [10:5-12.4](#).

Business permit; certification for landscape irrigation contractors, see [45:5AA-3](#).

Definitions, see [52:27D-121](#).

Code advisory board, see [52:27D-125](#).

Appointment of construction official, subcode officials, see [52:27D-126](#).

Division of Energy Planning and Conservation; powers of BPU, see [52:27F-11](#).

Definitions, see [52:32-6](#).

Administrative Code:

N.J.A.C. 5:23 (2013), CHAPTER UNIFORM CONSTRUCTION CODE, 5, Chapter 23 — Chapter Notes.

[N.J.A.C. 8:36-17.6](#) (2013), CHAPTER STANDARDS FOR LICENSURE OF ASSISTED LIVING RESIDENCES, COMPREHENSIVE PERSONAL CARE HOMES, AND ASSISTED LIVING PROGRAMS, Water supply.

LAW REVIEWS & JOURNALS:

[39 Rutgers L.J. 739](#), SYMPOSIUM: THE REGULATION OF PRIVATE FUNDS: NOTE: ONCE A LANDFILL, NOW A NEIGHBORHOOD SCHOOL, AND THAT'S OK: HARTFORD PARK TENANTS ASSOCIATION V. RHODE ISLAND DEPARTMENT OF ENVIRONMENTAL PROTECTION.

NJ ICLE:

New Jersey Environmental Law 16.13 Radon Gas Statutes

N.J. Stat. § 52:27D-123a

Current through New Jersey 221st Second Annual Session, L. 2025, c. 152 and J.R. 11

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§ 52:27D-123a. Adoption of radon hazard code

The Commissioner of Community Affairs shall adopt, pursuant to the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), a radon hazard code, or may propose amendments to revise the appropriate model code adopted pursuant to the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.), for the purpose of establishing adequate and appropriate standards to ensure that schools and residential buildings within tier one areas, as defined by the Department of Environmental Protection pursuant to P.L.1985, c.408 ([C.26:2D-59](#) et seq.), are constructed in a manner that minimizes radon gas and radon progeny entry and facilitates any subsequent remediation that might prove necessary. In preparing the radon hazard code standards, the commissioner shall employ a guideline of four picocuries per liter or such other action level standard as the Department of Environmental Protection may establish subsequent to the effective date of this act.

The department shall include in the radon hazard code standards such testing requirements as may prove reliable, practical and economical to identify sites where a proposed school or residential building will require construction in a manner that minimizes radon gas and radon progeny entry and facilitates any subsequent remediation. If a feasible predictive test method is developed, then the standards adopted pursuant to the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.), shall be revised to include such further changes in construction standards as may be necessary to prevent the entry of radon gas and radon progeny into new schools or residential buildings.

No person who constructs a school or residential building in compliance with these standards anywhere within the State shall thereafter be held liable for the presence of radon gas or radon progeny in the school or residential building, or for any losses or damage to persons or property resulting therefrom.

History

L. [1989, c. 186](#), § 1.

N.J. Stat. § 52:27D-123b

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§ 52:27D-123b. Construction to be in accordance with radon hazard code standards

No construction permit shall be issued for the construction of any new school or residential building in a tier one area, except after submission to the construction official of documentation sufficient to establish that the construction will be in accordance with the radon hazard code standards adopted pursuant to section 1 of this act.

History

L. [1989, c. 186](#), § 2.

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N.J. Stat. § 52:27D-123c

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§ 52:27D-123c. Certificate of occupancy contingent on conformity with radon hazard code standards

No certificate of occupancy shall be issued for any newly constructed school or residential building required to be constructed in accordance with radon hazard code standards as provided in section 2 of this act, except upon verification by the construction official that the school or residential building conforms to the radon hazard code standards.

History

L. [1989, c. 186](#), § 3.

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N.J. Stat. § 52:27D-123d

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§ 52:27D-123d. Testing of building sites for presence of radon hazards

The Department of Community Affairs, in consultation with the Department of Environmental Protection, the National Institute of Standards and Technology, the National Association of Homebuilders Research Center and the United States Environmental Protection Agency, shall investigate methods of testing building sites for the purpose of predicting the presence of radon hazards in buildings to be constructed thereon.

History

L. [1989, c. 186](#), § 4.

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N.J. Stat. § 52:27D-123e

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§ 52:27D-123e. Training of construction officials

The Department of Community Affairs shall take such actions as are necessary to train construction officials in the implementation of this act.

History

L. [1989, c. 186](#), § 5.

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N.J. Stat. § 52:27D-123f

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§ 52:27D-123f. Carbon monoxide detectors required in certain structures

- a. An application for a construction permit for any structure other than a structure subject to the provisions of [P.L.1999, c.15](#) ([C.52:27D-133.3](#) et al.) shall not be declared complete without containing provisions for the placement of a carbon monoxide sensor device or devices, unless it is determined that there is no potential carbon monoxide hazard in the structure.
- b. Any determination as to the placement of a carbon monoxide sensor device or devices in a structure and as to whether there is a potential carbon monoxide hazard in a structure shall be made in accordance with the rules and regulations adopted pursuant to subsection c. of this section.
- c. The Commissioner of Community Affairs shall promulgate rules and regulations pursuant to its rule-making authority under the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.) in order to effectuate the purposes of this section. The rules and regulations shall include, but not be limited to, standards for the placement of a carbon monoxide sensor device or devices in a structure and for the determination as to whether there is a potential carbon monoxide hazard in a structure.
- d. For the purposes of this section:

“Carbon monoxide sensor device” means a carbon monoxide alarm or detector that bears the label of a nationally recognized testing laboratory, and has been tested and listed as complying with the most recent Underwriters Laboratories standard 2034 or its equivalent.

History

L. [2015, c. 146](#), § 1, effective November 9, 2015.

Annotations

Notes

Editor's Notes:

The title to L. [2015, c. 146](#) designates the act as “Korman and Park’s Law.”

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N.J. Stat. § 52:27D-123.1

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§ 52:27D-123.1. Applicability over law or regulation to contrary

Any law or regulation to the contrary notwithstanding, the structure, design, construction, maintenance and use of all buildings or structures to be erected and the alteration, renovation, rehabilitation, repair, maintenance, removal, or demolition of all buildings or structures already erected shall be regulated pursuant to the "State Uniform Construction Code Act," P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.).

History

L. 1983, c. 496, 5.

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[N.J. Stat. § 52:27D-123.2](#)

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§ 52:27D-123.2. Agricultural construction criteria

- a. Notwithstanding any other provision of P.L. 1975, c. 217 ([C. 52:27D-119](#) et seq.), the Commissioner of the Department of Community Affairs and the Secretary of Agriculture shall, within 270 days of the effective date of this amendatory and supplementary act, jointly promulgate, pursuant to the “Administrative Procedure Act,” P.L. 1968, c. 410 ([C. 52:14B-1](#) et seq.), separate construction code criteria for commercial farm buildings. The Commissioner shall, upon adoption, incorporate these criteria into the State Uniform Construction Code.
- b. The Secretary of Agriculture shall, in consultation with the Commissioner of Community Affairs and all other interested and affected parties, prepare the criteria to be proposed for adoption pursuant to the “Administrative Procedure Act,” P.L. 1968, c. 410 ([C. 52:14B-1](#) et seq.). The Secretary may, in his discretion, make use of the services of Rutgers, The State University to prepare the proposed criteria.
- c. The Commissioner and the Secretary shall, to the greatest extent possible, ensure that the criteria provide no impediment to the orderly development of the State’s agricultural and horticultural enterprises. They shall pay particular attention to establishing separate height, area, fire protection and construction type requirements which are more suitable to agricultural and horticultural uses than those which are presently incorporated in the State Uniform Construction Code.
- d. The Commissioner and the Secretary shall ensure that, to the greatest extent possible, criteria are completely eliminated for structures and buildings which are not intended for human occupancy, such as storage bins, silos and the like.

History

L. 1986, c. 119, 2, eff. Oct. 8, 1986.

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N.J. Stat. § 52:27D-123.3

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§ 52:27D-123.3. High hazard uses

Any use of a commercial farm building, other than its main use, which constitutes a high hazard because it involves the generation, processing or storage of corrosive, highly toxic, flammable or explosive materials shall be segregated from the main use by fire resistance-rated construction.

History

L. 1986, c. 119, 3, eff. Oct. 8, 1986.

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N.J. Stat. § 52:27D-123.4

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§ 52:27D-123.4. Public assembly permit

A commercial farm building may be used temporarily as a place of public assembly if a permit for such use has been issued by the local fire official pursuant to the code adopted pursuant to the “Uniform Fire Safety Act,” P.L. 1983, c. 383 ([C. 52:27D-192](#) et seq.). The fee for the issuing of the permit and any inspection required in connection with the issuance shall not exceed \$75.00.

History

L. 1986, c. 119, 4, eff. Oct. 8, 1986.

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N.J. Stat. § 52:27D-123.5

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§ 52:27D-123.5. Building code, development

The Commissioner of the Department of Community Affairs, in consultation with the State Board of Education, is directed to develop a building code specifically designed to foster cost-effective school building construction, while ensuring through its provisions that necessary health and safety requirements are met. The code shall be designed for use throughout the State and shall supplement the State Uniform Construction Code, P.L.1975, c.217 ([C.52:27D-119](#) et seq.). The commissioner may promulgate this code as a separate document from the State Uniform Construction Code, or may, if the commissioner finds it feasible and useful, incorporate its provisions directly into, and make them an integral part of, that code.

History

L. [1995, c. 68](#), § 2.

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N.J. Stat. § 52:27D-123.6

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§ 52:27D-123.6. Code conditions

The code adopted by the Commissioner of Community Affairs pursuant to section 2 of this act shall not require as a condition for approval of plans and specifications for the erection, alteration, improvement or repair of a public school facility:

- a.** refurbishment of a school facility based upon an automatic threshold, involving percentage increases in square footage or the relative costs of the building addition, beyond that necessary to meet the requirements of the appropriate building code which directly impact on the health and safety of students; or
- b.** refurbishment of a newly reopened school facility beyond that necessary to meet the requirements of the appropriate building code which directly impact on the health and safety of the students.

History

L. [1995, c. 68](#), § 3.

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[N.J. Stat. § 52:27D-123.7](#)

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§ 52:27D-123.7. Findings, determinations, declarations

The Legislature hereby finds, determines and declares:

- a. There is an urgent need to improve the housing conditions of low and moderate income individuals and families, many of whom live in substandard housing, particularly in the older cities of the State; and
- b. There are large numbers of older residential buildings in the State, both occupied and vacant, which are in urgent need of rehabilitation and which must be rehabilitated if the State's citizens are to be housed in decent, sound, and sanitary conditions; and
- c. The application of those building code requirements currently in force to housing rehabilitation has led to the imposition of costly and time-consuming requirements which result in a significant reduction in the amount of rehabilitation activity taking place; and
- d. Extensive research has been conducted, in New Jersey and elsewhere, which can serve as a sound basis for the development and adoption of a building code specifically designed to foster cost-effective housing rehabilitation while ensuring that necessary health and safety requirements are met; and
- e. Furthermore, in addition to the need for prudent modification of code provisions applicable to rehabilitation of older housing structures, it appears that complaints have from time to time been made that the scope and rigidity of the existing State Uniform Construction Code, as currently adopted and applied, may make excessively stringent and onerous requirements that burden the provision of affordable housing with expenses without any commensurate benefit to the public health, safety and welfare.

History

L. [1995, c. 78](#), § 1.

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N.J. Stat. § 52:27D-123.8

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§ 52:27D-123.8. Development of building code to foster housing rehabilitation

- a.** The Commissioner of Community Affairs is hereby directed to develop a building code specifically designed to foster cost-effective housing rehabilitation, while ensuring through its provisions that necessary health and safety requirements are met. The code shall be designed for use throughout the State but shall have particular application to the older cities of the State, and the housing types characteristic of those cities. The code shall supplement the State Uniform Construction Code, adopted pursuant to P.L.1975, c.217 ([C.52:27D-119](#) et seq.). The commissioner may promulgate this code as a separate document from the State Uniform Construction Code, or may, if he finds it feasible and useful, incorporate its provisions directly into, and make them an integral part of, that code.
- b.** In developing the code, the commissioner is directed to investigate any model codes, such as Chapter 34, "Existing Structures," of the "BOCA National Building Code/1993" and experiences of other code enforcement jurisdictions, to consult with individuals and organizations experienced in the rehabilitation of low and moderate income housing in New Jersey's urban areas, and conduct research as may be relevant to the purposes of this act.
- c.** The commissioner is further directed to undertake a study of the desirability of authorizing a procedure under which, in adopting the provisions of the standard or model codes upon which the State Uniform Construction Code is based, discretion may be accorded to the commissioner to modify, amplify or otherwise depart from any such provisions, without exceeding any of them in stringency, for the purpose of accommodating this State's construction code to the needs of the State and its various regions, particularly with respect to encouraging the provision of housing affordable to persons and families of low and moderate income.
- d.** The commissioner shall, pursuant to the "Administrative Procedure Act," P.L.1968, c.410 ([C.52:14B-1](#) et seq.), promulgate the code prescribed in subsection a. of this section within six months of the effective date of this act; or, if he finds it impracticable to do so, shall make a written report to the Legislature setting forth the grounds of the impracticability and making such recommendations for further legislative action as he may deem likely to remove those grounds. Within the same period of time the commissioner shall also make his report and recommendations to the Legislature on the study directed by subsection c. of this section.

History

L. [1995, c. 78](#), § 2.

§ 52:27D-123.8. Development of building code to foster housing rehabilitation

End of Document

N.J. Stat. § 52:27D-123.9

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§ 52:27D-123.9. Definitions relative to playground safety

For the purposes of [P.L.1999, c.50 \(C.52:27D-123.9\)](#) et seq.):

“Completely inclusive playground” means a playground designated for public use for children two to five years of age or five to twelve years of age, with an accessible playground surface, a playground surface inspection and maintenance schedule consistent with the standards detailed in the “Americans with Disabilities Act of 1990” ([42 U.S.C. § 12101](#) et seq.), and designed in accordance with the rules and regulations adopted pursuant to subsection b. of section 2 of [P.L.1999, c.50 \(C.52:27D-123.10\)](#).

“Governmental entity” means the State, its agencies and instrumentalities, a county or municipality, or any agency or instrumentality thereof, a school district, or any other similar public entity or agency, but not the federal government or its agencies and instrumentalities.

“Nonprofit entity” means a person or entity which operates a playground open to the public or open to users of a facility operated by the person or entity, and which is an exempt organization pursuant to section 9 of P.L.1966, c.30 ([C.54:32B-9](#)), the “Sales and Use Tax Act,” but not a governmental entity or the federal government or its agencies and instrumentalities.

“Private entity” means any person or entity which operates a playground open to the public or open to users of a facility operated by the person or entity, but not a governmental entity, a nonprofit entity or the federal government or its agencies and instrumentalities.

“Playground” means an improved area designed, equipped, and set aside for play of six or more children which is not intended for use as an athletic playing field or athletic court, and shall include any play equipment, surfacing, fencing, signs, internal pathways, internal land forms, vegetation, and related structures.

“Supervision” means all general and specific supervision necessary to protect children from unreasonable risk of harm from site hazards, the acts of other children, or the use of the playground in a way that was not intended by the designer or manager of the playground. [P.L.1999, c.50 \(C.52:27D-123.9\)](#) et seq.) shall not expand or reduce existing standards of care to which a playground operator is held.

History

L. [1999, c. 50](#), § 1, eff. Mar. 23, 1999; amended by [2018, c. 104](#), § 2, effective August 23, 2018.

Annotations

Notes

Editor's Notes

The title to L. [2018, c. 104](#) designates the act as "Jake's Law."

Amendment Notes

2018 amendment, by Chapter 104, added the definition of "Completely inclusive playground"; and substituted "P.L.1999, c.50 (C.52:27D-123.9 et seq.)" for "this act" in the introductory paragraph and in the definition of "Supervision."

Research References & Practice Aids

Cross References:

Upgrading of playgrounds, see [52:27D-123.11](#).

Administrative Code:

[N.J.A.C. 5:23-11.1](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Subcode adopted.

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[N.J. Stat. § 52:27D-123.10](#)

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§ 52:27D-123.10. Rules, regulations pertinent to playgrounds

a. The Department of Community Affairs, in consultation with the Department of Education, shall promulgate rules and regulations for the design, installation, inspection, and maintenance regarding all playgrounds operated by any governmental entity, nonprofit entity, or private entity. The regulations shall conform to the guidelines and criteria specified in the Handbook for Public Playground Safety produced by the United States Consumer Products Safety Commission or any successor and shall also meet any standard of care imposed by law on playground operators. The rules and regulations shall include special provisions for playgrounds appropriate for children within the range of ages in day care settings. The rules and regulations promulgated pursuant to this subsection shall not apply to completely inclusive playgrounds.

b.

(1) The Department of Community Affairs, in consultation with the Department of Education, shall promulgate rules and regulations for the design, installation, inspection, and maintenance of completely inclusive playgrounds. Only playgrounds that meet the requirements of the rules and regulations promulgated pursuant to this subsection shall be deemed completely inclusive playgrounds for the purposes of [P.L.2018, c.104](#) ([C.13:8C-27.1](#) et al.). The rules and regulations shall:

- (a)** conform to the guidelines and criteria which are contained in the Handbook for Public Playground Safety produced by the United States Consumer Products Safety Commission or any successor, and meet any standard of care imposed by law on playground operators;
- (b)** include special provisions for completely inclusive playgrounds appropriate for children within the range of ages in day care settings;
- (c)** meet the standards of the “Americans with Disabilities Act of 1990” ([42 U.S.C. § 12101](#) et seq.), result in the inclusion of people with disabilities, including children and adults, and require that park and playground areas enable every visitor, regardless of medical condition, to engage in the park and playground experience;
- (d)** meet the standards required under the barrier free subcode, adopted pursuant to the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.); and
- (e)** at a minimum, require accessible playground surfacing, access ramps leading up to and within play structures so that a minimum of 50 percent of the elevated play elements on all structures are accessible to people using wheeled mobility devices, and play structures designed to facilitate access by adults and children with disabilities.

(2) The rules and regulations promulgated pursuant to this subsection shall also include, but shall not be limited to, the following:

- (a)** the creation of accessible parking, including the installation of a curb cut, if only on-street parking is available;

§ 52:27D-123.10. Rules, regulations pertinent to playgrounds

- (b) the creation of routes of access to playground and related facilities;
- (c) the use of unitary surfacing in all areas of the playground to allow the maximum possible access to the playground for people using wheeled mobility devices;
- (d) a process for determining which restroom facilities shall be adapted to ensure that families with older children or children with large adaptive equipment have a safe place to provide toileting needs for their children;
- (e) shade requirements, which shall provide that a minimum of 20 percent of the square footage of unitary surface and equipment of the playground is shaded by natural or other means;
- (f) fencing requirements;
- (g) the use of play components that address the physical, sensory, cognitive, social, emotional, imaginative, and communication needs of those who will visit the playground;
- (h) the creation of quiet play areas; and
- (i) the creation of ramps and transfer points on playground equipment.

(3) A playground that has been completed as of the effective date [Aug. 23, 2018] of [P.L.2018, c.104 \(C.13:8C-27.1](#) et al.) may qualify as a completely inclusive playground if it includes unitary surfacing and fencing, at least 50 percent elevated play elements or changes in topographical elevations that function as elevated play elements, and otherwise meets the standards required by the “Americans with Disabilities Act of 1990” ([42 U.S.C. § 12101](#) et seq.).

(4) Within 90 days of the effective date of [P.L.2018, c.104 \(C.13:8C-27.1](#) et al.), and prior to proposing a rule in the New Jersey Register, the Commissioner of Community Affairs shall invite and receive recommendations regarding the adoption of rules and regulations making completely inclusive playgrounds available to persons of all ages and abilities from organizations, playground equipment manufacturers, playground safety consultants, and persons with disabilities with a demonstrated expertise in the design and construction of completely inclusive playgrounds or with a demonstrated expertise in the implementation of accessibility standards. The commissioner shall adopt the recommendations, unless the commissioner determines the recommendations are inconsistent with the intent and purpose of [P.L.2018, c.104 \(C.13:8C-27.1](#) et al.), or are otherwise unfeasible. A recommendation shall not be considered unfeasible if it is demonstrated that the recommendation may be implemented through the use of commercially available equipment. The rules and regulations required by this subsection shall be proposed within 180 days of the effective date of [P.L.2018, c.104 \(C.13:8C-27.1](#) et al.), and shall be adopted within one year of the effective date of [P.L.2018, c.104 \(C.13:8C-27.1](#) et al.).

c. The department shall not be responsible for enforcement of any rules or regulations promulgated by [P.L.1999, c.50 \(C.52:27D-123.9](#) et seq.), unless the department is otherwise responsible for enforcement pursuant to P.L.1975, c.217 ([C.52:27D-119](#) et seq.).

History

L. [1999, c. 50](#), § 2, eff. Mar. 23, 1999; amended by [2018, c. 104](#), § 3, effective August 23, 2018.

Annotations

Notes

Editor's Notes

§ 52:27D-123.10. Rules, regulations pertinent to playgrounds

The title to L. [2018, c. 104](#) designates the act as "Jake's Law."

Amendment Notes

2018 amendment, by Chapter 104, redesignated the former first through third sentences as a.; in a., in the second sentence, substituted "conform to the guidelines and criteria specified" for "meet any standard of care imposed by law on playground operators, and shall be those guidelines and criteria which are contained" and added "and shall also meet any standard of care imposed by law on playground operators" at the end, and added the last sentence; inserted b.; redesignated the former last sentence as c.; substituted "P.L.1999, c.50 (C.52:27D-123.9 et seq.)" for "this act" in c.; and made stylistic changes.

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N.J. Stat. § 52:27D-123.11

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§ 52:27D-123.11. Upgrading of playgrounds

a. All governmental entities operating playgrounds shall upgrade their playgrounds by replacement or improvement as necessary to satisfy the rules and regulations promulgated pursuant to this act to the extent State funds are made available specifically for that purpose through State bonds or other means, or within five years for surfacing and eight years for all other elements whichever comes first, after the effective date of those rules and regulations promulgated pursuant to [P.L.1999, c.50](#) ([C.52:27D-123.9](#) et seq.).

All private entities shall upgrade their playgrounds by replacement or improvement as necessary to satisfy the rules and regulations promulgated pursuant to this act within five years for surfacing, and within eight years for all other elements, following the effective date of those rules and regulations promulgated pursuant to [P.L.1999, c.50](#) ([C.52:27D-123.9](#) et seq.).

All nonprofit entities shall upgrade the surfacing of their playgrounds by replacement or improvement as necessary to satisfy the rules and regulations promulgated pursuant to this act, on or before five years following the effective date of those rules and regulations promulgated pursuant to [P.L.1999, c.50](#) ([C.52:27D-123.9](#) et seq.), and shall upgrade all other elements of their playgrounds to satisfy the rules and regulations promulgated pursuant to this act, no later than 15 years following the effective date of those rules and regulations promulgated pursuant to [P.L.1999, c.50](#) ([C.52:27D-123.9](#) et seq.), but shall upgrade playground equipment prior to that date if the equipment is replaced or reconstructed. This section shall not affect the liability or absence of liability of playground operators.

b. All newly constructed playgrounds built by a governmental entity, a nonprofit entity, or a private entity more than six months after the effective date of the rules and regulations promulgated pursuant to this act shall conform to the requirements of those rules and regulations.

History

L. [1999, c. 50](#), § 3, eff. Mar. 23, 1999.

Annotations

Research References & Practice Aids

Cross References:

Conformity to rules, regulations required for receipt of State funding, see [52:27D-123.12](#).

§ 52:27D-123.11. Upgrading of playgrounds

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§ 52:27D-123.12. Conformity to rules, regulations required for receipt of State funding

- a.** Except in connection with the upgrading of a playground as provided in subsection a. of section 3 of [P.L.1999, c.50 \(C.52:27D-123.11\)](#), after the effective date of the rules and regulations promulgated pursuant to this act, no State funding shall be available for the planning, development, or redevelopment of any playground, unless the playground, after completion of the State-funded project, will conform to the applicable rules and regulations promulgated pursuant to this act. If, however, State funds have been appropriated to, or allocated for, a playground project prior to the effective date of the regulations but the regulations become effective prior to the completion of the project, that funding shall be maintained, as long as the playground is altered to conform to the rules and regulations to the extent the alterations can be made without adding more than 15% to the project cost.
- b.** After the date by which an entity is required to conform its playground to satisfy the rules and regulations promulgated pursuant to this act, no State funding shall be available for the construction, operation, maintenance, or supervision of the playground unless the playground conforms to the applicable regulations adopted pursuant to this act.

History

L. [1999, c. 50](#), § 4, eff. Mar. 23, 1999.

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N.J. Stat. § 52:27D-123.13

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§ 52:27D-123.13. Automatic rain sensor, sprinkler, override irrigation cycle after adequate rainfall, required

a. An automatic lawn sprinkler system installed after September 8, 2000 shall be equipped with an operational automatic rain sensor or a smart sprinkler.

b. As used in this section:

“Automatic rain sensor” means a device or switch that will override the irrigation cycle of an automatic lawn sprinkler system when adequate rainfall has occurred.

“Smart sprinkler” means an Internet connected device that monitors the weather, soil moisture, and other conditions to calculate and automatically adjust the watering schedule of an automatic lawn sprinkler system.

History

L. [2000, c. 107](#), § 1, eff. Sept. 8, 2000; amended by [2023, c. 299](#), § 1, effective January 16, 2024.

Annotations

Notes

Amendment Notes

2023 amendment, by Chapter 299, rewrote the section.

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§ 52:27D-123.13a. Definitions

As used in sections 3 through 6 of [P.L.2023, c.299](#) ([C.52:27D-123.13b](#) through [52:27D-123.13e](#)):

“Automatic rain sensor” means a device or switch that will override the irrigation cycle of an automatic lawn sprinkler system when adequate rainfall has occurred.

“Common interest community” means a horizontal property regime, condominium, homeowner association, cooperative, or mutual housing corporation, in which some of the property, commonly known as “common elements” or “common areas,” are owned or controlled by the unit or association owners or members.

“Smart sprinkler” means an Internet connected device that monitors the weather, soil moisture, and other conditions to calculate and automatically adjust the watering schedule of an automatic lawn sprinkler system.

History

L. [2023, c. 299](#), § 2, effective January 16, 2024.

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§ 52:27D-123.13b. Real property, contract of sale, automatic lawn sprinkler system, operational automatic rain sensor, smart sprinkler, monies in escrow, required

- a. No later than three years after the effective date of [P.L.2023, c.299 \(C.52:27D-123.13a](#) et al.), every contract of sale of real property upon which an operable automatic lawn sprinkler system was installed on or prior to September 8, 2000 shall include a provision requiring, as a condition of the sale, the installation of an operational automatic rain sensor or a smart sprinkler or the deposit of monies in escrow in an amount sufficient to cover the costs of the installation of an operational automatic rain sensor or a smart sprinkler.
- b. Closing of title on the sale of any real property shall not occur unless documentation is provided demonstrating the installation of an operational automatic rain sensor or smart sprinkler or the deposit of monies in escrow as required by subsection a. of this section. At closing, the buyer and seller both shall certify in writing that the requirements of this subsection have been met.
- c. The provisions of this subsection shall not apply to the closing of title on the sale of property within a common interest community.
- d. No later than 60 days after the effective date of [P.L.2023, c.299 \(C.52:27D-123.13a](#) et al.), a person with a business permit issued by the New Jersey Board of Landscape Irrigation Contractors, pursuant to the "Landscape Irrigation Contractor Certificate Act of 1991," [P.L.1991, c.27 \(C.45:5AA-1](#) et seq.), engaging in the business of landscape irrigation on a property upon which an automatic lawn sprinkler system was installed on or prior to September 8, 2000, shall be required to provide notice, to all past and present clients, of the provisions of subsection a. of this section, requiring the installation, by such person, of an operational automatic rain sensor or a smart sprinkler, or the deposit of monies in escrow in an amount sufficient to cover the costs of the installation of an operational automatic rain sensor or a smart sprinkler.
- e. Failure to comply with the requirements of this section shall neither defeat nor impair the title conveyed.

History

L. [2023, c. 299](#), § 3, effective January 16, 2024.

N.J. Stat. § 52:27D-123.13c

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§ 52:27D-123.13c. Compliance, violations, fines

An owner who sells any property that is subject to, but that fails to comply with, the provisions of section 3 of [P.L.2023, c.299 \(C.52:27D-123.13b\)](#) shall be subject to a fine of not more than \$500 to be collected in a civil action by a summary proceeding pursuant to the "Penalty Enforcement Law of 1999," [P.L.1999, c.274 \(C.2A:58-10](#) et seq.). The local enforcing agency shall designate appropriate personnel to ensure compliance with the provisions of section 3 of [P.L.2023, c.299 \(C.52:27D-123.13b\)](#), and to facilitate the enforcement thereof and the appropriate imposition of any associated penalties for violations thereof, as set forth in this section.

History

L. [2023, c. 299](#), § 4, effective January 16, 2024.

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§ 52:27D-123.13d. Automatic lawn sprinkler system, common interest community, retrofitting, rain sensor, smart sprinkler

Within 24 months after the date of enactment of [P.L.2023, c.299](#) ([C.52:27D-123.13a](#) et al.), an automatic lawn sprinkler system installed on or prior to September 8, 2000 in a common interest community shall be retrofitted with an operational automatic rain sensor or smart sprinkler.

History

L. [2023, c. 299](#), § 5, effective January 16, 2024.

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N.J. Stat. § 52:27D-123.13e

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§ 52:27D-123.13e. Automatic lawn sprinkler system, commercial, retail, industrial property, retrofitting, rain sensor, smart sprinkler

Within 12 months after the date of enactment of [P.L.2023, c.299](#) ([C.52:27D-123.13a](#) et al.), an automatic lawn sprinkler system installed on or prior to September 8, 2000 on any commercial, retail, or industrial property shall be retrofitted with an operational automatic rain sensor or smart sprinkler.

History

L. [2023, c. 299](#), § 6, effective January 16, 2024.

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N.J. Stat. § 52:27D-123.14

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§ 52:27D-123.14. Dimensional requirements for certain elevators.

Notwithstanding any law, rule, or regulation to the contrary, within 180 days of the effective date of [P.L.2015, c.21](#), the commissioner shall modify the code pertaining to elevators to require that at least one elevator be of such an arrangement to accommodate an ambulance stretcher 24 inches by 84 inches in the horizontal, open position with not less than 5-inch radius corners when installed in any newly-constructed buildings four or more stories above grade, or four or more stories below grade plane, for which a construction permit is issued subsequent to the effective date of the regulations promulgated pursuant to this section. The commissioner shall require such elevators to bear markings to identify its designation for use by emergency medical services consistent with national standards for such markings. This act shall not apply to one-and two-family residences.

History

L. [2001, c. 263](#), § 1, eff. Dec. 11, 2001; amended by [2015, c. 21](#), § 1, effective February 6, 2015.

Annotations

Notes

Editor's Notes:

L. [2015, c. 21](#), as enacted, contains recommendations made by the Governor on conditional veto of the legislation (Assembly Bill No. 2479). The Governor recommended the addition of the last sentence of this section, excluding one- and two-family residences.

Amendment Notes

2015 amendment, by Chapter 21, rewrote the section, which formerly read: "Notwithstanding any other law or regulation to the contrary, the commissioner shall modify, within 180 days of the effective date of this act, the code pertaining to elevators to require that an elevator, when installed in any newly-constructed multiple dwelling for which a construction permit is issued subsequent to the effective date of the regulations promulgated to effectuate P.L. 2001, c. 263 (C. 52:27D-123.14), be of adequate dimensions to accommodate an ambulance cart that is 24 inches by 76 inches in the horizontal open position."

§ 52:27D-123.14. Dimensional requirements for certain elevators.

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N.J. Stat. § 52:27D-123.15

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§ 52:27D-123.15. Adaptability requirement; design standards

a. Any new construction for which an application for a construction permit has not been declared complete by the enforcing agency before the effective date of [P.L.2005, c.350 \(C.52:27D-311a](#) et al.) and for which credit is sought pursuant to P.L.1985, c. 222 ([C.52:27D-301](#) et al.) on or after the effective date of [P.L.2005, c.350 \(C.52:27D-311a](#) et al.) shall be adaptable; however, elevators shall not be required in any building or within any dwelling unit for the purposes of [P.L.2005, c.350 \(C.52:27D-311a](#) et al.). In buildings without elevator service, only ground floor dwelling units shall be required to be constructed to conform with the technical design standards of the barrier free subcode in order to be credited pursuant to P.L.1985, c.222 ([C.52:27D-301](#) et al.).

b. Notwithstanding the exemption for townhouse dwelling units in the barrier free subcode, the first floor of all townhouse dwelling units and of all other multifloor dwelling units for which credit is sought pursuant to P.L.1985, c. 222 ([C.52:27D-301](#) et al.) on or after the effective date of [P.L.2005, c.350 \(C.52:27D-311a](#) et al.) and for which an application for a construction permit has not been declared complete by the enforcing agency pursuant to [P.L.2005, c.350 \(C.52:27D-311a](#) et al.), shall be subject to the technical design standards of the barrier free subcode and shall include the following features:

- (1) an adaptable entrance to the dwelling unit;
- (2) an adaptable full service bathroom on the first floor;
- (3) an adaptable kitchen on the first floor;
- (4) an accessible interior route of travel; and
- (5) an adaptable room with a door or a casing where a door can be installed which may be used as a bedroom on the first floor.

c.

(1) Full compliance with the requirements of this section shall not be required where an entity can demonstrate that it is site impracticable to meet the requirements. Full compliance shall be considered site impracticable only in those rare circumstances when the unique characteristics of terrain prevent the incorporation of accessibility features.

(2) If full compliance with this section would be site impracticable, compliance with this section for any portion of the dwelling shall be required to the extent that it is not site impracticable.

d. In the case of a unit or units which are constructed with an adaptable entrance pursuant to subsection c. of this section, upon the request of a disabled person who is purchasing or will reside in the dwelling unit, an accessible entrance shall be installed. Additionally, the builder of the unit or units shall deposit sufficient funds to adapt 10 percent of the affordable units in the project which have not been constructed with accessible entrances with the municipality in which the units are located, for deposit into the municipal affordable housing trust fund. These funds shall be available for the use of the municipality for the purpose

§ 52:27D-123.15. Adaptability requirement; design standards

of making the adaptable entrance of any such affordable unit accessible when requested to do so by a person with a disability who occupies or intends to occupy the unit and requires an accessible entrance.

For the purposes of this section:

“Adaptable,” as used with regard to an entrance, means that the plans for the unit include a feasible building plan to adapt the entrance so as to make the unit accessible.

“Disabled person” means “disabled person” as defined in section 4 of P.L.1985, c.222 (C.52:27D-304).

“Ground floor” means the first floor with a dwelling unit or portion of a dwelling unit, regardless of whether that floor is at grade. A building may have more than one ground floor.

“Site impracticable” means having the characteristic of “site impracticability” as set forth in [section 100.205\(a\) of title 24, Code of Federal Regulations](#).

History

L. [2005, c. 350](#), § 5, eff. Oct. 1, 2006.

Annotations

Notes

Effective Dates:

Section 7 of L. [2005, c. 350](#) provides: “This act shall take effect on the first day of the ninth month next following enactment, except that the commissioner may take such immediate action as necessary in order to effectuate the provisions of [P.L.2005, c.350](#) (C.52:27D-311a et al.).” Chapter 350, L. 2005, was approved on January 12, 2006.

Research References & Practice Aids

Cross References:

Definitions, see [52:27D-304](#).

Duties of council, see [52:27D-307](#).

Adaptability requirement; “new construction” defined, see [52:27D-311a](#).

Administrative Code:

[N.J.A.C. 5:43-2.4](#) (2013), CHAPTER NEIGHBORHOOD PRESERVATION BALANCED HOUSING PROGRAM, Eligibility requirements.

N.J. Stat. § 52:27D-123.16

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§ 52:27D-123.16. Rules, regulations relative to home elevations

- a. The Department of Community Affairs shall promulgate rules and regulations setting forth standards, methods, procedures and other requirements that must be followed in performing home elevations. A home elevation contractor, as defined in section 2 of [P.L.2004, c.16 \(C.56:8-137\)](#), shall comply with the standards, methods, procedures and any other requirements for home elevation projects as specified in rules and regulations promulgated by the Department of Community Affairs.
- b. No home elevation contractor shall perform a home elevation unless the contractor or a person the contractor employs has a minimum of five years of experience in home elevation. For the purposes of this subsection, experience in home elevation shall include both experience in working directly on home elevation projects and training in the operation of home elevation equipment.
- c. At the time the home elevation contractor applies for a permit to perform a home elevation, the home elevation contractor shall certify that the home elevation contractor is in compliance with [P.L.2014, c.34 \(C.56:8-138.2\)](#) et al.) and any regulations promulgated thereunder, which certification shall be submitted with the permit application in a form prescribed by the Department of Community Affairs.
- d. Notwithstanding the provisions of the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.) to the contrary, the Division of Codes and Standards in the Department of Community Affairs may adopt immediately upon filing with the Office of Administrative Law any rules and regulations deemed necessary to implement the provisions of subsection a. of this section, which shall be effective for a period not to exceed 270 days following the date of enactment of [P.L.2014, c.34 \(C.56:8-138.2\)](#) et al.), and may thereafter be amended, adopted, or readopted, by the division in accordance with the requirements of the “Administrative Procedure Act.”

History

L. [2014, c. 34](#), § 2, eff. Oct. 1, 2014.

Annotations

Notes

Effective Dates:

Section 5 of L. [2014, c. 34](#) provides: “This act shall take effect on the first day of the second month after the date of enactment, but the State may take such anticipatory administrative action in advance thereof as shall be necessary for the implementation of this act.” Chapter 34, L. 2014, was approved on Aug. 15, 2014.

§ 52:27D-123.16. Rules, regulations relative to home elevations

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N.J. Stat. § 52:27D-123.17

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§ 52:27D-123.17. Rules, regulations

On or before the first day of the seventh month next following the enactment of [P.L.2019, c.490 \(C.40:55D-66.17](#) et al.), the Commissioner of Community Affairs shall promulgate rules and regulations, pursuant to the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), or publish a regulatory guidance document, pursuant to section 1 of [P.L.2011, c.215 \(C.52:14B-3a\)](#), or both, in order to provide construction code officials, developers, and prospective owners and occupants with enhanced technical assistance on acceptable approaches to constructing and siting tiny homes. The rules and regulations or regulatory guidance document shall include, but not be limited to, the following:

- a. the permitted approaches to tiny home construction in on-site construction projects governed under the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.);
- b. the permitted approaches to pre-manufacturing tiny homes, including the construction of industrialized/modular buildings, regulated pursuant to [P.L.1991, c.457 \(C.32:33-1](#) et seq.), as tiny homes; and
- c. the dimensional requirements for various types of rooms and residential structures, such as bedrooms and staircases, and an explanation of any residential uses that may be precluded by the dimensional requirements.

History

L. [2019, c. 490](#), § 2, effective January 21, 2020.

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[N.J. Stat. § 52:27D-123.18](#)

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§ 52:27D-123.18. Rules, regulations

- a. The Commissioner of Community Affairs shall adopt, pursuant to the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.), a list of approved uses, and use conditions or use limits, if applicable, for substitutes, as defined pursuant to section 1 of [P.L.2019, c.507](#) ([C.26:2C-60](#)).
- b. Each substitute, use, use condition, or use limit in the list adopted pursuant to this section shall be:
- (1) approved under the “Significant New Alternatives Policy” program in the United States Environmental Protection Agency pursuant to [42 U.S.C. § 7671k](#); or
 - (2) approved by the Department of Environmental Protection pursuant to section 2 of [P.L.2019, c.507](#) ([C.26:2C-61](#)).
- c. Notwithstanding the requirements set forth in paragraphs (1) and (2) of subsection b. of this section, for the State Uniform Construction Code, as applicable for the period from the effective date of [P.L.2023, c.178](#) through the adoption of a subsequent publication of a relevant subcode of the State Uniform Construction Code, or December 31, 2026, whichever occurs first, the list of approved uses, and use conditions or use limits, if applicable, for substitutes, pursuant to subsection a. of this section, shall not prohibit, and no provision of the State building code or local code for that period may prohibit, or otherwise limit the use of a refrigerant designated as acceptable by the United States Environmental Protection Agency pursuant to and in accordance with [42 U.S.C. § 7671k](#), provided that the equipment using the refrigerant is listed and installed in accordance with the safety standards and use conditions published and imposed pursuant to [42 U.S.C. § 7671k](#).

History

L. [2019, c. 507](#), § 9, effective January 21, 2020; amended by [2023, c. 178](#), § 1, effective November 20, 2023.

Annotations

Notes

Amendment Notes

2023 amendment, by Chapter 178, deleted “and approved by the Department of Environmental Protection” following “42 U.S.C. s.7671k” in b.(1); and added c.

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N.J. Stat. § 52:27D-123.19

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§ 52:27D-123.19. Solar-ready building, warehouses

- a. Any newly constructed warehouse for which an application for a construction permit has not been declared complete by the enforcing agency before July 1, 2022, shall be a solar-ready building.
- b. The Department of Community Affairs shall adopt, pursuant to section 5 of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-123](#)) and the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), rules and regulations establishing standards for the design and construction of solar-ready buildings. The rules and regulations shall incorporate the provisions of the 2018 International Energy Conservation Code, Appendix CA, and any successor model code, concerning solar-ready zones.
- c. For the purposes of this section:

“Solar-ready building” means a building that includes a solar-ready zone.

“Solar-ready zone” means a section of a roof or building overhang designated and reserved for the future installation of a solar photovoltaic or solar thermal system, which is at less 40 percent of the roof area calculated as the horizontally projected areas minus the area covered by skylights, occupied roof decks, vegetative roof areas, and mandatory access or set back areas required by the State Uniform Construction Code, or as otherwise provided in the 2018 International Energy Conservation Code, Appendix CA, and any successor model code, concerning solar-ready zones.

“Warehouse” means any building, room, structure, or facility of at least 100,000 square feet used primarily for the storage of goods intended for sale.

History

L. [2021, c. 290](#), § 1, effective November 8, 2021.

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[N.J. Stat. § 52:27D-123.20](#)

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§ 52:27D-123.20. Newly constructed townhouses, automatic fire sprinkling system installation; rules, regulations

a. Except as provided in subsection b. of this section, a newly constructed townhouse subject to the one- and two-family dwelling subcode, adopted by the Commissioner of Community Affairs pursuant to section 5 of P.L.1975, c.217 ([C.52:27D-123](#)), adopted as [N.J.A.C.5:23-3.21](#), or succeeding subcode, for which an application for a construction permit has not been declared complete by the enforcing agency before the first day of the 13th month next following the date of enactment of [P.L.2023, c.265](#) ([C.52:27D-123.20](#)), shall be installed with an automatic fire sprinkler system.

b. A newly constructed townhouse subject to the one- and two-family dwelling subcode, adopted by the Commissioner of Community Affairs pursuant to section 5 of P.L.1975, c.217 ([C.52:27D-123](#)), adopted as [N.J.A.C.5:23-3.21](#), or succeeding subcode, shall not be subject to the requirement of subsection a. of this section if an application for a construction permit or an application for development has been submitted to a State, county, or municipal agency prior to the date of enactment of [P.L.2024, c.42](#).

c. On or before the first day of the 12th month next following the date of enactment of [P.L.2023, c.265](#) ([C.52:27D-123.20](#)), the Commissioner of Community Affairs shall adopt, pursuant to section 5 of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-123](#)) and the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), rules and regulations to amend and supplement, as necessary, the one- and two-family dwelling subcode, and any other necessary components of the State Uniform Construction Code, to establish standards for the design and construction of townhouses to comply with [P.L.2023, c.265](#) ([C.52:27D-123.20](#)). The rules and regulations shall incorporate the provisions of the 2021 International Residential Code, Section R313.1, or any successor model code, for the installation of an automatic fire sprinkler systems.

d. As used in this section:

“Automatic fire sprinkler system” means an integrated system of underground and overhead piping designed in accordance with fire protection engineering standards and shall include a suitable water supply. The portion of the system above the ground is a network of specially sized or hydraulically designed piping installed in a structure or area, generally overhead, and to which automatic sprinklers are connected in a systematic pattern. The system is generally activated by heat from a fire and discharges water over the fire area.

“Townhouse” means a single-family dwelling unit constructed in a group of three or more attached units in which each unit extends from foundation to roof and with a yard or public way on not less than two sides.

History

L. [2023, c. 265](#), § 1, effective August 1, 2024; amended by [2024, c. 42](#), § 1, effective July 10, 2024.

§ 52:27D-123.20. Newly constructed townhouses, automatic fire sprinkling system installation; rules, regulations

Annotations

Notes

Effective Dates

Section 2 of L. [2023, c. 265](#) provides: “This act shall take effect on the first day of the seventh month next following the date of enactment, except that the Commissioner of Community Affairs may take anticipatory action necessary to implement the provisions of [P.L.2023, c.265 \(C.52:27D-123.20\)](#).” Chapter 265, L. 2023, was approved on Jan. 16, 2024.

Amendment Notes

2024 amendment, by Chapter 42, in a., added “Except as provided in subsection b. of this section” at the beginning and substituted “13th month” for “seventh month”; added b.; redesignated former b. and c. as c. and d.; substituted “12th month” for “fifth month” in the first sentence of c.; and made a related change.

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[N.J. Stat. § 52:27D-124](#)

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Notice

 This section has more than one version with varying effective dates.

§ 52:27D-124. Powers of the commissioner [Effective until date stated in L. 2022, c. 139, § 5]

The commissioner shall have all the powers necessary or convenient to effectuate the purposes of this act, including, but not limited to, the following powers in addition to all others granted by this act:

- a.** To adopt, amend and repeal, after consultation with the code advisory board, rules: (1) relating to the administration and enforcement of this act and (2) the qualifications or licensing, or both, of all persons employed by enforcing agencies of the State to enforce this act or the code, except that, plumbing inspectors shall be subject to the rules adopted by the commissioner only insofar as such rules are compatible with such rules and regulations, regarding health and plumbing for public and private buildings, as may be promulgated by the Public Health Council in accordance with Title 26 of the Revised Statutes.
- b.** To enter into agreements with federal and State of New Jersey agencies, after consultation with the code advisory board, to provide insofar as practicable (1) single-agency review of construction plans and inspection of construction and (2) intergovernmental acceptance of such review and inspection to avoid unnecessary duplication of effort and fees. The commissioner shall have the power to enter into such agreements although the federal standards are not identical with State standards; provided that the same basic objectives are met. The commissioner shall have the power through such agreements to bind the State of New Jersey and all governmental entities deriving authority therefrom.
- c.** To take testimony and hold hearings relating to any aspect of or matter relating to the administration or enforcement of this act, including but not limited to prospective interpretation of the code so as to resolve inconsistent or conflicting code interpretations, and, in connection therewith, issue subpoena to compel the attendance of witnesses and the production of evidence. The commissioner may designate one or more hearing examiners to hold public hearings and report on such hearings to the commissioner.
- d.** To encourage, support or conduct, after consultation with the code advisory board, educational and training programs for employees, agents and inspectors of enforcing agencies, either through the Department of Community Affairs or in cooperation with other departments of State government, enforcing agencies, educational institutions, or associations of code officials.

§ 52:27D-124. Powers of the commissioner [Effective until date stated in L. 2022, c. 139, § 5]

- e. To study the effect of this act and the code to ascertain their effect upon the cost of building construction and maintenance, and the effectiveness of their provisions for insuring the health, safety, and welfare of the people of the State of New Jersey.
- f. To make, establish and amend, after consultation with the code advisory board, such rules as may be necessary, desirable or proper to carry out his powers and duties under this act.
- g. To adopt, amend, and repeal rules and regulations providing for the charging of and setting the amount of fees for the following code enforcement services, licenses or approvals performed or issued by the department, pursuant to the "State Uniform Construction Code Act," P.L.1975, c.217 ([C.52:27D-119](#) et seq.):
 - (1) Plan review, construction permits, certificates of occupancy, demolition permits, moving of building permits, elevator permits and sign permits; and
 - (2) Review of applications for and the issuance of licenses certifying an individual's qualifications to act as a construction code official, subcode official or assistant under this act.
 - (3) (Deleted by amendment, P.L.1983, c.338).
- h. To adopt, amend and repeal rules and regulations providing for the charging of and setting the amount of construction permit surcharge fees to be collected by the enforcing agency and remitted to the department to support those activities which may be undertaken with moneys credited to the Uniform Construction Code Revolving Fund.
- i. To adopt, amend and repeal rules and regulations providing for:
 - (1) Setting the amount of and the charging of fees to be paid to the department by a private agency for the review of applications for and the issuance of approvals authorizing a private agency to act as an on-site inspection and plan review agency or an in-plant inspection agency;
 - (2) (Deleted by amendment, [P.L.2005, c.212](#)).
 - (3) (Deleted by amendment, [P.L.2005, c.212](#)).
- j. To enforce and administer the provisions of the "State Uniform Construction Code Act," P.L.1975, c.217 ([C.52:27D-119](#) et seq.) and the code promulgated thereunder, and to prosecute or cause to be prosecuted violators of the provisions of that act or the code promulgated thereunder in administrative hearings and in civil proceedings in State and local courts.
- k. To monitor the compliance of local enforcing agencies with the provisions of the "State Uniform Construction Code Act," P.L.1975, c.217 ([C.52:27D-119](#) et seq.), to order corrective action as may be necessary where a local enforcing agency is found to be failing to carry out its responsibilities under that act, to supplant or replace the local enforcing agency for a specific project, and to order it dissolved and replaced by the department where the local enforcing agency repeatedly or habitually fails to enforce the provisions of the "State Uniform Construction Code Act."
- l. To adopt, amend, and repeal rules and regulations implementing the provisions of [P.L.1999, c.15](#), [P.L.2003, c.44](#), and section 1 of [P.L.2015, c.146](#) ([C.52:27D-123f](#)) concerning the installation and maintenance of carbon monoxide sensors.

History

L. 1975, c. 217, § 6; amended 1979, c. 121, § 1; 1983, c. 338; 1985, c. 21; [1993, c. 47](#); [1999, c. 15](#), § 4, eff. Feb. 8, 1999; [2003, c. 44](#), § 2, eff. Apr. 16, 2003; [2005, c. 212](#), § 1, eff. Nov. 1, 2005; [2015, c. 146](#), § 2, effective November 9, 2015; [2022, c. 139](#), § 1.

Notes

Editor's Notes:

The title to L. [2015, c. 146](#) designates the act as “Korman and Park’s Law.”

Effective Dates:

Section 5 of L. [2005, c. 212](#) provides: “This act shall take effect on the first day of the third month next following enactment.” Chapter 212, L. 2005, was approved on August 29, 2005.

Amendment Notes

2015 amendment, by Chapter 146, substituted “‘State Uniform Construction Code Act,’ P.L.1975, c.217 (C.52:27D-119 et seq.)” for “State Uniform Construction Code Act” in the introductory language of g.; inserted “and section 1 of P.L.2015, c.146 (C.52:27D-123f)” in l.; and made related and stylistic changes.

2022 amendment, by Chapter 139 substituted “P.L.1975, c.217 (C.52:27D-119 et seq.)” for “this act” twice in the introductory language; substituted “P.L.1975, c.217 (C.52:27D-119 et seq.)” for “this act” twice in a.; in the first sentence of c., substituted “P.L.1975, c.217 (C.52:27D-119 et seq.)” for “this act” and “subpoenas” for “subpena”; substituted “P.L.1975, c.217 (C.52:27D-119 et seq.)” for “this act” in e. and f.; substituted “P.L.1975, c.217 (C.52:27D-119 et seq.)” for “this act” in g.(2); added “a private on-site inspection agency, including a supplemental private on-site inspection agency” in i.(1); rewrote k.; and made related changes.

CASE NOTES

Administrative Law: Agency Rulemaking: General Overview

Administrative Law: Judicial Review: Standards of Review: General Overview

Administrative Law: Separation of Powers: Constitutional Controls: General Overview

Civil Procedure: Summary Judgment: Standards: General Overview

Governments: State & Territorial Governments: Licenses

Public Contracts Law: Types of Contracts: Local Contracts Generally

Administrative Law: Agency Rulemaking: General Overview

Commissioner of Community Affairs had the authority under *N.J. Stat. Ann. § 52:27D-124(i)* to issue a cease and desist order, prohibiting the township from selecting a private inspection agency for electrical subcode services under the Uniform Construction Code Act. [In re Cherry Hill, 217 N.J. Super. 140, 524 A.2d 1327, 1987 N.J. Super. LEXIS 1151 \(App.Div. 1987\).](#)

Administrative Law: Judicial Review: Standards of Review: General Overview

N.J. Stat. Ann. § 52:27D-124(g) did not apply to an appeal from an administrative agency, but did regulate those things that women are supposed to do it. [Edison v. Coleman, 239 N.J. Super. 301, 571 A.2d 312, 1990 N.J. Super. LEXIS 79 \(App.Div. 1990\).](#)

§ 52:27D-124. Powers of the commissioner [Effective until date stated in L. 2022, c. 139, § 5]

Administrative Law: Separation of Powers: Constitutional Controls: General Overview

State agency's issuance of certificate of occupancy was affirmed because *N.J. Stat. Ann. § 52:27D-124(k)* gave the state agency authority to issue the certificate after the township failed to carry out its responsibility of issuing the certificate. [*In re Department of Community Affairs Order of March 15 etc.*, 232 N.J. Super. 136, 556 A.2d 807, 1989 N.J. Super. LEXIS 140 \(App.Div. 1989\)](#).

Civil Procedure: Summary Judgment: Standards: General Overview

Summary judgment should have been entered in favor of a builder, rather than in favor of the township that cited the builder for building code violations years after the structures had been finished and received certificates of occupancy; local officials lacked jurisdiction over that matter at that point, and should properly have notified the property owners, who would then have been free to sue the builder. [*DKM Residential Properties Corp. v. Township of Montgomery*, 363 N.J. Super. 80, 831 A.2d 110, 2003 N.J. Super. LEXIS 288 \(App.Div. 2003\)](#), rev'd, [*182 N.J. 296, 865 A.2d 649, 2005 N.J. LEXIS 3 \(N.J. 2005\)*](#).

Governments: State & Territorial Governments: Licenses

The commissioner of the state department of community affairs was authorized to license plumbing inspectors because the excepting language in *N.J. Stat. Ann. § 52:27D-124(a)(2)*, which addressed plumbing regulations of the Public Health Council, had no application to licensing or educational requirements. [*New Jersey State Plumbing Inspectors Asso. v. Sheehan*, 163 N.J. Super. 398, 394 A.2d 1244, 1978 N.J. Super. LEXIS 1145 \(App.Div. 1978\)](#), certif. denied, [*79 N.J. 484, 401 A.2d 239, 1979 N.J. LEXIS 2184 \(N.J. 1979\)*](#).

Public Contracts Law: Types of Contracts: Local Contracts Generally

Commissioner of Community Affairs had the authority under *N.J. Stat. Ann. § 52:27D-124(i)* to issue a cease and desist order, prohibiting the township from selecting a private inspection agency for electrical subcode services under the Uniform Construction Code Act. [*In re Cherry Hill*, 217 N.J. Super. 140, 524 A.2d 1327, 1987 N.J. Super. LEXIS 1151 \(App.Div. 1987\)](#).

Research References & Practice Aids

Cross References:

Substitute administration and enforcement, see [52:27D-128](#).

Violations in life hazard use as willful or grossly negligent or of previously issued order and constituting clear danger to human life; order for continued vacation and closing; reconsideration hearing, see [52:27D-209](#).

Administrative Code:

[N.J.A.C. 5:17](#) (2013), CHAPTER LEAD HAZARD EVALUATION AND ABATEMENT CODE, 5, Chapter 17 — Chapter Notes.

[N.J.A.C. 5:23-3.13](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Code change proposals.

[N.J.A.C. 5:23-9.3](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Interpretation: Recreational park trailers.

[N.J.A.C. 5:23A-1.1](#) (2013), CHAPTER CONSTRUCTION BOARDS OF APPEALS, Title; authority; scope; intent.

§ 52:27D-124. Powers of the commissioner [Effective until date stated in L. 2022, c. 139, § 5]

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[N.J. Stat. § 52:27D-124](#)

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Notice

 This section has more than one version with varying effective dates.

§ 52:27D-124. Powers of the commissioner [Effective on date stated in L. 2022, c. 139, § 5]

The commissioner shall have all the powers necessary or convenient to effectuate the purposes of P.L.1975, c.217 ([C.52:27D-119](#) et seq.), including, but not limited to, the following powers in addition to all others granted by P.L.1975, c.217 ([C.52:27D-119](#) et seq.):

- a.** To adopt, amend and repeal, after consultation with the code advisory board, rules: (1) relating to the administration and enforcement of P.L.1975, c.217 ([C.52:27D-119](#) et seq.) and (2) the qualifications or licensing, or both, of all persons employed by enforcing agencies of the State to enforce P.L.1975, c.217 ([C.52:27D-119](#) et seq.) or the code, except that, plumbing inspectors shall be subject to the rules adopted by the commissioner only insofar as such rules are compatible with such rules and regulations, regarding health and plumbing for public and private buildings, as may be promulgated by the Public Health Council in accordance with Title 26 of the Revised Statutes.
- b.** To enter into agreements with federal and State of New Jersey agencies, after consultation with the code advisory board, to provide insofar as practicable (1) single-agency review of construction plans and inspection of construction and (2) intergovernmental acceptance of such review and inspection to avoid unnecessary duplication of effort and fees. The commissioner shall have the power to enter into such agreements although the federal standards are not identical with State standards; provided that the same basic objectives are met. The commissioner shall have the power through such agreements to bind the State of New Jersey and all governmental entities deriving authority therefrom.
- c.** To take testimony and hold hearings relating to any aspect of or matter relating to the administration or enforcement of P.L.1975, c.217 ([C.52:27D-119](#) et seq.), including but not limited to prospective interpretation of the code so as to resolve inconsistent or conflicting code interpretations, and, in connection therewith, issue subpoenas to compel the attendance of witnesses and the production of evidence. The commissioner may designate one or more hearing examiners to hold public hearings and report on such hearings to the commissioner.
- d.** To encourage, support or conduct, after consultation with the code advisory board, educational and training programs for employees, agents and inspectors of enforcing agencies, either through the Department of Community Affairs or in cooperation with other departments of State government, enforcing agencies, educational institutions, or associations of code officials.

§ 52:27D-124. Powers of the commissioner [Effective on date stated in L. 2022, c. 139, § 5]

- e. To study the effect of P.L.1975, c.217 ([C.52:27D-119](#) et seq.) and the code to ascertain their effect upon the cost of building construction and maintenance, and the effectiveness of their provisions for insuring the health, safety, and welfare of the people of the State of New Jersey.
- f. To make, establish and amend, after consultation with the code advisory board, such rules as may be necessary, desirable or proper to carry out his powers and duties under P.L.1975, c.217 ([C.52:27D-119](#) et seq.).
- g. To adopt, amend, and repeal rules and regulations providing for the charging of and setting the amount of fees for the following code enforcement services, licenses or approvals performed or issued by the department, pursuant to the "State Uniform Construction Code Act," P.L.1975, c.217 ([C.52:27D-119](#) et seq.):
 - (1) Plan review, construction permits, certificates of occupancy, demolition permits, moving of building permits, elevator permits and sign permits; and
 - (2) Review of applications for and the issuance of licenses certifying an individual's qualifications to act as a construction code official, subcode official or assistant under P.L.1975, c.217 ([C.52:27D-119](#) et seq.).
 - (3) (Deleted by amendment, P.L.1983, c.338)
- h. To adopt, amend and repeal rules and regulations providing for the charging of and setting the amount of construction permit surcharge fees to be collected by the enforcing agency and remitted to the department to support those activities which may be undertaken with moneys credited to the Uniform Construction Code Revolving Fund.
- i. To adopt, amend and repeal rules and regulations providing for:
 - (1) Setting the amount of and the charging of fees to be paid to the department by a private agency for the review of applications for and the issuance of approvals authorizing a private agency to act as an on-site inspection and plan review agency, a private on-site inspection agency, including a supplemental private on-site inspection agency, or an in-plant inspection agency;
 - (2) (Deleted by amendment, [P.L.2005, c.212](#))
 - (3) (Deleted by amendment, [P.L.2005, c.212](#))
- j. To enforce and administer the provisions of the "State Uniform Construction Code Act," P.L.1975, c.217 ([C.52:27D-119](#) et seq.) and the code promulgated thereunder, and to prosecute or cause to be prosecuted violators of the provisions of that act or the code promulgated thereunder in administrative hearings and in civil proceedings in State and local courts.
- k. To monitor the compliance of local enforcing agencies with the provisions of the "State Uniform Construction Code Act," P.L.1975, c.217 ([C.52:27D-119](#) et seq.), to order corrective action, or issue penalties, as may be necessary where a local enforcing agency is found to be failing to carry out its responsibilities under that act, to supplant or replace the local enforcing agency for a specific project, and to order it dissolved and replaced by the department where the local enforcing agency repeatedly or habitually fails to enforce the provisions of the "State Uniform Construction Code Act." This shall include the power to compel an enforcing agency to, within 15 business days, notify the department of any instance where the enforcing agency is unable to meet a deadline or other obligation imposed by law or regulation, and the power to order corrective action or issue penalties as may be necessary where an enforcing agency is unable to meet its obligations under P.L.1975, c.217 ([C.52:27D-119](#) et seq.).
- l. To adopt, amend, and repeal rules and regulations implementing the provisions of [P.L.1999, c.15](#), [P.L.2003, c.44](#), and section 1 of [P.L.2015, c.146](#) ([C.52:27D-123f](#)) concerning the installation and maintenance of carbon monoxide sensors.

History

L. 1975, c. 217, § 6; amended 1979, c. 121, § 1; 1983, c. 338; 1985, c. 21; [1993, c. 47](#); [1999, c. 15](#), § 4, eff. Feb. 8, 1999; [2003, c. 44](#), § 2, eff. Apr. 16, 2003; [2005, c. 212](#), § 1, eff. Nov. 1, 2005; [2015, c. 146](#), § 2, effective November 9, 2015; [2022, c. 139](#), § 1.

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[N.J. Stat. § 52:27D-124a](#)

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§ 52:27D-124a. Federal manufactured home safety and construction standards; administration and enforcement; reports

In accordance with the provisions of subsection b. of section 6 of P.L.1975, c. 217 ([C. 52:27D-124b.](#)) and with this act, the commissioner is authorized to administer and enforce federal manufactured home safety and construction standards pursuant to the “National Manufactured Home Construction and Safety Standards Act of 1974,” Title VI of [Pub.L. 93-383](#) ([42 U.S.C. 5401](#) et seq.) and is empowered to do all things necessary to comply with that act and any regulations promulgated by the Secretary of the United States Department of Housing and Urban Development pursuant thereto. The commissioner shall make such reports to the secretary in such form and containing such information as the secretary may from time to time require.

History

L. 1981, c. 494, 1, eff. Jan. 12, 1982.

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N.J. Stat. § 52:27D-124b

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§ 52:27D-124b. Standards where no federal standard established; enforcement

Whenever the commissioner shall deem it necessary to establish standards concerning any manufactured or mobile home construction or safety issue with respect to which no federal standard has been established, such standards shall be those of a nationally recognized code or standards writing organization, and the commissioner shall have all of the powers of enforcement provided under the “State Uniform Construction Code Act,” P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.).

History

L. 1981, c. 494, 2, eff. Jan. 12, 1982.

Annotations

Research References & Practice Aids

Cross References:

Federal manufactured home safety and construction standards; administration and enforcement; reports, see [52:27D-124a](#).

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N.J. Stat. § 52:27D-124c

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§ 52:27D-124c. Inspection of factory, warehouse, or place of sale; monitoring inspection fee

The commissioner, by his authorized representatives, may enter, at reasonable times, any factory, warehouse or establishment in which manufactured homes are manufactured, stored or held for sale, for the purpose of ascertaining whether the requirements of the federal manufactured home construction and safety standards and the regulations of the commissioner have been and are being met.

The commissioner shall establish a monitoring inspection fee in an amount established by the secretary, to be paid to the secretary by each manufacturer for each manufactured home manufactured in New Jersey.

History

L. 1981, c. 494, 3, eff. Jan. 12, 1982.

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N.J. Stat. § 52:27D-124d

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§ 52:27D-124d. Manufacturers, distributors and dealers; records, reports and provision of information; inspection

Each manufacturer, distributor, and dealer of manufactured homes shall establish and maintain such records, make such reports, and provide such information as the secretary may require to determine whether the manufacturer, distributor or dealer has acted or is acting in compliance with the “National Manufactured Home Construction and Safety Standards Act of 1974” and shall, upon request of a person duly designated by the secretary, permit such person to inspect appropriate books, papers, records and documents relevant to determining whether the manufacturer, distributor or dealer has acted or is acting in compliance with that act.

History

L. 1981, c. 494, 4, eff. Jan. 12, 1982.

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N.J. Stat. § 52:27D-124e

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§ 52:27D-124e. Violations; penalties; enforcement

a. Any person who violates any of the provisions of this section shall be liable for a civil penalty not to exceed \$1,000.00 for each violation; to be payable to the commissioner. Each violation shall constitute a separate violation with respect to each manufactured home, except that the maximum penalty shall not exceed \$1,000,000.00 for any related series of violations occurring within 1 year from the date of the first violation. Any person purposely or knowingly violating the provisions of this section in any manner which threatens the health or safety of any purchaser, shall be guilty of a crime of the fourth degree and shall, in addition to a civil penalty, be subject to a fine not to exceed \$1,000.00 or imprisonment for a term not to exceed 1 year, or both. No person shall:

(1) Manufacture for sale, lease, sell, offer for sale, or lease, or introduce or deliver, or import into this State, any manufactured home manufactured on or after the effective date of any applicable federal manufactured home construction and safety standard which does not comply with such standard.

(2) Fail or refuse to permit access to or copying of records, or entry or inspection to ascertain compliance with federal standards as required by section 3 of this act or to make reports or provide information as required by section 4 of this act, or any rules or regulations adopted by the commissioner pursuant thereto.

(3) Fail to furnish notification of any defect as required by [Pub.L. 93-383](#), 615 ([42 U.S.C. 5414](#)).

(4) Fail to issue a certification required by [Pub.L. 93-383](#), 616 ([42 U.S.C. 5415](#)); or issue such a certification if such person in the exercise of due care had reason to know that such certification is false or misleading in a material respect.

(5) Fail to establish and maintain such records, make such reports, and provide such information as the commissioner may reasonably require to enable him to determine whether there is compliance with the “National Manufactured Home Construction and Safety Standards Act of 1974” , or fail to permit, upon request of a person duly authorized by the commissioner, inspection of appropriate books, papers, records and documents relative to determining whether a manufacturer, distributor or dealer has acted or is acting in compliance with the “National Manufactured Home Construction and Safety Standards Act of 1974.”

(6) Issue a certification pursuant to [Pub.L. 95-128](#), 902(a) ([42 U.S.C. 5403\(h\)](#)), if such person in the exercise of due care has reason to know that such certification is false or misleading in a material respect.

b. When a civil penalty levied by the commissioner pursuant to subsection a. of this section, has not been satisfied within 30 days of its levy, the penalty may be sued for, and recovered by and in the name of the commissioner, by a summary proceeding under “the penalty enforcement law” ([N.J.S. 2A:58-1](#) et seq.) in the Superior Court.

c. Paragraph (1) of subsection a. hereof shall not apply to the sale or the offer for sale of any manufactured or mobile home after the first good faith purchase for purposes other than resale, or to any person who

§ 52:27D-124e. Violations; penalties; enforcement

establishes that he did not have reason to know, in the exercise of due care, that the manufactured or mobile home is not in conformity with applicable federal standards, or to any person who holds a certificate issued by the manufacturer or importer of the manufactured or mobile home to the effect that the manufactured or mobile home conforms to all applicable federal standards, unless the person knows that the home does not so conform.

History

L. 1981, c. 494, 5, eff. Jan. 12, 1982.

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§ 52:27D-124f. Rules and regulations

The commissioner may adopt such rules and regulations as he may deem necessary or appropriate in order to implement the provisions of this act.

History

L. 1981, c. 494, 6, eff. Jan. 12, 1982.

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N.J. Stat. § 52:27D-124g

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§ 52:27D-124g. Person aggrieved by ruling, action, order or notice; right to hearing

Any person aggrieved by any ruling, action, order, or notice of the commissioner pursuant to this act shall be entitled to a hearing pursuant to the “Administrative Procedure Act” (P.L.1968, c. 410, [C. 52:14B-1](#) et seq.). The application for the hearing must be filed within 15 days of the receipt by the applicant thereof of notice of the ruling, action, order or notice complained of.

History

L. 1981, c. 494, 7, eff. Jan. 12, 1982.

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N.J. Stat. § 52:27D-124.1

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§ 52:27D-124.1. Uniform construction code revolving fund

There is established in the Department of Community Affairs, a nonlapsing, revolving fund to be known as the Uniform Construction Code Revolving Fund. All surcharge fees levied on new construction pursuant to section 6 of P.L.1975, c. 217, such moneys as may be appropriated by the State or Federal Government for inclusion in the fund, and such revenues as may be generated by departmental training, educational and instruction activities related to code enforcement shall be deposited in the fund.

Moneys appropriated from the fund shall be used to prepare and administer examinations to determine the eligibility of persons seeking to be employed by an enforcing agency, to establish and administer courses for the training of code, and subcode officials and assistants, and to reimburse in whole or in part, such persons as deemed eligible by the department, who have paid tuition for such training courses, and to disseminate information concerning the code and code rules and regulations, and changes made therein.

History

L. 1979, c. 121, 2, eff. June 30, 1979.

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N.J. Stat. § 52:27D-124.2

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§ 52:27D-124.2. Functions, etc. relating to energy subcode continued and transferred

All of the functions, powers and duties heretofore exercised by the Department of Energy and the commissioner thereof pursuant to P.L.1977, c. 146 ([C. 52:27F-1](#) et seq.) relating to the adoption, amendment and repeal of the energy subcode of the State Uniform Construction Code pursuant to P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.) and P.L.1977, c. 256 ([C. 54:4-3.113](#) et seq.) are hereby transferred to and vested in the Department of Community Affairs and the commissioner thereof.

History

L. 1987, c. 365, § 12.

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N.J. Stat. § 52:27D-124.3

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§ 52:27D-124.3. Submittal of bid, proposal by private agency under local public contracts law

A proposal by a private agency to provide inspection or plan review services to a municipality to administer the provisions of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.) shall be submitted in accordance with and shall be subject to the bidding and other provisions of the “Local Public Contracts Law,” P.L.1971, c.198 ([C.40A:11-1](#) et seq.). A municipality shall require, as part of the bid specifications, that a private agency participate in whichever electronic system the municipality has elected to utilize. A municipality shall require as part of the bid specifications that a private agency submit a bid or proposal in terms of a percentage of the costs charged by the department when it serves as a local enforcement agency pursuant to section 10 of P.L.1975, c.217 ([C.52:27D-128](#)). A municipality may include in the fee charged by it for work done by private agencies an amount sufficient to cover a proportionate share of administrative costs incurred by the local enforcing agency in connection with inspections performed by private agencies.

History

L. [2005, c. 212](#), § 3, eff. Nov. 1, 2005; amended by [2021, c. 70](#), § 2, effective April 30, 2021.

Annotations

Notes

Effective Dates:

Section 5 of L. [2005, c. 212](#) provides: “This act shall take effect on the first day of the third month next following enactment.” Chapter 212, L. 2005, was approved on August 29, 2005.

Amendment Notes

2021 amendment, by Chapter 70, inserted the second sentence.

Research References & Practice Aids

Administrative Code:

§ 52:27D-124.3. Submittal of bid, proposal by private agency under local public contracts law

[N.J.A.C. 5:23-4.14](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Private on-site inspection and plan review agencies; administration and enforcement.

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N.J. Stat. § 52:27D-124.4

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§ 52:27D-124.4. “Electronic Permit Processing Review System”

a. The Commissioner of Community Affairs shall establish, develop, implement, and administer the “Electronic Permit Processing Review System.” This electronic system shall be an Internet-based system allowing for the electronic submission of applications for construction permits, plans, and specifications pursuant to the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.), for the electronic review and approval of applications, plans, and specifications, for the scheduling of inspections, and for the exchange of information between the applicant, the applicant's professionals, and the department or enforcing agency during the review process. The electronic system shall offer a permit applicant:

- (1) the ability to submit the materials necessary for application review;
- (2) the ability to submit requests for on-site inspection of a project;
- (3) continuous, 24-hour accessibility for the submission of both scheduling requests and the materials necessary for the permit application review; and
- (4) the ability to submit electronic signatures for all materials necessary for the permit application review, including all construction permits, plans and specifications, and for the scheduling of inspections.

b.

(1) Following the effective date [Apr. 30, 2021] of [P.L.2021, c.70](#) ([C.52:27D-124.4](#) et al.), the commissioner may make the electronic system accessible, and facilitate its use, through the acceptance of application materials and scheduling submissions, by:

- (a) the department, with regard to applications for which the department approves plans and specifications pursuant to the “State Uniform Construction Code Act”;
- (b) local enforcing agencies; and
- (c) private agencies providing plan review and inspection services.

(2)

(a) Within one year following the effective date of [P.L.2021, c.70](#) ([C.52:27D-124.4](#) et al.), the commissioner shall fully implement the electronic system, and provide for its use, through the acceptance of application materials and scheduling submissions, by the department, with regard to applications for which the department approves plans and specifications pursuant to the “State Uniform Construction Code Act.”

(b) Local enforcing agencies may elect to utilize the electronic system implemented by the department. In the alternative, a local enforcing agency may utilize a different electronic system, which system shall provide the same level of functionality as the system implemented by the department as enumerated in subsection a. of this section.

§ 52:27D-124.4. "Electronic Permit Processing Review System"

- c. The commissioner shall provide training opportunities on the use of the electronic system for employees of local enforcing agencies and private agencies which provide plan review and inspection services.
- d. The commissioner shall, in accordance with the "Administrative Procedure Act," P.L.1968, c.410 ([C.52:14B-1](#) et seq.), adopt rules and regulations to govern the form and format of applications for construction permits, plans, and specifications and other information exchanged through the electronic system. Notwithstanding the requirement, pursuant to subsection b. of this section, to accept electronically submitted materials within one year following the effective date of [P.L.2021, c.70](#) ([C.52:27D-124.4](#) et al.), the commissioner shall have the discretion to establish different submission requirements, including non-electronic submissions as necessary, for large, complicated, or otherwise unusual construction projects, so long as the system is designed to accept approximately 80 percent of construction permit application submissions electronically.
- e. The department may waive a contrary form and format requirement imposed by statute or ordinance or by the rules of another department or agency for the submission of information in physical form to the extent the waiver is necessary to facilitate the submission of the information electronically. The department shall accept an electronic reproduction of a signature, stamp, seal, certification, or notarization as the equivalent of the original or shall accept the substitution of identifying information for the signature, stamp, seal, certification, or notarization. The department shall not waive any other requirement.
- f. The commissioner may adopt, amend, and repeal rules and regulations providing for the charging of and setting the amount of construction permit surcharge fees to be collected by an enforcing agency or private agency. Fees shall be remitted to the department to defray the cost of developing and administering the electronic system by local enforcing agencies that have elected to utilize the electronic system implemented by the department.
- g. A person exchanging information through the electronic system in a form and format acceptable to the department is not subject to any licensing sanction, civil penalty, fine, permit disapproval, or revocation or other sanction for failure to comply with a form or format requirement imposed by statute, ordinance, or rule for submission of the information in physical form, including but not limited to any requirement that the information be in a particular form or of a particular size, be submitted with multiple copies, be physically attached to another document, be an original document or be signed, stamped, sealed, certified, or notarized.
- h. As used in this section, "form and format" means the arrangement, organization, configuration, structure, or style of, or method of delivery for, providing required information or providing the substantive equivalent of required information. "Form and format" does not mean altering the substance of information or the addition or omission of information.

History

L. [2021, c. 70](#), § 1, effective April 30, 2021; amended by [2023, c. 248](#), § 1, effective January 8, 2024.

Annotations

Notes

Publisher's Notes

The bracketed material was added by the Publisher to provide a reference.

Amendment Notes

§ 52:27D-124.4. "Electronic Permit Processing Review System"

2023 amendment, by Chapter 248, added a.(4); added "as enumerated in subsection a. of this section" at the end of the second sentence of b.(2)(b); and in e, substituted "shall" for "may" twice in the second sentence; and made a stylistic and related change.

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§ 52:27D-125. Code advisory board.

- a.** To assist and advise the commissioner in the administration of P.L.1975, c.217 ([C.52:27D-119](#) et seq.) there is hereby created in the Department of Community Affairs a code advisory board to consist of 15 citizens to be appointed by the commissioner for a term of 4 years. The board shall consist of: one architect registered in the State of New Jersey; two professional engineers licensed by the State of New Jersey, one of whom shall be a mechanical engineer and one of whom shall be a structural engineer; one municipal building official; one member of the building industry in the State; one public health official in the State; one licensed plumbing inspector in the State; one licensed electrical inspector in the State; one fire prevention inspector in the State; and six members of the public, two of whom shall be experienced in representing consumers and one of whom shall be a representative of persons with disabilities who shall serve as chair of the subcode committee on persons with disabilities. The initial appointment of the representative of persons with disabilities shall be used to fill the first vacancy among the public members of the code advisory board occurring on or after the effective date of P.L.1981, c.35. Of the 13 members first appointed the commissioner shall designate the appointees' terms so that three shall be appointed for terms of 1 year, three for terms of two years, three for terms of three years and four for terms of four years, and that the two additional members first appointed by the commissioner pursuant to P.L.1976, c.117 shall be appointed for two years and three years respectively with such terms to be computed from February 4, 1976. Thereafter, members of the code advisory board shall be appointed for terms of four years.
- b.** Code advisory board members shall serve without compensation but shall be entitled to reimbursement for expenses incurred in performance of their duties. Vacancies on the advisory board shall be filled for the unexpired term. Members may be removed by the commissioner for cause.
- c.** The code advisory board shall appoint a committee for each subcode and, should a subcode therefor not be adopted, for supplements to or revisions of the barrier free design provisions of any model code adopted pursuant to section 5 of P.L.1975, c.217 ([C.52:27D-123](#)). Each such committee shall consist of one member of the code advisory board, who shall be chair, and at least four citizens who are experienced and knowledgeable in matters related to the particular subcode. Each committee shall advise and assist the code advisory board in the performance of its responsibilities under P.L.1975, c.217 ([C.52:27D-119](#) et seq.) for the subcode in question. Committee members shall serve without compensation and at the pleasure of the code advisory board.

History

L. 1975, c. 217, § 7; Amended by L. 1976, c. 117, § 1, eff. Nov. 16, 1976; L. 1981, c. 35, § 7, eff. Feb. 12, 1981; [2017, c. 131](#), § 192, effective July 21, 2017.

Annotations

Notes

Amendment Notes

2017 amendment, by Chapter 131, substituted “P.L.1975, c.217 (C.52:27D-119 et seq.)” for “this act” in the first sentence of a. and in c.; substituted “chair” for “chairman” in a. and c.; in a., substituted “State” for “State of New Jersey” five times in the second sentence, “persons with disabilities” for “the handicapped” twice in the second sentence and in the third sentence, “P.L.1981, c.35” for “this amendatory and supplementary act” in the third sentence, and “P.L.1976, c.117” for “this amendatory act” in the last sentence; substituted “P.L.1975, c.217 (C.52:27D-123)” for “this act” in c.; and made stylistic changes.

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N.J. Stat. § 52:27D-126

Current through New Jersey 221st Second Annual Session, L. 2025, c. 152 and J.R. 11

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§ 52:27D-126. Appointment of construction official, subcode officials

a. The appointing authority of any municipality shall appoint a construction official, any necessary subcode officials and technical assistants to assist such officials to administer and enforce the code. The appointing authority may, by resolution or order as appropriate, set the total number of weekly hours of operation of the construction official's office and the total number of weekly work hours of the construction official, commensurate with the compensation paid to the construction official. The appointing authority shall not set the specific work hours of the construction official. The appointing authority shall also appoint a construction board of appeals to hear and decide appeals from decisions made by said construction official and subcode officials, in the administration and enforcement of the code. Nothing herein, however, shall prevent a municipality from accepting inspections as to compliance with the code or any subcode thereof made by an inspection authority approved by the State of New Jersey pursuant to law.

b. To establish tenure rights or any other right or protection provided by the "State Uniform Construction Code Act" or Title 11A, Civil Service, of the New Jersey Statutes, or any pension law or retirement system, the job title "construction official" shall be equivalent to that job title which, prior to the adoption of the State Uniform Construction Code as provided in section 5 [\[C.52:27D-123\]](#) of the "State Uniform Construction Code Act," entailed the chief administrative responsibility to enforce all construction codes which had been adopted by the municipal governing body, the enforcement of which was not the responsibility of an authorized private inspection agency; and the job title "subcode official" shall be equivalent to that job title which, prior to the adoption of the State Uniform Construction Code, entailed subordinate administrative responsibility to enforce one or more of the following construction codes: building, plumbing, electrical or fire code.

Any person, in a municipality operating under Title 11A, Civil Service, of the New Jersey Statutes, who, prior to the adoption of the State Uniform Construction Code, held the equivalent of the job title "construction" official or "subcode" official, but who no longer holds his position as a result of a determination that his old job title was not equivalent to that of "construction" official or "subcode" official, shall be offered reappointment as a construction official or subcode official, as the case may be, and shall be granted permanent classified status in such position. Tenure shall continue for (1) any construction official or subcode official who is serving under tenure as otherwise provided by law on the effective date of this act or within one year thereafter, or (2) any person certified pursuant to subsection c. of this section and who subsequently gains such tenure.

A construction official or subcode official appointed in a municipality operating under the provisions of Title 11A, Civil Service, of the New Jersey Statutes, who, at the time of adoption of the State Uniform Construction Code, January 1, 1977, or prior to January 1, 1981, had permanent classified status or was employed as a construction official or subcode official or in another position in the unclassified service, shall be included in the classified service without civil service examination in his respective title of construction official or subcode official. Any individual employed by a municipality, who, in his employment with the municipality between January 1, 1977 and prior to January 1, 1981, was charged with the chief administrative responsibility to enforce all existing municipal construction codes, shall be deemed as

§ 52:27D-126. Appointment of construction official, subcode officials

appointed to the position of construction official for the purposes of this act. Any individual employed by a municipality, who, in his employment with the municipality between January 1, 1977 and prior to January 1, 1981, was charged with chief responsibility to enforce the municipal building, plumbing, fire, or electrical code, shall be deemed as appointed to the position of subcode official for the purposes of this act. No person, on or after January 1, 1981, shall be appointed as construction or subcode official in a municipality operating under Title 11A, Civil Service, of the New Jersey Statutes without having passed an examination administered by the Civil Service Commission certifying the merit and fitness of the person to hold such position; provided that, whenever a noncivil service municipality adopts the provisions of that Title, construction code officials and subcode officials of such municipality appointed prior to the filing of the petition for the adoption of civil service, shall attain permanent status in the classified service without examination. Any construction or subcode official appointed after January 1, 1981 on a provisional basis in a municipality which has adopted the provisions of Title 11A, Civil Service, of the New Jersey Statutes, may not be removed from office except for just cause after a fair and impartial hearing has been held at the local level, with no further appeal to the Civil Service Commission; provided, however, that such a construction or subcode official may be removed to permit the appointment of a person certified for appointment by the Civil Service Commission. A construction official or subcode official in a noncivil service municipality shall be appointed for a term of four years and shall, upon appointment to a second consecutive term or on or after the commencement of a fifth consecutive year of service, including years of service in an equivalent job title held prior to the adoption of the State Uniform Construction Code, be granted tenure and shall not be removed from office except for just cause after a fair and impartial hearing.

A construction official or subcode official in a noncivil service municipality shall be appointed for a term of four years and shall, upon appointment to a second consecutive term or on or after the commencement of a fifth consecutive year of service, including years of service in an equivalent job title held prior to the adoption of the State Uniform Construction Code, be granted tenure and shall not be removed from office except for just cause after a fair and impartial hearing.

A construction or subcode official, to be eligible for appointment in civil service or noncivil service municipalities, shall be certified by the State of New Jersey in accordance with subsection c. of this section and shall have had at least three years' experience in construction, design or supervision as a licensed engineer or registered architect; or five years' experience in construction, design, or supervision as an architect or engineer with a bachelor's degree from an accredited institution of higher education; or 10 years' experience in construction, design or supervision as a journeyman in a trade or as a contractor. A subcode official shall, pursuant to any subcode which he administers, pass upon:

- (1) matters relative to the mode, manner of construction or materials to be used in the erection or alteration of buildings or structures, except as to any such matter foreclosed by State approval pursuant to this act, and (2) actual execution of the approved plans and the installation of the materials approved by the State. The construction official in each municipality shall be the chief administrator of the "enforcing agency." He shall have the power to overrule a determination of a subcode official based on an interpretation of a substantive provision of the subcode which such subcode official administers, only if the construction official is qualified to act pursuant to this act as a subcode official for such subcode. He may serve as subcode official for any subcode which he is qualified under this act to administer. A subcode official or municipal engineer may serve as a construction official if otherwise qualified under the provisions of this act. The municipal enforcing agency shall require compliance with the provisions of the code, of all rules lawfully adopted and promulgated thereunder and of laws relating to the construction, alteration, repair, removal, demolition and integral equipment and location, occupancy and maintenance of buildings and structures, except as may be otherwise provided for.

Two or more municipalities may provide by ordinance, subject to regulations established by the commissioner, for the joint appointment of a construction official and subcode official for the purpose of enforcing the provisions of the code in the same manner.

c. No person shall act as a construction official or subcode official for any municipality unless the commissioner determines that said person is so qualified, except for the following:

§ 52:27D-126. Appointment of construction official, subcode officials

(1) a municipal construction official or subcode official holding office under permanent civil service status, or tenure as otherwise provided by law on the effective date of this act or within one year thereafter and (2) a municipal construction official or subcode official holding office without such permanent civil service status or tenure on the effective date of this act or within one year thereafter; provided said construction official or subcode official not having such permanent civil service status or tenure shall be certified in accordance with this act within four years of the effective date thereof; provided further that a person holding on the effective date of this act a valid plumbing inspector's license from the Department of Health and Senior Services pursuant to Title 26 of the Revised Statutes may serve as a plumbing subcode official and a person holding on the effective date of this act a valid electrical inspector's license from the Board of Public Utilities pursuant to Title 48 of the Revised Statutes may serve as an electrical subcode official. The commissioner, after consultation with the code advisory board, may authorize the preparation and conducting of oral, written and practical examinations to determine if a person is qualified by this act to be eligible to be a construction official or subcode official or, in the alternative, may accept successful completion of programs of training as proof of qualification within the meaning of this act. Upon a determination of qualification the commissioner shall issue or cause to be issued a certificate to the construction official or subcode official or trainee stating that he is so certified. The commissioner, after consultation with the code advisory board, may establish classes of certification that will recognize the varying complexities of code enforcement in the municipalities within the State. The commissioner shall, after consultation with the code advisory board, provide for educational programs designed to train and assist construction officials, subcode officials, and technical assistants to these officials in carrying out their responsibilities.

Whenever the commissioner is required by the terms of this subsection to consult with the code advisory board and the matter in question concerns plumbing subcode officials, the commissioner shall also consult with the Public Health Council and Commissioner of Health and Senior Services.

d. The commissioner, after consultation with the code advisory board, may periodically require that each construction official, subcode official, and technical assistant demonstrate a working knowledge of innovations in construction technology and materials, recent changes in and additions to the relevant portions of the State Uniform Construction Code, and current standards of professional ethics and legal responsibility; or, in the alternative, the commissioner, after consultation with the code advisory board, may accept successful completion of appropriate programs of training as proof of such working knowledge.

History

L. 1975, c. 217, § 8, eff. Feb. 4, 1976; amended 1979, c. 394, eff. Feb. 6, 1980; 1981, c. 469, § 1, eff. Jan. 11, 1982; 1982, c. 210, eff. Dec. 23, 1982; [2000, c. 126](#), § 29, eff. Sept. 21, 2000; [2008, c. 29](#), § 112, eff. June 30, 2008; [2009, c. 119](#), § 1, eff. Aug. 18, 2009.

Annotations

Notes

OLS Corrections:

Pursuant to [R.S.1:3-1](#), the Office of Legislative Services, through its Legislative Counsel and with the concurrence of the Attorney General, corrected L. [2009, c. 119](#), § 1 to incorporate the inadvertently omitted provisions of the amendment of this section by L. [2008, c. 29](#), § 112.

Publisher's Note:

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The bracketed material was added by the Publisher to provide a reference.

Effective Dates:

Section 120 of L. [2008, c. 29](#) provides: “This act shall take effect immediately and any actions necessary to implement this act may be taken any time thereafter. General implementation shall be completed no later than 12 months following enactment.” Chapter 29, L. 2008, was approved on June 30, 2008.

Amendment Note:

2008 amendment, by Chapter 29, in the third paragraph of b., substituted “Civil Service Commission” for “Merit System Board” in the fourth sentence and twice in the fifth sentence.

2009 amendment, by Chapter 119, in the first sentence of a., inserted “and technical assistants to assist such officials”; in c., inserted “and technical assistants to these officials” in the last sentence of the second paragraph; in d., inserted “and technical assistant”; and made related changes.

CASE NOTES

Governments: Legislation: Statutes of Limitations: General Overview

Governments: Local Governments: Elections

Governments: Local Governments: Employees & Officials

Governments: Legislation: Statutes of Limitations: General Overview

Where a municipal employee failed to comply with N.J. Admin. Code tit. 5, § 23-4.4(a)(6), by advising the relevant bureau of enforcement that an employee's employment was temporary, it resulted in the employee's employment turning into a permanent employment. [De Stefano v. Washington, 220 N.J. Super. 273, 531 A.2d 1090, 1987 N.J. Super. LEXIS 1317 \(Law Div. 1987\).](#)

Governments: Local Governments: Elections

Where [N.J. Stat. Ann. § 52:27D-126](#) conferred tenure upon appointment to a second consecutive term, appointee's agreement with city council to waive tenure was ineffective and could not vary statute in suit for reappointment. [Merlino v. Borough of Midland Park, 338 N.J. Super. 436, 769 A.2d 1077, 2001 N.J. Super. LEXIS 124 \(App.Div. 2001\)](#), rev'd, [172 N.J. 1, 796 A.2d 203, 2002 N.J. LEXIS 351 \(N.J. 2002\).](#)

Governments: Local Governments: Employees & Officials

The code official was prevented from achieving tenure under [N.J. Stat. Ann. § 52:27D-126\(b\)](#) after taking a brief break in service between first and second terms of employment because the second term was not consecutive to the first term. [Merlino v. Borough of Midland Park, 172 N.J. 1, 796 A.2d 203, 2002 N.J. LEXIS 351 \(N.J. 2002\).](#)

The “fifth consecutive year” language of [N.J. Stat. Ann. § 52:27D-126\(b\)](#) is a limited grandfather clause allowing prior service to be factored into the tenure calculation on appointment under the Uniform Construction Code Act (UCCA); on appointment by the governing body, that clause merely preserves the longevity rights of individuals who were serving in an equivalent job title at the time of enactment of the UCCA. [Merlino v. Borough of Midland Park, 172 N.J. 1, 796 A.2d 203, 2002 N.J. LEXIS 351 \(N.J. 2002\).](#)

§ 52:27D-126. Appointment of construction official, subcode officials

In the [N.J. Stat. Ann. § 52:27D-126\(b\)](#) reference to a “second consecutive” four-year term, consecutive means without an interval or break; to acquire tenure under this statute there must be a seamless transition from term to term without a gap or interruption. [Merlino v. Borough of Midland Park, 172 N.J. 1, 796 A.2d 203, 2002 N.J. LEXIS 351 \(N.J. 2002\)](#).

Where [N.J. Stat. Ann. § 52:27D-126](#) conferred tenure upon appointment to a second consecutive term, appointee's agreement with city council to waive tenure was ineffective and could not vary statute in suit for reappointment. [Merlino v. Borough of Midland Park, 338 N.J. Super. 436, 769 A.2d 1077, 2001 N.J. Super. LEXIS 124 \(App.Div. 2001\)](#), rev'd, [172 N.J. 1, 796 A.2d 203, 2002 N.J. LEXIS 351 \(N.J. 2002\)](#).

Appellant was not entitled to tenure under [N.J. Stat. Ann. § 52:27D-126](#) where he voluntarily agreed to show up for work after his period of appointment had expired. [Cutler v. Borough of Westwood, 295 N.J. Super. 344, 685 A.2d 44, 1996 N.J. Super. LEXIS 443 \(App.Div. 1996\)](#), certif. denied, [149 N.J. 143, 693 A.2d 112, 1997 N.J. LEXIS 859 \(N.J. 1997\)](#).

[N.J. Stat. Ann. § 52:27D-126](#) required that a subcode official be appointed for a four-year term and could only be removed from office during the term for just cause after a fair and impartial hearing; however, [N.J. Stat. Ann. § 52:27D-126](#) did not require that a city employee be given a local hearing when his job was reduced in good faith for economic reasons. [Voges v. Borough of Tinton Falls, 268 N.J. Super. 279, 633 A.2d 566, 1993 N.J. Super. LEXIS 823 \(App.Div. 1993\)](#), certif. denied, [135 N.J. 466, 640 A.2d 848, 1994 N.J. LEXIS 253 \(N.J. 1994\)](#).

Township manager was without authority to issue a stop work order under the Soil Erosion and Sediment Control Act, former N.J. Stat. Ann. § [4:24-35](#) (see now [N.J. Stat. Ann. § 4:24-39](#) et seq.), because only the township construction official had authority to issue the stop work order; under [N.J. Stat. Ann. § 52:27D-126\(a\)](#) the state entrusted enforcement of the Uniform Construction Code to the construction official and no intrusion. [J. P. Properties, Inc. v. Macy, 183 N.J. Super. 572, 444 A.2d 1131, 1982 N.J. Super. LEXIS 749 \(Law Div. 1982\)](#).

Amendment of the State Uniform Construction Code Act was intended to clarify tenure rights, not to alter the statute. Under the amended act, the “subcode official” is the person next subordinate to the overall chief, the equivalent to the position that, prior to the date of the act, involved subordinate administrative responsibilities to enforce the construction codes. [Helfrich v. Hamilton Township, 182 N.J. Super. 365, 440 A.2d 1366, 1981 N.J. Super. LEXIS 781 \(App.Div. 1981\)](#).

Research References & Practice Aids

Cross References:

Definitions, see [40A:12-33](#).

Definitions, see [52:27D-121](#).

Waiving of construction permit and enforcing agency fees for work done to promote accessibility by disabled persons, see [52:27D-126e](#).

Administrative Code:

[N.J.A.C. 5:23-1.4](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Definitions.

[N.J.A.C. 5:23A-1.3](#) (2013), CHAPTER CONSTRUCTION BOARDS OF APPEALS, Membership of construction boards of appeals.

§ 52:27D-126. Appointment of construction official, subcode officials

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N.J. Stat. § 52:27D-126a

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§ 52:27D-126a. Enforcing agency fees, surcharges

Where the appointing authority of any municipality shall appoint an enforcing agency and construction board of appeals pursuant to section 8 of P.L.1975, c.217 ([C.52:27D-126](#)), the municipal governing body by ordinance, in accordance with standards established by the commissioner, shall set enforcing agency fees for plan review, construction permit, certificate of occupancy, demolition permit, moving of building permit, elevator permit and sign permit, provided, however, that such fees shall not exceed the annual costs for the operation of the enforcing agency. For the three-year period commencing with an enforcing agency's initial participation in the "Electronic Permit Processing Review System," developed and implemented pursuant to section 1 of [P.L.2021, c.70](#) ([C.52:27D-124.4](#)), the municipal governing body may impose, and the enforcing agency may collect, construction permit surcharge fees to defray the enforcing agency's startup costs related to offering electronic plan review and scheduling. Surcharge fees shall be established in accordance with standards established by the commissioner.

History

L. 1979, c. 121, 3, eff. June 30, 1979; amended by [2021, c. 70](#), § 3, effective April 30, 2021.

Annotations

Notes

Amendment Notes

2021 amendment, by Chapter 70, inserted "(C.52:27D-126)" in the first sentence and added the second and last sentences.

CASE NOTES

Governments: Local Governments: Finance

Governments: Local Governments: Ordinances & Regulations

Tax Law: State & Local Taxes: Administration & Proceedings: General Overview

§ 52:27D-126a. Enforcing agency fees, surcharges

Governments: Local Governments: Finance

[N.J. Stat. Ann. § 40:52-1.2](#) does not apply to the issuance of building permits because if it did, it would conflict with [N.J. Stat. Ann. § 52:27D-126a](#), which provides that the fees collected for building permits shall not exceed the annual costs for the operation of the enforcing agency. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

Governments: Local Governments: Ordinances & Regulations

[N.J. Stat. Ann. § 40:52-1.2](#) does not apply to the issuance of building permits because if it did, it would conflict with [N.J. Stat. Ann. § 52:27D-126a](#), which provides that the fees collected for building permits shall not exceed the annual costs for the operation of the enforcing agency. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

Tax Law: State & Local Taxes: Administration & Proceedings: General Overview

[N.J. Stat. Ann. § 40:52-1.2](#) does not apply to the issuance of building permits because if it did, it would conflict with [N.J. Stat. Ann. § 52:27D-126a](#), which provides that the fees collected for building permits shall not exceed the annual costs for the operation of the enforcing agency. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

Research References & Practice Aids

Cross References:

Municipality; waiver of enforcing agency fees; ordinance, see [52:27D-126b](#).

Waiver of enforcing agency fees, see [52:27D-126d](#).

N.J. Stat. § 52:27D-126b

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§ 52:27D-126b. Municipality; waiver of enforcing agency fees; ordinance

Notwithstanding the provisions of section 3 of P.L.1979, c. 121 ([C. 52:27D-126a](#)), or any standard adopted pursuant thereto, to the contrary, a municipal governing body may provide in its ordinance for a waiver of enforcing agency fees for construction contracted for or conducted by the municipality within its boundaries.

History

L. 1982, c. 73, 2, eff. July 21, 1982.

Annotations

CASE NOTES

Governments: Local Governments: Employees & Officials

Where plaintiff occupied the equivalent pre-code position when his employing municipality appointed another to the plumbing subcode official position, plaintiff was entitled to the position of plumbing subcode official by virtue of [N.J. Stat. Ann. § 52:27D-126b](#). [Helfrich v. Hamilton Township, 182 N.J. Super. 365, 440 A.2d 1366, 1981 N.J. Super. LEXIS 781 \(App.Div. 1981\)](#).

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§ 52:27D-126c. Public building fee exemptions

No county, municipality, or any agency or instrumentality thereof shall be required to pay any municipal fee or charge in order to secure a construction permit for the erection or alteration of any public building or part thereof from the municipality wherein the building may be located. No erection or alteration of any public building or part thereof by a county, municipality, school board, or any agency or instrumentality thereof shall be subject to any fee, including any surcharge or training fee, imposed by any department or agency of State government pursuant to any law, or rule or regulation, except that nothing contained in this section shall be interpreted as preventing the imposition of a fee upon a board of education by either the Department of Education for plan review or by a municipality for the review of plans submitted to it pursuant to the provisions of section 12 of P.L.1975, c.217 ([C.52:27D-130](#)).

History

L. 1985, c. 409, § 1; amended [1989, c. 43](#), § 2; [1990, c. 23](#), § 4.

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[N.J. Stat. § 52:27D-126d](#)

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§ 52:27D-126d. Waiver of enforcing agency fees

Notwithstanding the provisions of section 3 of P.L.1979, c.121 ([C.52:27D-126a](#)), any municipality may, by ordinance, provide for a waiver of enforcing agency fees for any corporation which is (1) organized pursuant to the “New Jersey Nonprofit Corporation Act,” [N.J.S. 15A:1-1](#) et seq. and (2) actively engaged in constructing or rehabilitating housing units for occupancy by low or moderate income households.

For the purposes of this act, “low income household” means a household in which the gross household income is equal to 50% or less of the median gross household income for households of the same size within the region in which the housing is located. “Moderate income household” means a household in which the gross household income is equal to more than 50% but less than 80% of the median gross household income for households of the same size within the region in which the housing is located.

History

L. [1989, c. 68](#), § 1.

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N.J. Stat. § 52:27D-126e

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§ 52:27D-126e. Waiving of construction permit, enforcing agency fees for certain construction projects to benefit persons with disabilities.

a. Notwithstanding the provisions of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.), or any rules, regulations, or standards adopted pursuant thereto to the contrary, the governing body of any municipality which has appointed an enforcing agency pursuant to the provisions of section 8 of P.L.1975, c.217 ([C.52:27D-126](#)) may, by ordinance, provide that no person shall be charged a construction permit surcharge fee or enforcing agency fee for any construction, reconstruction, alteration or improvement designed and undertaken solely to promote accessibility by persons with disabilities to an existing public or private structure or any of the facilities contained therein.

The ordinance may further provide that a person with a disability, or a parent or sibling of a person with a disability, shall not be required to pay any municipal fee or charge in order to secure a construction permit for any construction, reconstruction, alteration or improvement which promotes accessibility to the person's own living unit.

For the purposes of this subsection, “person with a disability” means a person who has the total and permanent inability to engage in any substantial gainful activity by reason of any medically determinable physical or mental disability, including blindness, and shall include, but not be limited to, any resident of this State who has a disability as defined pursuant to the federal Social Security Act ([42 U.S.C. § 416](#)), or the federal Railroad Retirement Act of 1974 ([45 U.S.C. § 231](#) et seq.), or is rated as having a 60 percent disability or higher pursuant to any federal law administered by the United States Veterans' Administration. For purposes of this paragraph “blindness” means central visual acuity of 20/200 or less in the better eye with the use of a correcting lens. An eye which is accompanied by a limitation in the fields of vision such that the widest diameter of the visual field subtends an angle no greater than 20 degrees shall be considered as having a central visual acuity of 20/200 or less.

b.

(1) Notwithstanding the provisions of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.) or any rules, regulations or standards adopted pursuant thereto to the contrary, the governing body of any municipality which has appointed an enforcing agency pursuant to the provisions of section 8 of P.L.1975, c.217 ([C.52:27D-126](#)) shall not charge a person who has a service-connected disability declared by the United States Department of Veterans Affairs, or its successor, to be a total or 100 percent permanent disability that would entitle them to a property tax exemption under section 1 of P.L.1948, c.259 ([C.54:4-3.30](#)) or a spouse, parent, sibling, or guardian of the veteran with a disability, a construction permit surcharge fee or enforcing agency fee for any construction, reconstruction, alteration, or improvement designed and undertaken solely to promote accessibility by the veteran with a disability to the veteran's own living unit.

(2) A municipality that has granted an exemption from a construction permit surcharge fee or enforcing agency fee pursuant to paragraph (1) of this subsection may apply to the Department of Community

§ 52:27D-126e. Waiving of construction permit, enforcing agency fees for certain construction projects to benefit persons with disabilities.

Affairs, in accordance with rules and regulations promulgated by the Commissioner of Community Affairs for this purpose, for reimbursement of those exempt fees.

History

L. [1989, c. 223](#), § 1; amended [1996, c. 92](#), § 1; [2015, c. 273](#), § 1, effective January 19, 2016; [2017, c. 131](#), § 193, effective July 21, 2017.

Annotations

Notes

Amendment Notes

2015 amendment, by Chapter 273, added the a. designation; substituted “subsection” for “section” in the first sentence of the final paragraph of a.; and added b.

2017 amendment, by Chapter 131, in a., substituted “persons with disabilities” for “disabled persons” or variants in the first paragraph, twice in the second paragraph and in the last paragraph; in the last paragraph, substituted “disability” for “impairment”, “has a disability as defined” for “is disabled”, and “United States Veterans' Administration” or “United States Veterans' Act”; substituted “veteran with a disability” for “disabled veteran” twice in in b.(1); and made gender-neutral and stylistic changes.

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N.J. Stat. § 52:27D-126f

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§ 52:27D-126f. Definitions relative to testing, inspecting elevator devices; alternative testing; rules, regulations; review, analysis

a. As used in this section:

“Elevator device” means a hoisting and lowering device equipped with a car or platform which moves in guides for the transportation of individuals or freight in a substantially vertical direction through successive floors or levels of a building or structure. The term includes, without limitation, elevators, dumbwaiters, wheelchair lifts, manlifts, stairway chairlifts and any device within the scope of ASME A17.1 (Safety Code for Elevators and Escalators) or ASME A90.1 (Safety Standard for Belt Manlifts), except escalators and moving walks. It shall not include any conveyor devices that are process equipment.

“Qualified elevator device inspection firm” means any entity, whether a sole proprietorship, partnership, association or corporation, that is engaged in the business of inspecting, testing, installing, maintaining or repairing elevator devices, or the business of inspecting and testing elevator devices, is registered for those purposes with the Department of Community Affairs, and employs at least one qualified elevator device inspector.

“Qualified elevator device inspector” means any person who is employed by a qualified elevator device inspection firm and who is licensed by the Department of Community Affairs to conduct the routine, periodic and acceptance inspections and tests of elevator devices required pursuant to the provisions of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.).

b. No elevator devices which, under the provisions of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.), are subject to routine, periodic and acceptance inspections and tests by the local enforcing agency or the Department of Community Affairs shall be subject to such inspections and tests, nor shall the owner of the structure be charged any fees therefor, if those elevator devices are subjected to acceptance testing and are routinely and periodically inspected and tested by a qualified elevator device inspection firm, and the owner has registered each such elevator device with the Department of Community Affairs and has indicated in the registration application form, or in a supplement to that form, the identity of the qualified elevator device inspection firm that has been given responsibility for inspection and testing of the elevator device.

The inspections and tests, including the frequency thereof, conducted by a qualified elevator device inspector shall be in accordance with such rules and regulations as the Commissioner of Community Affairs may prescribe pursuant to the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.) and subsection e. of this section. Acceptance testing and the five-year test shall be witnessed by the local enforcing agency or the Department of Community Affairs in accordance with such rules and regulations as the Commissioner of Community Affairs may prescribe pursuant to the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.) and subsection e. of this section. No qualified elevator device inspector shall act in that capacity when his work on the elevator device is the work being inspected.

§ 52:27D-126f. Definitions relative to testing, inspecting elevator devices; alternative testing; rules, regulations; review, analysis

c. If, upon inspection or test, a qualified elevator device inspector shall find that an elevator device is in a dangerous condition, or if there is an immediate hazard to persons riding on or using any such device, the inspector shall immediately prohibit any further use of the device and shall so notify in writing the owner and the local enforcing agency or Department of Community Affairs, as the case may be. The device shall remain out of service until such time as the inspector shall certify in writing that the dangerous condition or immediate hazard has been removed or corrected and that the device is safe for public use. If the local enforcing agency or the department shall determine, in response to a complaint or otherwise, that an elevator device is in a dangerous condition or that there is an immediate hazard to persons riding on or using that device, the local enforcing agency or the department may require the owner of the elevator device to make such repairs as may be necessary, or take other corrective action, within such time as the local enforcing agency or the department, as the case may be, shall prescribe.

d. Any qualified elevator device inspector or qualified elevator device inspection firm violating the provisions of this section shall be subject to a penalty in accordance with section 20 of P.L.1975, c.217 ([C.52:27D-138](#)) and shall also be subject to suspension or revocation by the Department of Community Affairs of licensure or registration as a qualified elevator device inspector or qualified elevator device inspection firm, as the case may be.

e. The Commissioner of Community Affairs, in accordance with the provisions of the "Administrative Procedure Act," P.L.1968, c.410 ([C.52:14B-1](#) et seq.), shall promulgate rules and regulations to effectuate the purposes of this act. The rules and regulations shall provide for, but not be limited to, the qualifications for licensing of qualified elevator device inspectors, the registration of qualified elevator device inspection firms, the manner and form of licensure and registration, the fee for each such license or registration, the manner in which test results pursuant to this act are to be recorded, and minimum liability insurance requirements for qualified elevator device inspection firms, for which proof thereof shall be provided by the firms to the department. License and registration fees shall be designed to cover, but not exceed, the actual costs the department shall incur in administering the provisions of this act.

f. The Department of Community Affairs shall conduct a review and perform an analysis of the impact on the safety record of elevator devices in this State as a result of the implementation of this section. The review and analysis shall be performed biennially. A written report of the results of the review and analysis shall be submitted to the Governor and the Legislature, with the first report submitted within 48 months following the effective date of [P.L.1997, c.336](#) ([C.52:27D-126f](#)).

History

L. [1997, c. 336](#), § 1.

N.J. Stat. § 52:27D-126.1

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§ 52:27D-126.1. Fire prevention subcode officials; appointment; qualifications; removal

- a. In any municipality the body or official, or the successor of said body or official, which appointed the persons serving as fire prevention officials on the effective date of the “State Uniform Construction Code Act,” P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.) shall appoint the person to serve in each position for a fire prevention subcode official which a municipality creates; provided that any person who has served in the same municipality for at least 6 months as a fire inspection officer on the effective date of the “State Uniform Construction Code Act,” P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.) shall be deemed to qualify as a fire prevention subcode official. Notwithstanding the provisions of this section, any fire prevention subcode official is subject to any qualification requirements established by the commissioner pursuant to section 8 of the “State Uniform Construction Code Act,” P.L.1975, c. 217.
- b. Whenever a municipality creates full-time or part-time fire prevention subcode official positions, it shall order the body or official or successor or designee of said body or official which appointed the persons serving as fire prevention officials in the municipality on the effective date of the “State Uniform Construction Code Act,” P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.) to appoint the necessary number of full-time or part-time fire prevention subcode officials pursuant to subsection 1 a. of this act. Except as provided in subsections a., b., and d. of this section, fire prevention subcode officials are subject to the administration and enforcement jurisdiction of municipal construction officials provided under the State Uniform Construction Code, P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.).
- c. Notwithstanding any experience requirements in section 8 of the “State Uniform Construction Code Act,” P.L.1975, c. 217, a fire prevention subcode official appointed pursuant to said section and to this act shall have had at least 3 years experience as a fire prevention or firefighting official.
- d. A fire prevention subcode official may be removed from office by the body or official or the successor or designee of said body or official which appointed such official.

History

L. 1975, c. 317, 1.

N.J. Stat. § 52:27D-126.2

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§ 52:27D-126.2. Persons appointed as construction officials or subcode officials; licenses

Notwithstanding the provisions of the “State Uniform Construction Code Act,” P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.), or any rule or regulation adopted pursuant thereto to the contrary, on or after January 1, 1981, no person who received an appointment as a construction official or a subcode official prior to October 1, 1978, shall hold or perform the duties of an office for which a license is required under that act, or represent himself as qualified for that position, use a title denoting that he is so licensed or otherwise represent himself as licensed or authorized to act under the code, unless that person possesses the appropriate license; except that a subcode official or municipal engineer appointed prior to October 1, 1978, and acting as a construction official on January 1, 1981, or a municipal official appointed prior to October 1, 1978, and acting as a subcode official on January 1, 1981, may continue to act as a construction official or a subcode official, respectively, until March 1, 1981, without licensing by the commissioner.

History

L. 1983, c. 35, 1.

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N.J. Stat. § 52:27D-126.3

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§ 52:27D-126.3. Establishment of emergency building inspection program

The Commissioner of Community Affairs shall establish a program for the emergency deployment of State and local construction code officials and inspectors to assist local construction code officials and inspectors in the evaluation of buildings and structures affected by a natural or man-made disaster or emergency, and to provide such other assistance in code enforcement and related activities as may be required in order to protect public health and safety. The code officials and inspectors so deployed shall, when necessary, assist in assessing possible damage to the structural design and life-safety systems of buildings, and in facilitating rapid decision making regarding the closure or reoccupancy of buildings, in the event of a natural or man-made disaster or emergency for which a state of emergency has been declared by the President of the United States or the Governor, or for which a state of emergency has been declared by a municipal emergency management coordinator. The commissioner may provide for participation in the program by licensed professional engineers, registered architects and other licensed professionals. For the purposes of this section, “local construction code officials and inspectors” means code officials and inspectors employed by a municipality or county.

History

L. [2007, c. 2](#), § 1, eff. Jan. 17, 2007.

Annotations

Notes

Editor's Notes

For the municipal emergency management coordinator appointment and duties, see [C. App.A:9-40.1](#).

Research References & Practice Aids

Cross References:

Powers, duties of persons deployed under emergency deployment program, see [52:27D-126.5](#).

Municipal participation voluntary; resolution of non-participation., see [52:27D-126.7](#).

§ 52:27D-126.3. Establishment of emergency building inspection program

Administrative Code:

[N.J.A.C. 5:23-4.25](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Emergency building inspection program.

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N.J. Stat. § 52:27D-126.4

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§ 52:27D-126.4. Intermunicipal agreements for mutual construction code enforcement aid

The governing bodies of two or more municipalities may by resolution enter into agreements with each other for mutual construction code enforcement aid concerning the evaluation of buildings and structures affected by a natural or man-made disaster or emergency. Such agreements may provide for the reimbursement of the municipality or municipalities rendering such aid, including reimbursement for any damage to property and for payment to any official or employee of a local construction code enforcing agency for injuries sustained while serving pursuant to such agreements, or to a surviving spouse or other dependent in the event of death of that official or employee.

History

L. [2007, c. 2](#), § 2, eff. Jan. 17, 2007.

Annotations

Research References & Practice Aids

Cross References:

Powers, duties of persons deployed under emergency deployment program, see [52:27D-126.5](#).

Injury, death benefits for officials, inspectors deployed, see [52:27D-126.6](#).

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N.J. Stat. § 52:27D-126.5

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§ 52:27D-126.5. Powers, duties of persons deployed under emergency deployment program

Persons deployed under the emergency deployment program established by the Commissioner of Community Affairs pursuant to section 1 of [P.L.2007, c.2 \(C.52:27D-126.3\)](#), or providing assistance pursuant to an intermunicipal agreement pursuant to section 2 of [P.L.2007, c.2 \(C.52:27D-126.4\)](#), shall, while on duty rendering assistance to any local construction code enforcing agency, have the same powers, authority and immunities as the members of the local construction code enforcing agency of the municipality in which such assistance is being rendered.

History

L. [2007, c. 2](#), § 3, eff. Jan. 17, 2007.

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N.J. Stat. § 52:27D-126.6

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§ 52:27D-126.6. Injury, death benefits for officials, inspectors deployed

If any local construction code official or inspector suffers injury or death in the performance of his duties, the legal beneficiaries of such official or inspector shall be entitled to such salary, pension rights, workers' compensation, or other benefits as would have accrued if such injury or death had occurred in the performance of duties in the jurisdiction in which the official or employee is regularly employed. The responsibility for the payment of benefits pursuant to this section shall be determined in the agreements entered into pursuant to section 2 of [P.L.2007, c.2](#) ([C.52:27D-126.4](#)).

History

L. [2007, c. 2](#), § 4, eff. Jan. 17, 2007.

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N.J. Stat. § 52:27D-126.8

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§ 52:27D-126.8. “County Code Enforcement Pilot Program”; definitions

a. As used in [P.L.2018, c.157](#) ([C.52:27D-126.8](#) et al.):

“Pilot county” means any county of the first class with a population of over 900,000 and a population density of less than 4,000 persons per square mile according to the 2010 federal decennial census.

“Pilot program” means the “County Code Enforcement Pilot Program” established pursuant to subsection b. of this section.

b. There is established the “County Code Enforcement Pilot Program” to permit any pilot county to assume responsibility for certain construction code enforcement activities. Notwithstanding any other provision of P.L.1975, c.217 ([C.52:27D-119](#) et seq.) to the contrary, the governing body of a pilot county may appoint, by ordinance or resolution, as applicable, a county construction official, subcode officials, and technical assistants to administer and enforce the code in regard to:

(1) buildings and structures owned by the pilot county, including any of its departments, divisions, bureaus, boards, councils, authorities, or other agencies; and

(2) a municipality located within the pilot county with which the pilot county has entered into a shared service agreement pursuant to the “Uniform Shared Services and Consolidation Act,” sections 1 through 35 of [P.L.2007, c.63](#) ([C.40A:65-1](#) through [C.40A:65-35](#)), for the purposes of administering and enforcing the code.

c. Regardless of any shared service agreement with a municipality, if a building or structure subject to code enforcement is owned by the pilot county, then the county construction official appointed pursuant to subsection b. of this section may assume the code enforcement responsibilities of a municipal code enforcement official, including the imposition of fees for permit applications and inspections related to construction activities by private parties on county property. However, regardless of the property's ownership, a county construction official may not assume code enforcement responsibilities that the Department of Community Affairs is required to administer, pursuant to subsection c. of section 11 of P.L.1975, c.217 ([C.52:27D-129](#)) or any other provision of P.L.1975, c.217 ([C.52:27D-119](#) et seq.).

d. In accordance with the “Uniform Shared Services and Consolidation Act,” sections 1 through 35 of [P.L.2007, c.63](#) ([C.40A:65-1](#) through [C.40A:65-35](#)), a municipality located within a pilot county may enter into a shared service agreement with the pilot county to administer and enforce the code.

e. The Commissioner of Community Affairs shall adopt rules and regulations, pursuant to the provisions of the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), to effectuate the purposes of the pilot program.

History

L. [2018, c. 157](#), § 1, effective December 17, 2018.

§ 52:27D-126.8. "County Code Enforcement Pilot Program"; definitions

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[N.J. Stat. § 52:27D-126.7](#)

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§ 52:27D-126.7. Municipal participation voluntary; resolution of non-participation.

a. Participation by municipalities in the emergency deployment program established by the Commissioner of Community Affairs pursuant to section 1 of [P.L.2007, c.2 \(C.52:27D-126.3\)](#) shall be voluntary; provided, however, that any municipality that does not adopt a resolution of non-participation in the emergency deployment program, and file such resolution with the Department of Community Affairs, within 60 days of the effective date of rules implementing section 1 of [P.L.2007, c.2 \(C.52:27D-126.3\)](#), shall be deemed to be participating in the program, until such time as a resolution of non-participation may be adopted and filed. A non-participating municipality may join the emergency deployment program at any time by adopting a resolution of participation and filing it with the commissioner.

b. During a state of emergency, any deployed construction code official or inspector shall report to the municipal emergency management coordinator for the deployment area.

History

L. [2007, c. 2](#), § 5, eff. Jan. 17, 2007.

Annotations

Notes

OLS Corrections:

Pursuant to [R.S.1:3-1](#), the Office of Legislative Services, through its Legislative Counsel and with the concurrence of the Attorney General, inserted the b. designation in L. [2007, c. 2](#), § 5.

Research References & Practice Aids

Administrative Code:

[N.J.A.C. 5:23-4.25](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Emergency building inspection program.

§ 52:27D-126.7. Municipal participation voluntary; resolution of non-participation.

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§ 52:27D-127. Construction board of appeals

a. There shall be a construction board of appeals for each county to hear appeals from decisions by the enforcing agency provided that any municipality may establish its own construction board of appeals to hear appeals from decisions by the enforcing agency and further provided that where two or more municipalities have combined to appoint a construction official and subcode officials such combined municipalities may establish a joint construction board of appeals. Any such municipal or joint board shall hear appeals from the decisions of the municipal or joint enforcing agency, as the case may be, instead of the county board.

Every construction board of appeals shall consist of five members. Each member of the board shall be qualified by experience or training to perform the duties of members of the construction board of appeals. In addition to the five regular members, each construction board of appeals shall include two special members, one of whom shall be a licensed professional engineer with municipal construction experience, and one of whom shall be a builder. The special members shall serve as additional members of the board in any case involving an appeal of municipal fees pursuant to [P.L.1995, c.54 \(C.40:55D-53.2 et al.\)](#). Board members shall be appointed for a term of 4 years by the appointing authority of the county or municipality in question or, in the case of a joint municipal board, by means mutually determined by the governing bodies of such municipalities. For the members first appointed, the appointing authority shall designate the appointees' terms so that one shall be appointed for a term of 1 year, one for a term of 2 years, one for a term of 3 years, and two for a term of 4 years. Vacancies on the board shall be filled for the unexpired term. Members may be removed by the authority appointing them for cause. A person may serve on more than one construction board of appeals.

b. When an enforcing agency refuses to grant an application or refuses to act upon application for a construction permit, or when the enforcing agency makes any other decision, pursuant or related to this act or the code, an owner, or his authorized agent, may appeal in writing to the county or municipal or joint board, whichever is appropriate. The board shall hear the appeal, render a decision thereon and file its decision with a statement of the reasons therefor with the enforcing agency from which the appeal has been taken not later than 10 business days following the submission of the appeal, unless such period of time has been extended with the consent of the applicant. Such decision may affirm, reverse or modify the decision of the enforcing agency or remand the matter to the enforcing agency for further action. A copy of the decision shall be forwarded by certified or registered mail to the party taking the appeal. Failure by the board to hear an appeal and render and file a decision thereon within the time limits prescribed in this subsection shall be deemed a denial of the appeal for purposes of a complaint, application or appeal to a court of competent jurisdiction. A record of all decisions made by the board, properly indexed, shall be kept by the enforcing agency and shall be subject to public inspection during business hours. The board shall provide rules for its procedure in accordance with this act and regulations established by the commissioner.

History

L. 1975, c. 217, § 9; amended [1995, c. 54](#), § 4.

Annotations

CASE NOTES

Administrative Law: Agency Adjudication: Hearings: General Overview

Constitutional Law: Bill of Rights: Fundamental Rights: Procedural Due Process: Scope of Protection

Constitutional Law: Substantive Due Process: Scope of Protection

Real Property Law: Zoning & Land Use: Building & Housing Codes

Real Property Law: Zoning & Land Use: Constitutional Limits

Real Property Law: Zoning & Land Use: Judicial Review

Administrative Law: Agency Adjudication: Hearings: General Overview

In denying an occupancy permit due to the inadequacy of a sprinkler system, a construction board of appeals failed to adhere to the procedures and safeguards of the State Uniform Construction Code Act, [N.J. Stat. Ann. § 52:27D-119](#) et seq., in conducting the hearing under [N.J. Stat. Ann. § 52:27D-127](#) because the decision was based entirely upon a staff report with no opportunity for the applicant to cross-examine or challenge the author thereof. [In re "Analysis of Walsh Trucking Occupancy & Sprinkler System", 215 N.J. Super. 222, 521 A.2d 883, 1987 N.J. Super. LEXIS 1042 \(App.Div. 1987\).](#)

Constitutional Law: Bill of Rights: Fundamental Rights: Procedural Due Process: Scope of Protection

Plaintiff's claim that defendants, a borough and its zoning and land use chairman, violated his due process rights for issuing stop work orders, allegedly failing to give plaintiff a construction permit, and for delaying approval of his site plan, were properly dismissed via summary judgment because plaintiff failed to pursue the administrative and judicial remedies available to him via the Uniform Construction Code Act and the Municipal Land Use Law for redress of the alleged arbitrary action by the municipal officials, as such statutes satisfied the requirements of procedural due process. Further, the alleged arbitrary actions by defendants did not constitute egregious official conduct that shocked the conscience so as to violate plaintiff's substantive due process rights. [Plemmons v. Blue Chip Ins. Services, Inc., 387 N.J. Super. 551, 904 A.2d 825, 2006 N.J. Super. LEXIS 256 \(App.Div. 2006\),](#) overruled in part, [Shaw v. Shand, 460 N.J. Super. 592, 217 A.3d 1180, 2019 N.J. Super. LEXIS 129 \(App.Div. 2019\).](#)

Property owner's [USCS Const. Amend. 14](#) procedural due process claim failed as a matter of law; defendants did not prevent the owner from accessing or taking advantage of the procedures provided to it under New Jersey law by scheduling a hearing on the owner's construction permit appeal more than a month after the appeal was filed, because, pursuant to [N.J. Stat. Ann. § 52:27D-127\(b\)](#) and N.J. Admin. Code tit. 5, § 23A-2.3(c), the owner could have filed an action in the state courts when the construction board of appeals failed to act on its appeal within 10 days. [Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\).](#)

Constitutional Law: Substantive Due Process: Scope of Protection

§ 52:27D-127. Construction board of appeals

Plaintiff's claim that defendants, a borough and its zoning and land use chairman, violated his due process rights for issuing stop work orders, allegedly failing to give plaintiff a construction permit, and for delaying approval of his site plan, were properly dismissed via summary judgment because plaintiff failed to pursue the administrative and judicial remedies available to him via the Uniform Construction Code Act and the Municipal Land Use Law for redress of the alleged arbitrary action by the municipal officials, as such statutes satisfied the requirements of procedural due process. Further, the alleged arbitrary actions by defendants did not constitute egregious official conduct that shocked the conscience so as to violate plaintiff's substantive due process rights. [*Plemmons v. Blue Chip Ins. Services, Inc.*, 387 N.J. Super. 551, 904 A.2d 825, 2006 N.J. Super. LEXIS 256 \(App.Div. 2006\)](#), overruled in part, [*Shaw v. Shand*, 460 N.J. Super. 592, 217 A.3d 1180, 2019 N.J. Super. LEXIS 129 \(App.Div. 2019\)](#).

Real Property Law: Zoning & Land Use: Building & Housing Codes

Plaintiff's claim that defendants, a borough and its zoning and land use chairman, violated his due process rights for issuing stop work orders, allegedly failing to give plaintiff a construction permit, and for delaying approval of his site plan, were properly dismissed via summary judgment because plaintiff failed to pursue the administrative and judicial remedies available to him via the Uniform Construction Code Act and the Municipal Land Use Law for redress of the alleged arbitrary action by the municipal officials, as such statutes satisfied the requirements of procedural due process. Further, the alleged arbitrary actions by defendants did not constitute egregious official conduct that shocked the conscience so as to violate plaintiff's substantive due process rights. [*Plemmons v. Blue Chip Ins. Services, Inc.*, 387 N.J. Super. 551, 904 A.2d 825, 2006 N.J. Super. LEXIS 256 \(App.Div. 2006\)](#), overruled in part, [*Shaw v. Shand*, 460 N.J. Super. 592, 217 A.3d 1180, 2019 N.J. Super. LEXIS 129 \(App.Div. 2019\)](#).

Real Property Law: Zoning & Land Use: Constitutional Limits

Property owner's [*USCS Const. Amend. 14*](#) procedural due process claim failed as a matter of law; defendants did not prevent the owner from accessing or taking advantage of the procedures provided to it under New Jersey law by scheduling a hearing on the owner's construction permit appeal more than a month after the appeal was filed, because, pursuant to [*N.J. Stat. Ann. § 52:27D-127\(b\)*](#) and N.J. Admin. Code tit. 5, § 23A-2.3(c), the owner could have filed an action in the state courts when the construction board of appeals failed to act on its appeal within 10 days. [*Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill*, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Real Property Law: Zoning & Land Use: Judicial Review

Property owner's [*USCS Const. Amend. 14*](#) procedural due process claim failed as a matter of law; defendants did not prevent the owner from accessing or taking advantage of the procedures provided to it under New Jersey law by scheduling a hearing on the owner's construction permit appeal more than a month after the appeal was filed, because, pursuant to [*N.J. Stat. Ann. § 52:27D-127\(b\)*](#) and N.J. Admin. Code tit. 5, § 23A-2.3(c), the owner could have filed an action in the state courts when the construction board of appeals failed to act on its appeal within 10 days. [*Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill*, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Research References & Practice Aids

Cross References:

Disputes by applicant of charges made by professional; appeal, see [*40:14A-43*](#).

§ 52:27D-127. Construction board of appeals

Estimate of cost of installation of improvements, see [40:14A-44](#).

Disputes by applicant of charges made by professional; appeal, see [40:14B-76](#).

Estimate of cost of installation of improvements, see [40:14B-77](#).

Municipal engineer to estimate cost of installation of improvements, see [40:55D-53.4](#).

Applicant notification to dispute charges; appeals; rules, regulations, see [40:55D-53.2a](#).

Definitions, see [52:27D-121](#).

Construction permits; application, approval, expiration, cancellation, extension, see [52:27D-131](#).

Person aggrieved by ruling, action, order or notice of commissioner or local enforcement agency; administrative hearing; application; conduct, see [52:27D-206](#).

Definitions relative to certain renewable energy systems, see [54:4-3.113a](#).

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N.J. Stat. § 52:27D-128

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§ 52:27D-128. Substitute administration and enforcement

Whenever a municipality or several municipalities decide not to administer and enforce the code and request the commissioner to assume that task, the commissioner shall by regulation provide for the enforcement of the code and this act in said municipality or municipalities and for payment to the State of fees necessary to defray the expenses in furtherance of that end and the commissioner shall have all the powers conferred by this act upon any municipal governing body, chief executive, or enforcing agency and all other powers necessary and convenient to that end, provided that the commissioner shall provide a departmental appeal in lieu of an appeal to a municipal or joint construction board of appeals.

The commissioner shall hold hearings pursuant to section 6c. [C.52:27D-124] of this act in order to establish regulations defining the operation of this section.

History

L. 1975, c. 217, § 10.

Annotations

Notes

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Research References & Practice Aids

Cross References:

Submittal of bid, proposal by private agency under local public contracts law, see [52:27D-124.3](#).

Administrative Code:

[N.J.A.C. 5:23-2.38](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Departmental appeal.

§ 52:27D-128. Substitute administration and enforcement

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§ 52:27D-129. State buildings and buildings of interstate agencies; outdoor advertising signs on public property

- a.** Notwithstanding any other provision of P.L. 1975, c. 217 ([C. 52:27D-119](#) et seq.), the Department of Community Affairs shall have authority to administer and enforce the code in regard to buildings and structures owned by the State, and any of its departments, divisions, bureaus, boards, councils, authorities or other agencies; provided, however, that the Division of Building and Construction in the Department of the Treasury shall have authority to conduct field inspections for the purpose of enforcing the code in buildings built under its supervision. The Division of Building and Construction shall be authorized to review plans and undertake construction if the Department of Community Affairs cannot approve plans within the 20-day period provided for in P.L. 1975, c. 217. In an emergency or cost savings situation, the commissioner may delegate, by rule, the authority to conduct field inspections for the purpose of enforcing the code. The Division of Building and Construction and any public or private agency which receives such a delegation shall carry out any review or inspection responsibilities with persons certified by the Commissioner of Community Affairs pursuant to the provisions of P.L. 1975, c. 217. The Department of Community Affairs shall have ultimate responsibility for insuring that all buildings conform to the requirements of the code.
- b.** Construction, alteration, renovation, rehabilitation, repair, removal or demolition of any building or structure situated wholly within New Jersey by or for an agency created by an interstate compact to which the State of New Jersey is a party shall be subject to the provisions of the code; provided that such interstate agency shall have exclusive authority to administer and enforce the code in regard to such buildings and structures.
- c.** Notwithstanding any other provision of law, rule or regulation to the contrary, except for signs which advertise or otherwise identify activities performed on the property on which the sign is located, the Department of Community Affairs shall be the sole enforcing agency with regard to outdoor advertising signs which exceed 32 square feet in area on any face and which are located on land owned or controlled by any public entity, including but not limited to any State, county or local department, agency, board, commission, authority or instrumentality.

History

L. 1975, c. 217, § 11; amended 1983, c. 496, § 3; [1991, c. 87](#); [2004, c. 42](#), § 10, eff. June 29, 2004.

N.J. Stat. § 52:27D-130

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§ 52:27D-130. Permit required; application; contents; issuance; transfer

Except as otherwise provided by this act or in the code, before construction or alteration of any building or structure, the owner, or his agent, engineer or architect, shall submit an application in writing, including signed and sealed drawings and specifications, to the enforcing agency as defined in this act. When an enforcing agency begins to participate in the "Electronic Permit Processing Review System," pursuant to section 1 of [P.L.2021, c.70 \(C.52:27D-124.4\)](#), the owner, or his agent, engineer or architect, may submit applications and scheduling requests electronically. The application shall be in accordance with regulations established by the commissioner and on a form or in a format prescribed by the commissioner and shall be accompanied by payment of the fee to be established by the municipal governing body by ordinance in accordance with standards established by the commissioner. The application for a construction permit shall be filed with the enforcing agency and shall be a public record; and no application for a construction permit shall be removed from the custody of the enforcing agency after a construction permit has been issued. Nothing contained in this paragraph shall be interpreted as preventing the imposition of requirements in the code, for additional permits for particular kinds of work, including but not limited to plumbing, electrical, elevator, fire prevention equipment or boiler installation or repair work, or in other defined situations.

Upon the transfer of ownership of property that is the subject of a construction permit, and prior to beginning or continuing work authorized by the construction permit, the new owner shall file with the enforcing agency an application for a permit update to notify the enforcing agency of the name and address of the new owner and of all other changes to information previously submitted to the enforcing agency. If the municipality has adopted an ordinance requiring a successor developer to furnish a replacement performance guarantee, and a performance guarantee has previously been furnished in favor of the municipality to assure the installation of on-tract improvements on the property that is the subject of an application for a permit update for the purpose of notifying the enforcing agency of the name and address of a new owner, the enforcing agency shall not approve the application for a permit update until it receives notification from the governing body or its designee that the new owner has furnished an adequate replacement performance guarantee.

No permit shall be issued for a public school facility unless the final plans and specifications have been first approved by the Bureau of Facility Planning Services in the Department of Education or a municipal code official who is appropriately licensed by the Commissioner of Community Affairs for the type and level of plans being reviewed. Approval by the Bureau of Facility Planning Services in the Department of Education shall only be required when a review for educational adequacy is necessary. Requirements determining when a review for educational adequacy is necessary shall be established jointly by the Department of Community Affairs and the Department of Education. The standards shall thereafter be adopted as part of the Uniform Construction Code regulations by the Department of Community Affairs. After the final plans and specifications have been approved for educational adequacy by the Bureau of Facility Planning Services in the Department of Education, a local board of education may submit the final plans and specifications for code approval to either the Bureau of Facility Planning Services in the Department of Education or a municipal code official who is appropriately licensed by the Commissioner of Community

§ 52:27D-130. Permit required; application; contents; issuance; transfer

Affairs for the type and level of plans being reviewed. The Bureau of Facility Planning Services in the Department of Education when approving final plans and specifications shall be responsible for insuring that the final plans and specifications conform to the requirements of the code as well as for insuring that they provide for an educationally adequate facility. In carrying out its responsibility pursuant to the provisions of this section the Department of Education shall employ persons licensed by the Commissioner of Community Affairs for the type and level of plans being reviewed.

History

L. 1975, c. 217, § 12; amended 1983, c. 496, § 4; [1990, c. 23](#), § 3; [2013, c. 123](#), § 5, eff. Aug. 9, 2013; [2021, c. 70](#), § 4, effective April 30, 2021.

Annotations

Notes

Amendment Note:

2013 amendment, by Chapter 123, inserted the second paragraph.

2021 amendment, by Chapter 70, in the first paragraph, inserted the second sentence and inserted “or in a format” in the third sentence.

CASE NOTES

Governments: State & Territorial Governments: Relations With Governments

Municipal ordinance that required proof of payment of taxes and assessments before a construction permit or certificate of occupancy could be issued was preempted by provisions of the State Uniform Construction Code Act, [N.J. Stat. Ann. §§ 52:27D-120, 52:27D-130, 52:27D-131, 52:27D-133](#). [Home Builders League of South Jersey, Inc. v. Evesham, 174 N.J. Super. 252, 416 A.2d 81, 1980 N.J. Super. LEXIS 560 \(Law Div. 1980\)](#).

Research References & Practice Aids

Cross References:

Definitions relative to suspension, revocation of certain employer licenses, see [34:1A-1.11](#).

Certification of business firms performing lead evaluation, abatement work, see [52:27D-428](#).

Public building fee exemptions, see [52:27D-126c](#).

Issuance of construction permit for child care, educational center for certain locations; certification required; remediation, see [52:27D-130.5](#).

Administrative Code:

§ 52:27D-130. Permit required; application; contents; issuance; transfer

[N.J.A.C. 8:50-1.3](#) (2013), CHAPTER STANDARDS FOR INDOOR ENVIRONMENT CERTIFICATION AND FOR LICENSURE OF INDOOR ENVIRONMENTAL CONSULTANTS, Definitions.

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N.J. Stat. § 52:27D-130.1

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§ 52:27D-130.1. Construction permit surcharge fee; construction contracted for or conducted by municipality; prohibition

Notwithstanding the provisions of the “State Uniform Construction Code Act,” P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.), or any rule or regulation adopted pursuant thereto, to the contrary, no municipality shall be charged a construction permit surcharge fee for construction contracted for or conducted by the municipality within its boundaries when the municipality itself is the enforcing agency.

History

L. 1982, c. 73, 1, eff. July 21, 1982.

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N.J. Stat. § 52:27D-130.2

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§ 52:27D-130.2. Construction permit for installation or alteration of solar energy heating or cooling system; municipal fee or charge; prohibition

No person shall be required to pay a municipal fee or charge in order to secure a construction permit for the installation or alteration of a solar energy heating or cooling system in any building or part thereof. As used in this act, “solar energy heating and cooling system” means a system which is certified as eligible for an exemption from property taxation by the Department of Community Affairs pursuant to P.L. 1977, c. 256 ([C. 54:4-3.113](#) et seq.).

History

L. 1985, c. 85, 1, eff. March 26, 1985.

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N.J. Stat. § 52:27D-130.3

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§ 52:27D-130.3. State department or agency; fee; prohibition

The installation or alteration of a solar energy heating or cooling system in any building shall not be subject to any fee, including any surcharge or training fee, imposed by any department or agency of State government pursuant to any law, or rule or regulation.

History

L. 1985, c. 85, 2, eff. March 26, 1985.

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N.J. Stat. § 52:27D-130.4

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§ 52:27D-130.4. Rules, regulations adopted by DHSS relative to contaminated property; certification; definitions; enforcement

- a. Within 12 months after the effective date [January 11, 2007] of this act, the Department of Health and Senior Services shall adopt rules and regulations pursuant to the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.) that establish: (1) procedures for the evaluation and assessment of the interior of buildings that are to be used for child care centers licensed pursuant to the provisions of P.L.1983, c.492 ([C.30:5B-1](#) et seq.), or for educational purposes; and (2) standards that establish maximum contaminant levels for building interiors to be used for child care centers licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes, that are protective of the public health and safety. The rules and regulations adopted pursuant to this subsection shall be protective of the health of children and infants, and shall account for the difference in rate of the absorption, metabolism, and excretion of compounds between adults and infants and children.
- b. The department shall establish an application process for the certification issued pursuant to subsection c. of this section. Every application for a certification shall be accompanied by a fee, established in accordance with a fee schedule adopted by the department, by rule or regulation, reflecting the costs of reviewing and processing the application. Fees collected pursuant to this subsection shall be deposited into a separate account, and shall be dedicated for use by the department solely for the purposes of administering and enforcing the provisions of this section and any rules or regulations adopted pursuant thereto.
- c. Upon a demonstration to the department by the applicant that the procedures established pursuant to subsection a. of this section for the evaluation and assessment of building interiors have been followed, and that there are no contaminants present in the building that exceed the maximum contaminant levels established in subsection a. of this section, the department shall issue a certification that the building interior is safe for use as a child care center, or for educational purposes.
- d. As used in this section: “contaminant” shall have the same meaning as provided in section 23 of [P.L.1993, c.139 \(C.58:10B-1\)](#); and “educational purposes” shall mean for the purposes of a private school or public school as defined in [N.J.S.18A:1-1](#), or a charter school as defined pursuant to [P.L.1995, c.426 \(C.18A:36A-1](#) et seq.).
- e. Whenever the Commissioner of Health and Senior Services finds that a person has violated any provision of this section, or any rule or regulation adopted pursuant thereto, or knowingly makes a false statement, representation, or certification in any application, record, or other document filed or required to be maintained pursuant to this section, the commissioner may assess a civil administrative penalty of not more than \$25,000 for a first offense, and not more than \$50,000 for the second and every subsequent offense. Each day that a violation continues shall constitute an additional, separate, and distinct offense. The department may compromise and settle any claim for a penalty pursuant to this subsection in an amount as the department determines is appropriate and equitable under the circumstances.

§ 52:27D-130.4. Rules, regulations adopted by DHSS relative to contaminated property; certification; definitions; enforcement

Any penalty imposed pursuant to this subsection may be collected, with costs, in a summary proceeding pursuant to the "Penalty Enforcement Law of 1999," [P.L.1999, c.274 \(C.2A:58-10](#) et seq.). The Superior Court and the municipal court shall have jurisdiction to enforce the provisions of the "Penalty Enforcement Law of 1999" in connection with this section.

History

L. [2007, c. 1](#), § 1, eff. Jan. 11, 2007.

Annotations

Notes

OLS Corrections:

Pursuant to [R.S.1:3-1](#), the Office of Legislative Services, through its Legislative Counsel and with the concurrence of the Attorney General, substituted "child care centers" for "a child care center" in subsection a.(1) of L. [2007, c. 1](#), § 1.

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Research References & Practice Aids

Cross References:

Issuance of construction permit for child care, educational center for certain locations; certification required; remediation, see [52:27D-130.5](#).

Certification of documents by site remediation professional, see [58:10C-14](#).

Administrative Code:

[N.J.A.C. 7:26C-1.2](#) (2013), CHAPTER ADMINISTRATIVE REQUIREMENTS FOR THE REMEDIATION OF CONTAMINATED SITES, General requirements.

[N.J.A.C. 7:26E-3.1](#) (2013), CHAPTER TECHNICAL REQUIREMENTS FOR SITE REMEDIATION, Preliminary assessment.

[N.J.A.C. 7:26E-3.14](#) (2013), CHAPTER TECHNICAL REQUIREMENTS FOR SITE REMEDIATION, Preliminary assessment and site investigation regulatory timeframes.

[N.J.A.C. 8:50](#) (2013), CHAPTER STANDARDS FOR INDOOR ENVIRONMENT CERTIFICATION AND FOR LICENSURE OF INDOOR ENVIRONMENTAL CONSULTANTS, 8, Chapter 50 — Chapter Notes.

[N.J.A.C. 8:50-1.1](#) (2013), CHAPTER STANDARDS FOR INDOOR ENVIRONMENT CERTIFICATION AND FOR LICENSURE OF INDOOR ENVIRONMENTAL CONSULTANTS, Purpose.

§ 52:27D-130.4. Rules, regulations adopted by DHSS relative to contaminated property; certification; definitions; enforcement

[N.J.A.C. 8:50-5.1](#) (2013), CHAPTER STANDARDS FOR INDOOR ENVIRONMENT CERTIFICATION AND FOR LICENSURE OF INDOOR ENVIRONMENTAL CONSULTANTS, Scope of subchapter.

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§ 52:27D-130.5. Issuance of construction permit for child care, educational center for certain locations; certification required; remediation

a.

(1) No construction permit shall be issued pursuant to section 12 of P.L.1975, c.217 ([C.52:27D-130](#)) for the reconstruction, alteration, conversion, or repair of any building or structure to be used for a child care center licensed pursuant to the provisions of P.L.1983, c.492 ([C.30:5B-1](#) et seq.), or for educational purposes, if that building or structure was previously used for industrial, storage, or high hazard purposes, as a nail salon, dry cleaning facility, or gasoline station, or is on a contaminated site, on a site on which there is suspected contamination, or on an industrial site that is subject to the provisions of the "Industrial Site Recovery Act," P.L.1983, c.330 ([C.13:1K-6](#) et al.), except upon the submission of the certification issued by the Department of Health pursuant to section 1 of [P.L.2007, c.1 \(C.52:27D-130.4\)](#) to the construction official by the applicant, that the building or structure has been evaluated and assessed for contaminants, and that the building or structure is safe for use as a child care center licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes.

(2) Notwithstanding the provisions of paragraph (1) of this subsection to the contrary, a construction permit may be issued for the construction or alteration of any building or structure to be used as a child care center licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes, if the construction permit is necessary to perform work in the building or structure in order to comply with the rules and regulations adopted pursuant to subsection a. of section 1 of [P.L.2007, c.1 \(C.52:27D-130.4\)](#) and obtain the certification issued by the Department of Health pursuant to subsection c. of section 1 of [P.L.2007, c.1 \(C.52:27D-130.4\)](#).

A construction permit issued pursuant to this paragraph shall be limited to the construction or alterations necessary to comply with the rules and regulations adopted pursuant to subsection a. of section 1 of [P.L.2007, c.1 \(C.52:27D-130.4\)](#).

(3) The appropriate enforcing agency shall not grant a certificate of occupancy for any building or structure to be used as a child care center licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes, that received a construction permit pursuant to paragraph (2) of this subsection, except upon the submission of the certification issued by the Department of Health pursuant to subsection c. of section 1 of [P.L.2007, c.1 \(C.52:27D-130.4\)](#) to the construction official by the applicant, that the building or structure has been evaluated and assessed for contaminants, and that the building or structure is safe for use as a child care center licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes.

b.

(1) No construction permit shall be issued for the construction or alteration of any building or structure to be used as a child care center licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes, on a site that was previously used for industrial, storage, or high hazard purposes, as a nail salon, dry cleaning facility, or gasoline station, or on a contaminated site, on a site

§ 52:27D-130.5. Issuance of construction permit for child care, educational center for certain locations; certification required; remediation

on which there is suspected contamination, or on an industrial site that is subject to the provisions of the “Industrial Site Recovery Act,” P.L.1983, c.330 ([C.13:1K-6](#) et al.), except after submission by the applicant to the construction official of documentation sufficient to establish that the Department of Environmental Protection has approved a remedial action workplan for the entire site or that the site has been remediated consistent with the remediation standards and other remediation requirements established pursuant to section 35 of [P.L.1993, c.139](#) ([C.58:10B-12](#)) and a no further action letter has been issued by the Department of Environmental Protection for the entire site.

(2) Notwithstanding the provisions of paragraph (1) of this subsection to the contrary, a construction permit may be issued for the construction or alteration of any building or structure to be used as a child care center licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes, on a site that was previously used for industrial, storage, or high hazard purposes, as a nail salon, dry cleaning facility, or gasoline station, or on a contaminated site, on a site on which there is suspected contamination, or on an industrial site that is subject to the provisions of the “Industrial Site Recovery Act,” P.L.1983, c.330 ([C.13:1K-6](#) et al.), if the construction permit is necessary to remediate the site consistent with the remediation standards and other remediation requirements established pursuant to section 35 of [P.L.1993, c.139](#) ([C.58:10B-12](#)) in order to obtain a no further action letter from the Department of Environmental Protection.

A construction permit issued pursuant to this paragraph shall be limited to the construction or alterations necessary to develop a remedial action workplan to be submitted to the Department of Environmental Protection for approval or to remediate the site consistent with the remediation standards and other remediation requirements established pursuant to section 35 of [P.L.1993, c.139](#) ([C.58:10B-12](#)) and receive a no further action letter from the Department of Environmental Protection.

(3) The appropriate enforcing agency shall not grant a certificate of occupancy for any building or structure to be used as a child care center licensed pursuant to the provisions of P.L.1983, c.492, or for educational purposes, that received a construction permit pursuant to paragraph (2) of this subsection, except after submission by the applicant to the construction official of documentation sufficient to establish that the site has been remediated consistent with the remediation standards and other remediation requirements established pursuant to section 35 of [P.L.1993, c.139](#) ([C.58:10B-12](#)) and a no further action letter has been issued by the Department of Environmental Protection for the entire site.

c. As used in this section: “contaminated site” means any real property on which there is contamination; “contamination,” “remediation” or “remediate,” and “no further action letter” shall have the same meanings as provided in section 23 of [P.L.1993, c.139](#) ([C.58:10B-1](#)); and “educational purposes” means for the purposes of a private school or public school as defined in [N.J.S.18A:1-1](#), or a charter school as defined pursuant to [P.L.1995, c.426](#) ([C.18A:36A-1](#) et seq.).

History

L. [2007, c. 1](#), § 2, eff. Jan. 11, 2007; amended [2012, c. 17](#), § 421, eff. June 29, 2012.

Annotations

Notes

Amendment Note:

§ 52:27D-130.5. Issuance of construction permit for child care, educational center for certain locations; certification required; remediation

2012 amendment, by Chapter 17, substituted "Department of Health" for "Department of Health and Senior Services" in a.(1), the first paragraph of a.(2), and in a.(3).

Research References & Practice Aids

Cross References:

Grants to owner of licensed child care center; rules, regulations, see [52:27D-130.7](#).

Administrative Code:

N.J.A.C. 19:31-8.3 (2013), NEW JERSEY ECONOMIC DEVELOPMENT AUTHORITY, Eligibility.

[N.J.A.C. 8:50-4.2](#) (2013), CHAPTER STANDARDS FOR INDOOR ENVIRONMENT CERTIFICATION AND FOR LICENSURE OF INDOOR ENVIRONMENTAL CONSULTANTS, Procedure for issuance of safe building interior certification.

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N.J. Stat. § 52:27D-130.6

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§ 52:27D-130.6. Green building manual, preparation, availability

The Commissioner of Community Affairs is authorized to prepare, in consultation with other State agencies, and make available to the public, a green building manual for the purpose of ensuring that standards are available for those owners and builders who participate in any program that encourages or requires the construction of green buildings. The manual shall include federal guidelines and regulations for energy efficiency in building construction. The manual shall cover residential as well as commercial buildings. For the purposes of this act, “green building” means those building construction practices that significantly reduce or eliminate the negative impact of buildings on the environment and their occupants and may consider, but need not be limited to five broad areas: sustainable site planning; safeguarding water and water efficiency; energy efficiency and renewable energy; conservation of materials and resources; and indoor environmental quality.

History

L. [2007, c. 132](#), § 1, eff. Aug. 6, 2007.

Annotations

Research References & Practice Aids

Cross References:

Long-range facilities plan, see [18A:3B-39](#).

State, county college may enter into certain contracts with a private entity, see [18A:64-85](#).

Credit for qualified business facilities, conditions for eligibility; allowance, see [34:1B-209](#).

Definitions relative to the “Grow New Jersey Assistance Act.”, see [34:1B-243](#).

Incentive grant application form, procedure, see [52:27D-489h](#).

Administrative Code:

N.J.A.C. 19:31-4.4 (2013), NEW JERSEY ECONOMIC DEVELOPMENT AUTHORITY, Application submission requirements for State incentive grants.

§ 52:27D-130.6. Green building manual, preparation, availability

N.J.A.C. 19:31-9.5 (2013), NEW JERSEY ECONOMIC DEVELOPMENT AUTHORITY, Application submission requirements.

N.J.A.C. 19:31-18.5 (2013), NEW JERSEY ECONOMIC DEVELOPMENT AUTHORITY, Application submission requirements.

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N.J. Stat. § 52:27D-130.7

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§ 52:27D-130.7. Grants to owner of licensed child care center; rules, regulations

- a. Notwithstanding any provisions of [P.L.1993, c.139 \(C.58:10B-1](#) et seq.) to the contrary, the New Jersey Economic Development Authority, in conjunction with the Department of Environmental Protection, may provide a grant of \$1,500 from the Hazardous Discharge Site Remediation Fund, established pursuant to section 26 of [P.L.1993, c.139 \(C.58:10B-4\)](#), to the owner or operator of a child care center licensed pursuant to P.L.1983, c.492 ([C.30:5B-1](#) et seq.), or a prospective owner or operator of a child care center who has applied for a license pursuant to P.L.1983, c.492 ([C.30:5B-1](#) et seq.), for the costs of a preliminary assessment performed in order to obtain a no further action letter as required pursuant to the provisions of subsection b. of section 2 of [P.L.2007, c.1 \(C.52:27D-130.5\)](#) or performed as part of the child care center licensing requirements established by the Department of Children and Families.
- b. The New Jersey Economic Development Authority, in the administration of the Hazardous Discharge Site Remediation Fund, shall authorize the Department of Environmental Protection to implement a program for the grants to be awarded pursuant to section a. of this section.
- c. For the purposes of this section, “preliminary assessment” means the same as that term is defined in section 23 of [P.L.1993, c.139 \(C.58:10B-1\)](#).
- d. The Department of Environmental Protection may adopt, pursuant to the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), rules and regulations necessary to effectuate this section.

History

L. [2007, c. 135](#), § 4, eff. Nov. 4, 2007.

Annotations

Notes

Effective Dates:

Section 5 of L. [2007, c. 135](#) provides: “This act shall take effect on the 90th day after the date of enactment, but the Department of Environmental Protection may take such anticipatory administrative action in advance thereof as shall be necessary for the implementation of this act.” Chapter 135, L. 2007, was approved on Aug. 6, 2007.

Research References & Practice Aids

§ 52:27D-130.7. Grants to owner of licensed child care center; rules, regulations

Cross References:

Hazardous Discharge Site Remediation Fund, see [58:10B-4](#).

Financial assistance from remediation fund, see [58:10B-5](#).

Financial assistance and grants from the fund; allocations; purposes, see [58:10B-6](#).

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N.J. Stat. § 52:27D-130.8

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§ 52:27D-130.8. Adoption of ordinance requiring replacement for performance guarantee

The governing body of a municipality may adopt an ordinance requiring a successor developer to furnish a performance guarantee as a replacement for a performance guarantee that was previously accepted in accordance with standards adopted by ordinance and regulations adopted pursuant to section 1 of [P.L.1999, c.68 \(C.40:55D-53a\)](#) and section 41 of P.L.1975, c.291 ([C.40:55D-53](#)) for the purpose of assuring the installation and maintenance of on-tract improvements, and releasing the predecessor obligor and surety, if any, from liability pursuant to its performance guarantee.

History

L. [2013, c. 123](#), § 6, eff. Aug. 9, 2013.

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N.J. Stat. § 52:27D-131

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§ 52:27D-131. Construction permits; application, approval, expiration, cancellation, extension

a. The enforcing agency shall examine each application for a construction permit. If the application conforms with this act, the code, and the requirements of other applicable laws and ordinances, the enforcing agency shall approve the application and shall issue a construction permit to the applicant. Every application for a construction permit shall be granted, in whole or in part, or denied within 20 business days, unless the application is limited to the construction of a ramp designed to provide wheelchair access to a one or two-unit dwelling, and required for such access by a resident of the dwelling, in which case the permit shall be granted or denied within five business days. If application is denied in whole or in part, the enforcing agency shall set forth the reasons therefor in writing. If an enforcing agency fails to grant, in whole or in part, or deny an application for a construction permit within the period of time prescribed herein, such failure shall be deemed a denial of the application for purposes of an appeal to the construction board of appeals unless such period of time has been extended with the consent of the applicant. The enforcing agency may approve changes in plans and specifications previously approved by it, if the plans and specifications when so changed remain in conformity with law. Except as otherwise provided in this act or the code, the construction or alteration of a building or structure shall not be commenced until a construction permit has been issued. The construction of a building or structure shall be in compliance with the approved application for a construction permit; and the enforcing agency shall insure such compliance in the manner set forth in section 14 [C.52:27D-132] of this act.

The commissioner, after consultation with the code advisory board, may, for certain classes or types of occupancy posing special or unusual hazards to public safety, establish regulations designating the department as the enforcing agency for purposes of approving plans and specifications. A municipal enforcing agency shall not grant an occupancy permit for any such class or type of construction unless the applicant submits appropriate plans and specifications certified or approved by the department. Upon submission by an applicant of such certified approved plans and specifications, the enforcing agency shall recognize the approval when deciding whether to approve the application for a construction permit.

b. A construction permit, issued in accordance with the foregoing provisions, pursuant to which no construction has been undertaken above the foundation walls within one year from the time of issuance, shall expire.

c. The enforcing agency may revoke or cancel a construction permit in the event the project for which the permit is obtained is not completed by the third anniversary of the date of issuance of the construction permit. Notwithstanding the provisions of any other law, rule or regulation to the contrary, the enforcing agency may revoke or cancel a construction permit in effect on the effective date of [P.L.2001, c.457 \(C.52:27D-131.1](#) et al.), if the project for which the construction permit was obtained is not completed by the third anniversary of the effective date of [P.L.2001, c.457 \(C.52:27D-131.1](#) et al.).

d. If the project for which the permit is obtained is not completed by a deadline set forth in this section, the permittee may submit a request for an extension of the permit to the enforcing agency for review. The enforcing agency may extend the permit for a period of one year. Approval of the extension shall not be

§ 52:27D-131. Construction permits; application, approval, expiration, cancellation, extension

unreasonably withheld. Denial of a request for an extension may be appealed to the county construction board of appeals established pursuant to section 9 of P.L.1975, c.217 ([C.52:27D-127](#)). If a project is not completed within the deadline set forth in this section, the enforcing agency shall take all appropriate action up to and including demolition of the uncompleted structure.

The provisions of this subsection shall not apply to a permit obtained: (1) to construct improvements to the interior of a residential property in which the permittee is currently residing that are not visible from the outside of the residential property, (2) for any building of which the exterior and all required site improvements have been fully constructed, or (3) for a project while that project is under the control of a mortgagee in possession.

The enforcing agency may suspend, revoke or cancel a construction permit in case of neglect or failure to comply with the provisions of this act or the code, or upon a finding by it that a false statement or representation has been made in the application for the construction permit.

History

L. 1975, c. 217, § 13; amended [2001, c. 457](#), § 1, eff. Jan. 14, 2002; [2015, c. 159](#), § 1, effective December 2, 2015.

Annotations

Notes

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Amendment Notes

2015 amendment, by Chapter 159, added “unless the application is limited to the construction of a ramp designed to provide wheelchair access to a one or two-unit dwelling, and required for such access by a resident of the dwelling, in which case the permit shall be granted or denied within five business days” in the third sentence of the first paragraph of a.

CASE NOTES

Constitutional Law: Bill of Rights: Fundamental Rights: Procedural Due Process: Scope of Protection

Constitutional Law: Substantive Due Process: Scope of Protection

Governments: Local Governments: Licenses

Governments: State & Territorial Governments: Relations With Governments

Real Property Law: Zoning & Land Use: Constitutional Limits

Constitutional Law: Bill of Rights: Fundamental Rights: Procedural Due Process: Scope of Protection

Property owner's [USCS Const. Amend. 14](#) procedural due process claim failed as a matter of law; defendants' delay in issuing construction permits did not impact the owner's procedural rights because, pursuant to [N.J. Stat.](#)

§ 52:27D-131. Construction permits; application, approval, expiration, cancellation, extension

[Ann. § 52:27D-131\(a\)](#) and N.J. Admin. Code tit. 5, § 23A-2.16(a), the owner could have filed an administrative appeal when defendants failed to act on its construction permit applications within 20 days after they were filed. [Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Constitutional Law: Substantive Due Process: Scope of Protection

Property owner failed to show that its substantive due process rights were violated by a 65-calendar day delay in issuing construction permits because no conscience shocking conduct on defendants' part was shown; the 65-day delay was not excessive and did not, by itself, shock the conscience, and the fact that one defendant, a code enforcement department director, may have had improper motives for delaying the issuance of the permits was not relevant for purposes of establishing whether or not defendants' governmental conduct was so egregious as to shock the conscience. [Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Governments: Local Governments: Licenses

Property owner's [USCS Const. Amend. 14](#) procedural due process claim failed as a matter of law; defendants' delay in issuing construction permits did not impact the owner's procedural rights because, pursuant to [N.J. Stat. Ann. § 52:27D-131\(a\)](#) and N.J. Admin. Code tit. 5, § 23A-2.16(a), the owner could have filed an administrative appeal when defendants failed to act on its construction permit applications within 20 days after they were filed. [Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Property owner failed to show that its substantive due process rights were violated by a 65-calendar day delay in issuing construction permits because no conscience shocking conduct on defendants' part was shown; the 65-day delay was not excessive and did not, by itself, shock the conscience, and the fact that one defendant, a code enforcement department director, may have had improper motives for delaying the issuance of the permits was not relevant for purposes of establishing whether or not defendants' governmental conduct was so egregious as to shock the conscience. [Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Governments: State & Territorial Governments: Relations With Governments

Municipal ordinance that required proof of payment of taxes and assessments before a construction permit or certificate of occupancy could be issued was preempted by provisions of the State Uniform Construction Code Act, [N.J. Stat. Ann. §§ 52:27D-120, 52:27D-130, 52:27D-131, 52:27D-133](#). [Home Builders League of South Jersey, Inc. v. Evesham, 174 N.J. Super. 252, 416 A.2d 81, 1980 N.J. Super. LEXIS 560 \(Law Div. 1980\)](#).

Real Property Law: Zoning & Land Use: Constitutional Limits

Property owner's [USCS Const. Amend. 14](#) procedural due process claim failed as a matter of law; defendants' delay in issuing construction permits did not impact the owner's procedural rights because, pursuant to [N.J. Stat. Ann. § 52:27D-131\(a\)](#) and N.J. Admin. Code tit. 5, § 23A-2.16(a), the owner could have filed an administrative appeal when defendants failed to act on its construction permit applications within 20 days after they were filed. [Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Property owner failed to show that its substantive due process rights were violated by a 65-calendar day delay in issuing construction permits because no conscience shocking conduct on defendants' part was shown; the 65-day delay was not excessive and did not, by itself, shock the conscience, and the fact that one defendant, a code enforcement department director, may have had improper motives for delaying the issuance of the permits was not relevant for purposes of establishing whether or not defendants' governmental conduct was so egregious as to

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shock the conscience. [Cherry Hill Towers, L.L.C. v. Twp. of Cherry Hill, 407 F. Supp. 2d 648, 2006 U.S. Dist. LEXIS 230 \(D.N.J. 2006\)](#).

Research References & Practice Aids

Cross References:

Inapplicability of certain provisions of law imposing fee upon developer of certain non-residential property, see [40:55D-8.6](#).

Administrative Code:

[N.J.A.C. 5:23-4.9](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, State enforcing agencies—establishment.

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§ 52:27D-131.1. Removal, demolition of certain building, structure

- a. If the owner of a building or structure fails to comply with a removal or demolition order issued by an enforcing agency under authority of [P.L. 2001, c. 457 \(C. 52:27D-131.1](#) et al.) or of P.L. 1975, c. 217 ([C. 52:27D-119](#) et seq.), the enforcing agency may cause such building or structure to be removed or demolished or may notify the governing body of the need to contract for the removal or demolition thereof in accordance with the provisions of the “Local Public Contracts Law,” P.L. 1971, c. 198 ([C. 40A:11-1](#) et seq.). Such removal or demolition shall include the clearance, and any necessary leveling, of the site.
- b. The cost of any such removal or demolition, together with the cost of filing legal papers, expert witnesses’ fees, search fees and advertising charges incurred in the course of any proceeding taken under [P.L. 2001, c. 457 \(C. 52:27D-131.1](#) et al.) or under P.L. 1975, c. 217 ([C. 52:27D-119](#) et seq.), less any proceeds received by the enforcing agency from the sale of the materials of the building or structure, shall be a municipal lien against the real property upon which such cost was incurred. In the event that costs were paid by any governmental entity other than the municipality, the lien shall be assigned to that governmental entity. The lien shall be filed and shall be enforceable in the same manner as are other municipal liens.

History

L. [2001, c. 457](#), § 2, eff. Jan. 14, 2002.

Annotations

Research References & Practice Aids

Cross References:

Construction permits; application, approval, expiration, cancellation, extension, see [52:27D-131](#).

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N.J. Stat. § 52:27D-131.2

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§ 52:27D-131.2. Short title

[P.L.2024, c.58](#)([C.52:27D-131.2](#) et seq.) shall be known and may be cited as the “New Jersey Design Professional Self-Certification Act.”

History

L. [2024, c. 58](#), § 1, effective December 1, 2024.

Annotations

Notes

Editor's Notes

Section 7 of L. [2024, c. 58](#) provides: “The Commissioner of Community Affairs shall, in accordance with the ‘Administrative Procedure Act,’ P.L.1968, c.410 ([C.52:14B-1](#) et seq.), adopt rules and regulations as necessary to implement the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.).”

Effective Dates

Section 8 of L. [2024, c. 58](#) provides: “This act shall take effect on the first day of the fourth month next following enactment, except that the commissioner may take anticipatory administrative action in advance necessary to effectuate the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.).” Chapter 58, L. 2024, was approved on Aug. 22, 2024.

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N.J. Stat. § 52:27D-131.3

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§ 52:27D-131.3. Definitions

As used in [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.):

“Architect” means an individual who, through education, training, and experience, is skilled in the art and science of building design and has been licensed by the New Jersey State Board of Architects to practice architecture in the State of New Jersey.

“Commissioner” means the Commissioner of Community Affairs.

“Department” means the Department of Community Affairs.

“Design professional” means an architect or professional engineer.

“Enforcing agency” means the same as the term is defined in section 3 of P.L.1975, c.217 ([C.52:27D-121](#)). “Enforcing agency” shall also mean the commissioner, in municipalities for which the commissioner has assumed the task of administering and enforcing the State Uniform Construction Code pursuant to section 10 of P.L.1975, c.217 ([C.52:27D-128](#)).

“Professional engineer” means a person who is licensed by the State Board of Professional Engineers and Land Surveyors to practice engineering in the State of New Jersey.

“Project” means the work identified in a construction permit application and accompanying plans.

“Qualified design professional” means a design professional who satisfies the requirements established pursuant to subsection e. of section 3 of [P.L.2024, c.58](#) ([C.52:27D-131.4](#)), and has not been excluded, suspended, or otherwise sanctioned by the department pursuant to section 5 of [P.L.2024, c.58](#) ([C.52:27D-131.6](#)).

“Qualified design professional of record” means the qualified design professional who prepared or supervised the preparation of an application for a construction permit and the plans and specifications submitted therewith filed with the enforcing agency pursuant to the self-certification program established pursuant to section 3 of [P.L.2024, c.58](#) ([C.52:27D-131.4](#)).

“Self-certification” or “self-certified” means a qualified design professional’s submission to an enforcing agency of an application for a construction permit and the associated plans and specifications submitted together with a design professional of record self-certification form, as specified in section 4 of [P.L.2024, c.58](#) ([C.52:27D-131.5](#)).

“Self-certification program” or “program” means the program established pursuant to section 3 of [P.L.2024, c.58](#) ([C.52:27D-131.4](#)), requiring an enforcing agency to accept an application for a construction permit and the associated plans and specifications that have been self-certified by a qualified design professional.

“Supervisory check” means the enforcing agency’s acknowledgement of receipt of all materials required to support issuance of a construction permit pursuant to the State Uniform Construction Code.

History

L. [2024, c. 58](#), § 2, effective December 1, 2024.

Annotations

Notes

Editor's Notes

Section 7 of L. [2024, c. 58](#) provides: "The Commissioner of Community Affairs shall, in accordance with the 'Administrative Procedure Act,' P.L.1968, c.410 ([C.52:14B-1](#) et seq.), adopt rules and regulations as necessary to implement the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.)."

Effective Dates

Section 8 of L. [2024, c. 58](#) provides: "This act shall take effect on the first day of the fourth month next following enactment, except that the commissioner may take anticipatory administrative action in advance necessary to effectuate the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.)." Chapter 58, L. 2024, was approved on Aug. 22, 2024.

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§ 52:27D-131.4. Self-certification program established, design professionals

a. The Commissioner of Community Affairs shall establish a self-certification program through which a qualified design professional shall be permitted to:

- (1) take responsibility for a project's compliance with the State Uniform Construction Code, and
- (2) self-certify that an application for a construction permit and the plans and specifications submitted therewith comply with the State Uniform Construction Code and the requirements of other applicable laws.

b. Self-certification pursuant to [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.) shall be available for repair, renovation, alteration, and reconstruction projects, as defined by the State Uniform Construction Code, in the following use groups with the following square footage limitations:

- (1) Group B occupancies up to 9,000 square feet;
- (2) Group F-1 occupancies up to 8,500 square feet;
- (3) Group F-2 occupancies up to 13,000 square feet;
- (4) Group M occupancies up to 9,000 square feet;
- (5) Group R-1 occupancies up to 7,000 square feet;
- (6) Group R-2 occupancies up to 7,000 square feet;
- (7) Group R-3 occupancies up to 4,800 square feet;
- (8) Group R-4 occupancies up to 7,000 square feet;
- (9) Group R-5 occupancies up to 4,800 square feet;
- (10) Group S-1 occupancies up to 9,000 square feet; and
- (11) Group S-2 occupancies up to 13,500 square feet.

c. The commissioner, by adoption of regulations after consultation with the code advisory board, may extend authorization to participate in the self-certification program to projects in addition to those specified in subsection b. of this section, including, but not limited to, projects involving: additional categories of work, additional use groups, more extensive square footage limitations, and projects and submittals specified in subsection d. of this section.

d. Self-certification pursuant to [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.) shall not be available for any of the following types of projects and submittals, unless the commissioner, by regulation, extends authorization for that type of project or submittal in the self-certification program:

- (1) projects where plan review is reserved solely to the Department of Community Affairs;
- (2) projects that include a new commercial kitchen;

§ 52:27D-131.4. Self-certification program established, design professionals

- (3) projects that include new electrical service exceeding 400 amps;
 - (4) projects that include structural alterations involving lateral design, or any project that requires a special inspection pursuant to the State Uniform Construction Code; and
 - (5) prototype plan submittals.
- e. The enforcing agency shall, within one to five calendar days following receipt of a self-certified construction permit application and accompanying plans and specifications, conduct a supervisory check of the application materials to ascertain receipt of all materials necessary to support issuance of the construction permit and, upon acknowledgement of receipt of those materials, issue a construction permit. A permit issued under the self-certification program shall have the same force and effect as a permit issued by an enforcing agency after full examination and approval of the construction documents. Except as otherwise provided in the State Uniform Construction Code, or in the rules of the department, an approved application for a construction permit, plans, or specifications or the approval of similar construction documents, shall be deemed to refer to accepted, self-certified construction documents or to the acceptance of construction documents, as applicable.
- f. The commissioner shall establish requirements for design professionals to qualify to participate in the self-certification program, which shall include, but not be limited to:
- (1) current licensure as a design professional;
 - (2) current licensure by the department to inspect high-rise and hazardous structures for the applicable State Uniform Construction Code subcode jurisdiction;
 - (3) authorization granted by the department; and
 - (4) proof of, or a certificate demonstrating, professional liability insurance coverage, issued by an insurer authorized to provide insurance coverage in the State of New Jersey, which provides coverage with limits that are no less than \$500,000 per claim, and \$1,000,000 in the aggregate, for all claims made during the policy period.
- g. The self-certification program shall include a condition that the qualified design professional of record remain with the project until the enforcing agency signs off on the project through the issuance of a letter of completion or certificate of approval. If the qualified design professional of record withdraws from a project before the enforcing agency's issuance of a letter of completion or certificate of approval, all work shall cease and no permit, letter of completion, or certificate of approval shall be issued until:
- (1) a successor qualified design professional is designated as the qualified design professional of record and satisfies the requirements set forth in this section; and
 - (2)
 - (a) the successor qualified design professional submits a professional certification confirming the qualified design professional's concurrence with the construction documents accepted by the enforcing agency; or
 - (b) new construction documents are approved or accepted by the enforcing agency.

History

L. [2024, c. 58](#), § 3, effective December 1, 2024.

Annotations

Notes

§ 52:27D-131.4. Self-certification program established, design professionals

Editor's Notes

Section 7 of L. [2024, c. 58](#) provides: "The Commissioner of Community Affairs shall, in accordance with the 'Administrative Procedure Act,' P.L.1968, c.410 ([C.52:14B-1](#) et seq.), adopt rules and regulations as necessary to implement the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.)."

Effective Dates

Section 8 of L. [2024, c. 58](#) provides: "This act shall take effect on the first day of the fourth month next following enactment, except that the commissioner may take anticipatory administrative action in advance necessary to effectuate the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.)." Chapter 58, L. 2024, was approved on Aug. 22, 2024.

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§ 52:27D-131.5. Design professional, self-certification form, established; contents, website

a. The commissioner shall establish and promulgate a design professional of record self-certification form and provide online access to the form through the department's Internet website. A qualified design professional of record shall complete and submit the form to the enforcing agency, together with submission of a self-certified construction permit application and accompanying plans and specifications. The form shall include:

(1) a design professional of record self-certification statement, pursuant to subsection b. of this section; and

(2) the qualified design professional of record's certification and attestation that:

(a) the qualified design professional of record shall take all measures necessary to correct a false or inaccurate statement provided to the enforcing agency in the permit application or plans and specifications submitted therewith immediately after the qualified design professional of record becomes aware of the false or inaccurate statement, regardless of whether the false or inaccurate statement was made by the qualified design professional of record or the design professional's agent or employee;

(b) the qualified design professional of record acknowledges that the enforcing agency's issuance of a permit under the self-certification program is reliant upon the truth and accuracy of the design professional's certifications set forth in the design professional of record self-certification;

(c) the qualified design professional of record agrees that if the enforcing agency determines that a submitted permit application, plans, and specifications do not conform to the requirements of the State Uniform Construction Code or other applicable law, the qualified design professional of record, in a timely manner, shall bring the submitted permit, plans, specifications, and all construction undertaken thereunder into conformance with the requirements of the State Uniform Construction Code and other applicable law and shall take all remedial measures within the qualified design professional of record's control;

(d) the qualified design professional of record acknowledges that failure, prior to the final inspection of the project, of the design professional to bring the submitted permit, plans, specifications, and all construction undertaken pursuant thereto into conformity with the requirements of the State Uniform Construction Code and other applicable law and failure to take all reasonably necessary remedial measures, within the design professional's control, to bring the submitted permit, plans, specifications, and all construction undertaken pursuant thereto into compliance with the State Uniform Construction Code and other applicable law may result in revocation of the qualified design professional of record's privileges under the self-certification program and may result in notification of the revocation to the appropriate State professional licensing board; and

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- (e) the qualified design professional agrees to comply with additional certification requirements imposed pursuant to rule or regulation adopted by the commissioner.

b. In order to support issuance of a construction permit under the self-certification program, at the time of submission of a design professional of record self-certification form and a self-certified construction permit application, plans, and specifications to the enforcing agency, the qualified design professional of record shall submit a design professional of record self-certification statement certifying that:

- (1) the qualified design professional has been a licensed architect or professional engineer for at least three years and is licensed and certified in the State of New Jersey;

- (2) within the preceding five-year period, the qualified design professional has not been convicted or found liable of:

- (a) knowingly making a false statement of material fact on, or in connection with, a construction permit application;

- (b) knowingly submitting, in support of a construction permit application, a document containing false or fraudulent information; or

- (c) knowingly affixing a false signature to a construction permit application;

- (3) submission to an enforcing agency of a permit application, plans, and specifications, upon which the stamp of the qualified design professional has been affixed, indicates that each page of the application:

- (a) was prepared by, under the direct supervision of, or reviewed by, the qualified design professional of record;

- (b) is complete; and

- (c) as of the date of submission, the permit application, plans, and specifications comply with the requirements of the State Uniform Construction Code and other applicable law;

- (4) the permit application, plans, specifications, and all technical submissions made by the qualified design professional of record in connection with the self-certified project were prepared in accordance with and meet the standard of care required of the profession; and

- (5) all information and assertions made in support of a permit application by the qualified design professional of record in the permit application, plans, and specifications are true and correct.

c. The commissioner shall establish and promulgate on the department's Internet website an owner certification statement, which, for each project, the owner responsible for the work identified in the permit application shall certify that the owner:

- (1) authorized the work of all professionals and consultants named in the permit application and accompanying plans; and

- (2) shares joint responsibility for ensuring compliance with the State Uniform Construction Code.

d. The commissioner shall establish and promulgate on the department's Internet website, an owner hold harmless letter, which, for each project, the owner shall sign, date, agree to, and furnish to the qualified design professional of record, who shall submit the letter to the enforcing agency, and which shall provide that the owner agrees:

- (1) to protect, defend, indemnify, and hold harmless the municipality and the State of New Jersey, and their officers, representatives, managers, agents, and employees, against any and all claims, liabilities, judgments, costs, expenses, delays, demands, or injuries arising out of or in any way connected with the design, construction, State Uniform Construction Code compliance review, or issuance of a permit for the project identified in the permit application; and

- (2) that if any component of construction is found to not conform to the requirements of the State Uniform Construction Code, any other applicable law, or any permit issued under the self-certification

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program, the owner shall, without undue delay, remove or modify, at the owner's own expense, the nonconforming component or components of construction.

History

L. [2024, c. 58](#), § 4, effective December 1, 2024.

Annotations

Notes

Editor's Notes

Section 7 of L. [2024, c. 58](#) provides: "The Commissioner of Community Affairs shall, in accordance with the 'Administrative Procedure Act,' P.L.1968, c.410 ([C.52:14B-1](#) et seq.), adopt rules and regulations as necessary to implement the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.)."

Effective Dates

Section 8 of L. [2024, c. 58](#) provides: "This act shall take effect on the first day of the fourth month next following enactment, except that the commissioner may take anticipatory administrative action in advance necessary to effectuate the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.)." Chapter 58, L. 2024, was approved on Aug. 22, 2024.

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N.J. Stat. § 52:27D-131.6

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§ 52:27D-131.6. Community Affairs Department, enforcing agency, reasonable oversight

a. The department may review any action performed by an enforcing agency to ensure reasonable oversight of a project.

b.

(1) All qualified design professionals shall be subject to random audit by the department to determine whether the application, plans, and specifications for their projects comply with the requirements of the State Uniform Construction Code, the provisions of [P.L.2024, c.58 \(C.52:27D-131.2 et seq.\)](#), and other applicable laws. The department shall design and implement audits to measure the efficiency of the self-certification program and compliance with the provisions of [P.L.2024, c.58 \(C.52:27D-131.2 et seq.\)](#).

(2) The department shall provide written notice of the results of an audit to the qualified design professional of record. The notification shall provide a summary of the audit results and direct the qualified design professional to address all violations of the State Uniform Construction Code found in the audit by a specific date. The specified date shall be reasonable based upon the type of violations and the nature of the corrections that need to be made. Failure to submit required corrections may result in actions specified in subsection c. of this section.

(3) The commissioner may charge a reasonable fee to cover the costs associated with the performance of the audit.

c.

(1) The commissioner may exclude, suspend, or otherwise sanction a qualified design professional for cause, after providing the opportunity for a hearing, for failure to submit required corrections pursuant to subsection b. of this section. A qualified design professional shall not be eligible to participate in the self-certification program during any period of probation imposed as a sanction by the New Jersey State Board of Architects or the State Board of Professional Engineers and Land Surveyors.

(2) The commissioner, after providing a qualified design professional the opportunity for an administrative hearing, shall exclude or suspend a qualified design professional from participating in the self-certification program, or otherwise condition the professional's eligibility to participate in the program, upon determining that the professional:

(a) knowingly or negligently submitted a self-certified permit application or construction document that contains false information or is not in compliance with all applicable provisions of law, or

(b) submitted two self-certified permit applications or construction documents, within a 12-month period, which contained material errors that resulted in revocation of construction permits or otherwise demonstrate incompetence or a lack of knowledge of applicable laws.

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(3) A qualified design professional who is excluded from the program pursuant to this section may apply for reinstatement no sooner than one year after the date of exclusion. An applicant who the commissioner determines is qualified to resume participation in the program shall be on probation for a period of not less than six months after reinstatement and, during that time, as a condition of such reinstatement, shall attend one or more trainings or continuing education courses approved by the department and related to compliance with the State Uniform Construction Code and related laws and rules. The design professional shall submit satisfactory proof of the successful completion of the training or continuing education courses to the department.

(4) The commissioner shall revoke, after the opportunity for an administrative hearing, for a period of not less than five years, the self-certification privileges of a qualified design professional who, while on probation, professionally certifies an application, plan, construction documents, or other document that contains materially false information or is not in material compliance with all applicable provisions of law or who otherwise demonstrates gross negligence, incompetence, or a total disregard of applicable laws or standards.

(5) Nothing in this subsection shall be construed to limit the commissioner's power to adopt rules, pursuant to section 7 of [P.L.2024, c.58](#) (C.52:27D-131.8), that include additional grounds to limit the self-certification privileges of, or otherwise sanction, a qualified design professional, after affording the professional an opportunity for a hearing, when the commissioner determines that the design professional knowingly or negligently submitted permit applications or other documents to the enforcing agency that contained materially false information or were not in material compliance with all applicable provisions of law or that otherwise demonstrate gross negligence, incompetence, or a total disregard of applicable law or standards.

d. The department shall create and maintain a searchable database on the department's Internet website of all qualified design professionals who have been excluded, suspended, or otherwise sanctioned by the department. Within seven business days of the date a sanction is imposed, the department shall post on its Internet website and shall make available upon request the name of the qualified design professional, a description of the sanction, the initial date of the sanction, the reinstatement date, if applicable, the address of the premises for which the application associated with the sanction was submitted, and whether the sanction was imposed after a hearing or through a settlement. The department shall provide requested information concerning the exclusion, suspension, or other sanction of a specific qualified design professional within 30 days of such request.

e. Within 10 business days of the department's adverse determination or sanction of a professional engineer under the self-certification program, the department shall provide written notice of the adverse determination or sanction to the State Board of Professional Engineers and Land Surveyors. As used in this section, "adverse determination or sanction" includes a settlement agreement that results in the department's imposition of a sanction or loss of privileges the professional engineer. The department shall notify the board of the name and business firm name and address of the professional engineer, as well as supporting documentation for the sanction imposed.

f. Within 10 business days of the department's adverse determination or sanction of a registered architect under the self-certification program, the department shall provide written notice of the adverse determination or sanction to the New Jersey State Board of Architects. As used in this section, "adverse determination or sanction" includes a settlement agreement that results in the department's imposition of a sanction or loss of privileges of the registered architect. The department shall notify the board of the name and business firm name and address of the registered architect, as well as supporting documentation for the sanction imposed.

g. The department shall not provide notice pursuant to subsection d., e., or f. of this section until a design professional's rights to appeal are exhausted or have expired.

§ 52:27D-131.6. Community Affairs Department, enforcing agency, reasonable oversight

L. [2024, c. 58](#), § 5, effective December 1, 2024.

Annotations

Notes

Editor's Notes

Section 7 of L. [2024, c. 58](#) provides: “The Commissioner of Community Affairs shall, in accordance with the ‘Administrative Procedure Act,’ P.L.1968, c.410 ([C.52:14B-1](#) et seq.), adopt rules and regulations as necessary to implement the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.).”

Effective Dates

Section 8 of L. [2024, c. 58](#) provides: “This act shall take effect on the first day of the fourth month next following enactment, except that the commissioner may take anticipatory administrative action in advance necessary to effectuate the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.).” Chapter 58, L. 2024, was approved on Aug. 22, 2024.

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§ 52:27D-131.7. Study, construction activity, self-certification program; report to Governor, Legislature

The commissioner shall, within three years following the effective date of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.):

- a. undertake a study, in consultation with the code advisory board, established pursuant to section 7 of P.L.1975, c.217 ([C.52:27D-125](#)), to determine construction activity, which may be added to the self-certification program. The department may retain a third party or consultant to undertake this study, but shall consult with the code advisory board regarding the results of the study conducted by a third party; and
- b. prepare and submit a report to the Governor and, pursuant to section 2 of [P.L.1991, c.164](#) ([C.52:14-19.1](#)), to the Legislature regarding the self-certification program established pursuant to section 3 of [P.L.2024, c.58](#) ([C.52:27D-131.4](#)), and the results of the study conducted pursuant to subsection a. of this section.

History

L. [2024, c. 58](#), § 6, effective December 1, 2024.

Annotations

Notes

Editor's Notes

Section 7 of L. [2024, c. 58](#) provides: “The Commissioner of Community Affairs shall, in accordance with the ‘Administrative Procedure Act,’ P.L.1968, c.410 ([C.52:14B-1](#) et seq.), adopt rules and regulations as necessary to implement the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.).”

Effective Dates

Section 8 of L. [2024, c. 58](#) provides: “This act shall take effect on the first day of the fourth month next following enactment, except that the commissioner may take anticipatory administrative action in advance necessary to effectuate the provisions of [P.L.2024, c.58](#) ([C.52:27D-131.2](#) et seq.).” Chapter 58, L. 2024, was approved on Aug. 22, 2024.

§ 52:27D-131.7. Study, construction activity, self-certification program; report to Governor, Legislature

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Notice

 This section has more than one version with varying effective dates.

§ 52:27D-132. Inspection of construction by enforcing agency; right of entry; stop construction orders; violations, reinspection [Effective until date stated in L. 2022, c. 139, § 5]

- a. The enforcing agency shall periodically inspect all construction undertaken pursuant to a construction permit issued by it to insure that the construction or alteration is performed in accordance with the conditions of the construction permit and consistent with the requirements of the code and any ordinance implementing said code.
- b. The owner of any premises upon which a building or structure is being constructed shall be deemed to have consented to the inspection by the enforcing agency and the department, of the entire premises and of any and all construction being performed on it until a certificate of occupancy has been issued. An inspector, or team of inspectors, on presentation of proper credentials, shall have the right to enter and inspect such premises, and any and all construction thereon, for purposes of ensuring compliance with the provisions of the applicable construction permit, the code, and other applicable laws and regulations. All inspection pursuant to this act [[C.52:27D-119](#) et seq.] shall be between the hours of 9 a.m. and 5 p.m. on business days, or when construction is actually being undertaken, provided, however, that inspections may be conducted at other times if the enforcing agency has reasonable cause to believe that an immediate danger to life, limb or property exists, or if permission is given by an owner, or his agent, architect, engineer or builder. No person shall accompany an inspector or team of inspectors on any inspection pursuant to this act, unless his presence is necessary for the enforcement of this act, or the code, or unless consent is given by an owner or his agent, architect, engineer or builder.
- c. If the construction of a structure or building is being undertaken contrary to the provisions of a construction permit, this act, the code, or other applicable laws or ordinances, the enforcing agency may issue a stop construction order in writing which shall state the conditions upon which construction may be resumed and which shall be given to the owner or the holder of the construction permit or to the person performing the construction. If the person doing the construction is not known, or cannot be located with reasonable effort, the notice may be delivered to the person in charge of, or apparently in charge of, the construction. No person shall continue, or cause or allow to be continued, the construction of a building or structure in violation of a stop construction order, except with the permission of the enforcing agency to abate a dangerous condition or remove a violation, or except by court order. If an order to stop construction is not obeyed, the enforcing agency may apply to the appropriate court as otherwise established by law for an order enjoining the violation of the stop construction order. The remedy for violation of such an order

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provided in this subsection shall be in addition to, and not in limitation of, any other remedies provided by law or ordinance.

d. When an inspector or team of inspectors finds a violation of the provisions of a construction permit, the code, or other applicable laws and regulations at an owner-occupied single-family residence, and issues a notice of violation and an order to terminate the violation, the enforcing agency shall require the same inspector or team of inspectors who found the violation to undertake any subsequent reinspection thereof at the premises. When the same inspector or team of inspectors cannot be assigned to undertake the reinspection, the enforcing agency may assign an available inspector provided the scope of the reinspection shall be limited to the violation for which the reinspection is required. The requirements of this subsection shall not apply to violations of the plumbing or electrical subcodes, or to fire safety code violations, or to any violation of any other subcode that the Department of Community Affairs determines to be a health or safety violation. Nothing in this subsection shall be construed to infringe upon the right of a property owner to request a different inspector, team of inspectors, or supervisor, to perform any required reinspection.

History

L. 1975, c. 217, § 14; amended [2007, c. 149](#), § 1, eff. Aug. 21, 2007.

Annotations

Notes

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Amendment Note:

2007 amendment, by Chapter 149, added d.

2022 amendment, by Chapter 139 substituted "ensure" for "insure" in the first sentence of a.; rewrote b.; substituted "P.L.1975, c.217 (C.52:27D-119 et seq.)" for "this act" in the first sentence of c.; added e. through f.; rewrote g. as g. and i, and redesignated former i. as h.

Research References & Practice Aids

Cross References:

Definitions, see [52:27D-121](#).

Administrative Code:

[N.J.A.C. 5:23-1.4](#) (2013), CHAPTER UNIFORM CONSTRUCTION CODE, Definitions.

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Notice

 This section has more than one version with varying effective dates.

§ 52:27D-132. Inspection of construction by enforcing agency; right of entry; stop construction orders; violations, reinspection [Effective on date stated in L. 2022, c. 139, § 5]

- a. The enforcing agency shall periodically inspect all construction undertaken pursuant to a construction permit issued by it to ensure that the construction or alteration is performed in accordance with the conditions of the construction permit and consistent with the requirements of the code and any ordinance implementing said code.
- b. The owner of any premises upon which a building or structure is being constructed shall be deemed to have consented to the inspection by the enforcing agency and the department, of the entire premises and of any and all construction being performed on it until a certificate of occupancy has been issued. An inspector, or team of inspectors, on presentation of proper credentials, shall have the right to enter and inspect such premises, and any and all construction thereon, for purposes of ensuring compliance with the provisions of the applicable construction permit, the code, and other applicable laws and regulations. All inspection pursuant to P.L.1975, c.217 ([C.52:27D-119](#) et seq.) shall be between the hours of 9 a.m. and 5 p.m. on business days or at another time that has been agreed upon by the owner and the relevant inspecting entity, whether the enforcing agency, department, or private on-site inspection agency, or when construction is actually being undertaken, provided, however, that inspections may be conducted at other times if the enforcing agency has reasonable cause to believe that an immediate danger to life, limb or property exists, or if permission is given by an owner, or the owner's agent, architect, engineer or builder. No person shall accompany an inspector or team of inspectors on any inspection pursuant to P.L.1975, c.217 ([C.52:27D-119](#) et seq.), unless the person's presence is necessary for the enforcement of P.L.1975, c.217 ([C.52:27D-119](#) et seq.), or the code, or unless consent is given by an owner or the owner's agent, architect, engineer or builder.
- c. If the construction of a structure or building is being undertaken contrary to the provisions of a construction permit, P.L.1975, c.217 ([C.52:27D-119](#) et seq.), the code, or other applicable laws or ordinances, the enforcing agency may issue a stop construction order in writing which shall state the conditions upon which construction may be resumed and which shall be given to the owner or the holder of the construction permit or to the person performing the construction. If the person doing the construction is not known, or cannot be located with reasonable effort, the notice may be delivered to the person in charge of, or apparently in charge of, the construction. No person shall continue, or cause or allow to be continued, the construction of a building or structure in violation of a stop construction order, except with the permission of the enforcing agency to abate a dangerous condition or remove a violation, or except by court

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order. If an order to stop construction is not obeyed, the enforcing agency may apply to the appropriate court as otherwise established by law for an order enjoining the violation of the stop construction order. The remedy for violation of such an order provided in this subsection shall be in addition to, and not in limitation of, any other remedies provided by law or ordinance.

d. When an inspector or team of inspectors finds a violation of the provisions of a construction permit, the code, or other applicable laws and regulations at an owner-occupied single-family residence, and issues a notice of violation and an order to terminate the violation, the enforcing agency shall require the same inspector or team of inspectors who found the violation to undertake any subsequent reinspection thereof at the premises. When the same inspector or team of inspectors cannot be assigned to undertake the reinspection, the enforcing agency may assign an available inspector provided the scope of the reinspection shall be limited to the violation for which the reinspection is required. The requirements of this subsection shall not apply to violations of the plumbing or electrical subcodes, or to fire safety code violations, or to any violation of any other subcode that the Department of Community Affairs determines to be a health or safety violation. Nothing in this subsection shall be construed to infringe upon the right of a property owner to request a different inspector, team of inspectors, or supervisor, to perform any required reinspection.

e. The owner, agent, or other responsible person in charge of work shall notify the enforcing agency when the work is ready for any required inspection under the code. This notice shall be given in writing at least 24 hours prior to the date and time requested for the inspection. The enforcing agency shall perform an inspection within three business days of the date for which the inspection is requested. The owner, agent, or other responsible person in charge of work may provide oral notice for inspections of minor work projects, as defined by the code.

(1) The owner, agent, or other responsible person in charge of work shall be present and prepared at the time of any inspection that has been scheduled upon the owner, agent, or other responsible person's request. A failure by the owner, agent, or other responsible person in charge of work to be present and prepared for inspection shall be considered a failed inspection.

(2) If the enforcing agency is unable to perform a requested inspection within three business days of the date for which the inspection is requested, the enforcing agency shall inform the owner, agent, or other responsible person in charge of work in writing within 24 hours of receiving the request, at which time the enforcing agency and the owner, agent, or other responsible person in charge of work may agree to a different date and time for inspection. The enforcing agency shall commit the agreed upon inspection date to writing and provide a copy to the owner, agent, or other responsible person in charge of work.

(3) If the enforcing agency is unable to perform the requested inspection within three business days of the date for which the inspection is requested and the enforcing agency and the owner, agent, or responsible person in charge of work are unable to come to an agreement pursuant to paragraph (2) of this subsection, the owner, agent, or other responsible person in charge of work may choose to contract with a private on-site inspection agency authorized by the department to conduct on-site inspections pursuant to paragraph i. of section 6 of P.L.1975, c.217 (C.52:27D-124) to perform the requested inspection or inspections.

(a) The owner, agent, or other responsible person in charge of work shall notify the enforcing agency in writing of any choice to utilize an authorized private on-site inspection agency to conduct the requested inspection or inspections.

(b) The owner, agent, or other responsible person in charge of work may elect to utilize the private on-site inspection agency to conduct all subsequent associated inspections. In the event of a project with multiple units in one building, this provision shall apply to the specific unit or units affected by the inspection delay.

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(c) The use of a private on-site inspection agency by an owner, agent, or other responsible person for on-site inspections shall be subject to the conflict-of-interest provisions in the code. In addition to those requirements, no private on-site inspection agency shall perform an inspection for any owner, agent, or other responsible person in charge of work, if an owner, agent, or other responsible person is currently employed by or affiliated with any individual affiliated with the private on-site inspection agency or has employed or was associated with an individual affiliated with the private on-site inspection agency within a timeframe established by the commissioner by regulation.

(d) The enforcing agency shall, if warranted, provide a fee reconciliation to the owner for an inspection completed by a private on-site inspection agency as a result of a missed inspection. The enforcing agency shall perform the reconciliation at the conclusion of the project. This reconciliation shall be based on the fees already paid less administrative costs for the enforcing agency and shall not exceed the amount already paid for the project, nor shall it exceed the amount that the enforcing agency is authorized to impose for inspections, and shall take into account the administrative costs of the enforcing agency.

(4) If the owner, agent, or other responsible person in charge of work believes an enforcing agency has demonstrated a repeated inability to conduct inspections for a construction project within the timelines required by this section, as established by the commissioner by regulation, the owner, agent, or other responsible person in charge of work may notify the department in writing to request authorization to utilize an authorized private on-site inspection agency. Within 15 business days of receiving a notification under this paragraph, the department shall determine whether the enforcing agency has demonstrated repeated inability, and, if the department determines, shall authorize the owner, agent, or other responsible person in charge of work to utilize an authorized private on-site inspection agency for all or a portion of the necessary inspections for the remainder of the project.

f. Each enforcing agency shall establish a process for ensuring inspections are performed within three business days of a requested inspection date, as required by subsection e. of this section. Authorized processes include, but are not limited to, the use of supplemental shared services agreements with other municipalities or enforcing agencies or the use of contracted private on-site inspection agencies, including supplemental private on-site inspection agencies.

g.

(1) At timeframes established by the commissioner by regulation, adopted in accordance with the "Administrative Procedure Act," P.L.1968, c.410 ([C.52:14B-1](#) et seq.), the municipal construction official shall submit an annual report detailing compliance with the code. The report shall include, at a minimum information related to the staffing, staff titles, and expenses of the enforcing agency, in addition to any other information required by the commissioner. The annual report shall take into account projected work and agency resource needs for the next budget year.

(2) A municipality that enters into a contract for supplemental services pursuant to subsection f. of this section shall provide a copy of the contract to the department upon entering into the contract.

(3) The information required by paragraphs (1) and (2) of this subsection, in addition to the inspection log, the municipal monthly activity reports, and the fee schedule shall be maintained by the municipal construction official or enforcing agency, and the municipal construction official or enforcing agency shall make the information and documents described in this paragraph available to the department upon request.

(4) The department may utilize the information provided pursuant to this subsection to determine appropriate staffing levels for the enforcing agency. If the department determines that an enforcing agency has not maintained appropriate staffing levels, the department may require the municipality to take corrective actions to ensure that the enforcing agency's staffing needs are met.

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(5) The department may take corrective action, including the issuance of penalties, pursuant to subsection k. of section 6 of P.L.1975, c.217 (*C.52:27D-124*), if an enforcing agency fails to maintain or provide the information required by this subsection or maintain appropriate staffing levels, as determined by the department pursuant to paragraph (4) of this subsection.

h. If an enforcing agency is unable to meet its obligations under P.L.1975, c.217 (*C.52:27D-119* et seq.), the enforcing agency shall promptly notify the department within 15 business days. The department may take corrective action, including the issuance of penalties, pursuant to subsection k. of section 6 of P.L.1975, c.217 (*C.52:27D-124*) if an enforcing agency fails to meet its obligations under P.L.1975, c.217 (*C.52:27D-119* et seq.).

History

L. 1975, c. 217, § 14; amended [2007, c. 149](#), § 1, eff. Aug. 21, 2007; [2022, c. 139](#), § 2.

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N.J. Stat. § 52:27D-132.3

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§ 52:27D-132.3. Definitions

As used in [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.):

“Adequate” or “adequacy” means a sum of money, however invested or held by an association of a planned real estate development, that, in accordance with the professional standards applied by the reserve specialist, architect, or engineer performing or overseeing the study, is sufficient so that the balance in the association’s reserve fund, required pursuant to section 7 of [P.L.2023, c.214](#) ([C.45:22A-44.3](#)), will not fall below zero dollars as set forth in the association’s 30-year funding plan, prepared as part of a reserve study, regardless of whether the reserve study was conducted within five years of the effective date of [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.), or conducted pursuant to section 6 of [P.L.2023, c.214](#) ([C.45:22A-44.2](#)).

“Balcony” means an extension of the interior living space of the building that extends outwards from the facade of a covered building and is exposed to the elements.

“Bureau” means the Bureau of Housing Inspection in the Department of Community Affairs.

“Corrective maintenance” means maintenance to be undertaken following the detection of deterioration of the primary load bearing system with the goal of remediating the condition reported by the structural inspector.

“Covered building” means a residential condominium or cooperative building that has a primary load bearing system that is comprised of a concrete, masonry, steel, or hybrid structure including, without limitation, heavy timber and a building with podium decks, but not including an excluded structure.

“Covered building owner” means the owner of a covered building, whose name appears of record with the county clerk or register, or the association of a common interest community.

“Excluded structure” means:

International Standardization Organization ISO Type 1 construction or frame-built construction with combustible walls or roofs, but not including a podium deck on which the frame-built construction is situated;

a building with ancillary elements that are not part of the primary load bearing system such as, but not limited to, elevator shafts or concrete, masonry, steel, or heavy timber that the primary load bearing system does not deliver a building’s load to the foundation;

a building that is not a condominium or cooperative, and consists primarily of rental dwellings; or
a single-family dwelling.

“Podium deck” means a structural slab or deck that transfers applied loads from the structure above to the structure below.

§ 52:27D-132.3. Definitions

“Primary load bearing system” means the assemblage of structural components within a building comprised of columns, beams, or bracing that by contiguous interconnection form a path by which external and internal forces applied to the building are delivered to the foundation. The foundation as well as any connected or attached balconies shall be included as part of the primary load bearing system evaluation.

“Structural inspector” means:

a construction official, as that term is used in section 8 of P.L.1975, c.217 ([C.52:27D-126](#)), who is also an engineer licensed by the State;

an employee of the bureau who is also an engineer licensed by the State; or

an engineer licensed by the State who has the same qualifications required of an engineer under contract with the enforcing agency with whom the covered building owner contracts to perform inspections of covered buildings under section 3 of [P.L.2023, c.214](#) ([C.52:27D-132.4](#)).

History

L. [2023, c. 214](#), § 2, effective January 8, 2024; amended by [2025, c. 132](#), § 1, effective August 21, 2025.

Annotations

Notes

Amendment Notes

2025 amendment, by Chapter 132, added the definition of “Adequate” or “adequacy”; and made stylistic changes.

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N.J. Stat. § 52:27D-132.4

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§ 52:27D-132.4. Initial structural inspection, building components, primary load bearing system, covered building, timelines; reports

- a. Following the issuance of a certificate of occupancy, an initial structural inspection of the building components forming the primary load bearing system of a covered building shall be undertaken by a post-occupancy structural inspector retained by the covered building owner within the earlier of:
- (1) 15 years of the date on which the covered building receives a certificate of occupancy pursuant to section 15 of P.L.1975, c.217 ([C.52:27D-133](#)); or
 - (2) 60 days after observable damage to the primary load bearing system.
- b. If a covered building has received a certificate of occupancy pursuant to section 15 of P.L.1975, c.217 ([C.52:27D-133](#)) prior to the effective date [Jan. 8, 2024] of [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.), then an initial structural inspection shall be undertaken by a structural inspector based on the number of years the certificate of occupancy preceded the effective date of [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.), as provided in this subsection. If the certificate of occupancy was provided:
- (1) one day to 14 years and 364 days prior to the effective date of [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.), then the structural inspection shall occur within one year of the date 15 years following the date of the issuance of the certificate of occupancy; or
 - (2) 15 or more years prior to the effective date of [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.), then the structural inspection shall occur within two years following the effective date of [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.).
- c. A building that has been converted to a condominium or cooperative form of ownership after the effective date of [P.L.2023, c.214](#) ([C.52:27D-132.2](#) et al.) shall, as part of the process of registering the project pursuant to the “Planned Real Estate Development Full Disclosure Act,” P.L.1977, c.419 ([C.45:22A-21](#) et seq.) and the regulations promulgated thereunder, be required to follow the schedule of inspections provided in paragraphs (1) and (2) of subsection b. of this section.
- d. After the post-occupancy structural inspector has performed an inspection pursuant to subsection a. of this section, the post-occupancy structural inspector shall issue a written report describing the condition of the primary load bearing system. The post-occupancy structural inspection report shall:
- (1) set forth with specificity any required maintenance or repairs needed by the primary load bearing system;
 - (2) determine when the next inspection of the primary load bearing system shall be performed, but in no event shall a secondary inspection occur more than the earlier of: (a) 10 years after the initial inspection has taken place; or (b) not more than 60 days after there is observable damage to the primary load bearing system;
 - (3) be provided to the municipal appointing authority, the construction official and the enforcing agency;

- (4) be prepared in accordance with the protocol established by the American Society of Civil Engineers, for the structural condition assessment of a covered building or a similar protocol by another nationally recognized structural engineering organization; and
 - (5) provide any other information or guidance necessary to maintain the structural integrity of a covered building.
- e. If the structural inspector's report created pursuant to subsection d. of this section finds that corrective maintenance of the primary load bearing system is required, the report shall specify with reasonable detail the required corrective maintenance.
- f. Notwithstanding the structural inspector's initial inspection and report undertaken pursuant to subsections a. through e. of this section, subsequent structural inspections and reports shall be provided for as set forth by the structural inspector's preceding report as follows:
 - (1) The structural inspector shall determine a reasonable period of time within which the next inspection shall take place provided, however, that any subsequent inspection under this paragraph shall not take place more than five years after a preceding inspection.
 - (2) The structural inspector shall review the preceding inspection report prior to undertaking subsequent inspection of the covered building. After the structural inspector completes this review and inspection, the structural inspector will then issue a subsequent inspection report which shall:
 - (a) make note of any new or progressive deterioration;
 - (b) set forth the covered maintenance required to address any new or progressive deterioration; and
 - (c) be provided to the covered building owner, who shall undertake measures necessary to effectuate the covered maintenance, including, but not limited to, engaging the services of an architect or engineer licensed by the State and qualified in structural repairs or maintenance to create plans or specifications to implement the covered maintenance. The covered building owner shall cause any plans or specifications created pursuant to this subparagraph to be filed with the municipal appointing authority or enforcing agency.
 - (3) If the post-occupancy structural inspector's inspection finds that there is no need for corrective maintenance, the written report shall be filed with the enforcing agency or municipal appointing authority.
 - (4) Any written reports issued by the post-occupancy structural inspector pursuant to this section shall be provided to the covered building's owner and shall be made available to any resident of a covered building upon request.
- g. Inspections conducted pursuant to this section may be conducted in conjunction with other required inspections, including, but not limited to, inspections required pursuant to the "Hotel and Multiple Dwelling Law," P.L.1967, c.76 ([C.55:13A-1 et seq.](#)).

L. 2023, c. 214, § 3, effective January 8, 2024.

N.J. Stat. § 52:27D-132.1

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§ 52:27D-132.1. Rules, regulations

In accordance with the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), the commissioner shall propose within six months and adopt within nine months rules and regulations to effectuate the provisions of [P.L.2022, c.139](#) ([C.52:27D-132.1](#) et al.), including rules that provide for: the use of supplemental shared services agreements; the authorization of private on-site inspection agencies by the department to conduct on-site inspections; and the use of private on-site inspection agencies by municipalities and enforcing agencies. In addition to the activity described in subparagraph (b) of paragraph (3) of subsection e. of section 14 of P.L.1975, c.217 ([C.52:27D-132](#)), the rules and regulations shall allow an enforcing agency to:

- a. enter into a supplemental shared service agreement or contract with a supplemental private on-site inspection agency to conduct an on-site inspection for the purpose of meeting all required inspection timeframes;
- b. enter into an agreement with a private on-site inspection agency to conduct an on-site inspection on a project-specific basis; and
- c. authorize the owner, agent, or other authorized person in charge of work to directly contract with an authorized private on-site inspection agency to perform all inspections on a project-specific basis.

History

L. [2022, c. 139](#), § 4, effective January 5, 2023.

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[N.J. Stat. § 52:27D-132.2](#)

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§ 52:27D-132.2. Findings, declarations

The Legislature finds and declares that:

- a.** The importance of the structural integrity of residential buildings in New Jersey has become a growing concern for many, especially in the wake of the tragic collapse of a high-rise, multifamily housing structure in Florida.
- b.** In light of these growing concerns, it is appropriate for the Legislature to put in place appropriate procedures for inspecting, evaluating, and maintaining the structural integrity of certain residential housing structures within this State.

History

L. [2023, c. 214](#), § 1, effective January 8, 2024.

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N.J. Stat. § 52:27D-132.5

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§ 52:27D-132.5. Post-occupancy structural inspector, American Society of Civil Engineers protocols, similar, good faith performance of duties, civil liability, injury, prohibited

A post-occupancy structural inspector who performs the duties set forth in section 3 of [P.L.2023, c.214 \(C.52:27D-132.4\)](#) in good faith and pursuant to the protocols adopted by the American Society of Civil Engineers, or similar protocols by another nationally recognized structural engineering association, shall not incur any civil liability for injury associated with any inspection undertaken by the structural inspector.

History

L. [2023, c. 214](#), § 4, effective January 8, 2024.

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§ 52:27D-133. Certificates of occupancy

No building or structure hereafter constructed shall be used or occupied in whole or in part until a certificate of occupancy shall have been issued by the enforcing agency. No building or structure hereafter altered, in whole or in part, shall be used or occupied until such a certificate has been issued, except that any use or occupancy in an already existing building or structure that was not discontinued during its alteration may be continued in the preexisting structure for 30 days after the completion of the alteration without the issuance of a certificate of occupancy. A certificate of occupancy shall be issued by the enforcing agency when all of the work covered by a construction permit shall have been completed in accordance with the permit, the code, and other applicable laws and ordinances. In the case of any new home subject to sales surcharge pursuant to [P.L.1991, c.202](#) ([C.46:3B-13](#) et al.) a certificate of occupancy shall not be issued except after presentation of a receipt, or verified duplicate thereof, from the Department of Community Affairs evidencing the payment of the surcharge. On request of a holder of a construction permit, the appropriate enforcing agency may issue a temporary certificate of occupancy for a building or structure, or part thereof, before the entire work covered by the construction permit has been completed, if the part or parts of the building or structure to be covered by the certificate may be occupied prior to completion of all work in accordance with the permit, the code, and other applicable laws and ordinances, without endangering the health and safety of the occupants or users. When a building or structure is entitled thereto, the enforcing agency shall issue a certificate of occupancy within 10 business days after receipt of a written application therefor in accordance with regulations established by the commissioner on a form prescribed by the commissioner accompanied by payment of a fee to be established by the municipal governing body by ordinance in accordance with standards established by the commissioner. The certificate of occupancy shall certify that the building or structure has been constructed in accordance with the provisions of the construction permit, the code, and other applicable laws and ordinances.

History

L. 1975, c. 217, § 15; amended [1991, c. 202](#), § 8.

Annotations

CASE NOTES

Tax Law: State & Local Taxes: Real Property Tax: Assessment & Valuation: Assessment Methods & Timing

In an appeal of a real property tax assessment pursuant to [N.J. Stat. Ann. § 54:3-21](#), the cost approach to valuation of a new office building was not a limit on the valuation where both the income and market approaches indicated a

§ 52:27D-133. Certificates of occupancy

higher value and the taxpayer's actual costs were understated; added assessments were proper under [N.J. Stat. Ann. § 54:4-63.1](#) when construction was substantially completed or when a temporary certificate of occupancy was issued under [N.J. Stat. Ann. § 52:27D-133](#). *Litton Business Systems, Inc. v. Morris Plains*, 8 N.J. Tax 520, 1986 N.J. Tax LEXIS 11 (Tax Ct. Oct. 20, 1986), aff'd, 9 N.J. Tax 651, 1988 N.J. Tax LEXIS 36 (App.Div. Feb. 16, 1988).

Research References & Practice Aids

Cross References:

Definitions, see [2A:42-84.1](#).

Notification of completion, see [40:55D-45.7](#).

Commissioner to estimate funding required for approved claims, see [46:3B-16](#).

Definitions, see [52:27D-121](#).

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§ 52:27D-133.1. Definitions relative to certain swimming pools

As used in this act:

“Bonding and grounding certificate” means a document issued by a recognized electrical testing agency that verifies the electrical continuity and integrity of the bonding and grounding system of a swimming pool.

“Swimming pool” means a swimming pool, hot tub, or spa located on any property other than one or two family residential property and includes but is not limited to swimming pools open for the use of members, residents or the public.

“Electrical certificate of compliance” means a document issued by the enforcing agency that verifies that all wiring located in or about the pool pump house or similar structure and associated electrical equipment is in compliance with the electrical subcode of the State Uniform Construction Code.

History

L. [1998, c. 137](#), § 1, eff. Feb. 9, 1999.

Annotations

Notes

Effective Dates:

Section 3 of L. [1998, c. 137](#) provides: “This act shall take effect on the 60th day after enactment.” Chapter 137, L. 1998, was approved on December 11, 1998.

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[N.J. Stat. § 52:27D-133.2](#)

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§ 52:27D-133.2. Valid bonding, grounding certificate; electrical certificate of compliance required

- a. A swimming pool shall not be opened for use or occupied in whole or in part by any person until a valid bonding and grounding certificate and electrical certificate of compliance are issued. The bonding and grounding certificate shall be evidence of continuity and integrity of the bonding system meeting the requirements of the electrical subcode of the State Uniform Construction Code. The electrical certificate of compliance shall not be issued unless a valid bonding and grounding certificate has been issued.
- b. The bonding and grounding certificate shall be valid for a period of five years from the date of issuance. The electrical certificate of compliance shall be renewed annually upon completion of a satisfactory inspection by the enforcing agency, which may charge a fee for each inspection. A swimming pool that is operated on a seasonal basis shall not be opened for the season until a new electrical certificate of compliance has been issued.
- c. If the inspection reveals any defective electrical condition on the pool premises that condition shall be repaired by an electrical contractor licensed in the State of New Jersey prior to issuance of the electrical certificate of compliance.
- d. The bonding and grounding certificate and the electrical certificate of compliance shall be posted in or about the pool pump house or structure that encloses the pool wiring.

History

L. [1998, c. 137](#), § 2, eff. Feb. 9, 1999.

Annotations

Notes

Effective Dates:

Section 3 of L. [1998, c. 137](#) provides: “This act shall take effect on the 60th day after enactment.” Chapter 137, L. 1998, was approved on December 11, 1998.

N.J. Stat. § 52:27D-133.3

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§ 52:27D-133.3. Carbon monoxide sensor device required for issuance of certificate of occupancy; terms defined

a. In any case in which a change of occupancy of any dwelling unit in a building with fewer than three dwelling units is subject to a municipal ordinance requiring the issuance of a certificate of occupancy, certificate of inspection or other documentary certification of compliance with laws and regulations relating to the safety, healthfulness and upkeep of the premises, no such certificate shall issue until the officer or agency responsible for its issuance has determined that: (1) the dwelling unit is equipped with one or more carbon monoxide sensor devices, or (2) that there is no potential carbon monoxide hazard in the dwelling unit. Any such determination shall be made in accordance with rules adopted by the Commissioner of Community Affairs.

b. In the case of an initial occupancy or a change of occupancy of any dwelling unit in a building with fewer than three dwelling units to which the provisions of subsection a. of this section do not apply, no owner shall sell, lease or otherwise permit occupancy for residential purposes of that dwelling unit without first obtaining from the relevant enforcing agency under the “Uniform Fire Safety Act,” P.L. 1983, c. 383 ([C. 52:27D-192](#) et seq.) a certificate indicating: (1) that the dwelling unit is equipped with one or more carbon monoxide sensor devices, or (2) that there is no potential carbon monoxide hazard in the dwelling unit. Any such determination shall be made in accordance with rules adopted by the Commissioner of Community Affairs.

c. The local governing body having jurisdiction over the enforcing agency or, where the Division of Fire Safety is the enforcing agency, the Commissioner of Community Affairs, may establish a fee which covers the cost of inspection and of issuance of the certificate; however, if an inspection is being made and a certificate is being issued evidencing compliance with section 2 of [P.L. 1991, c. 92](#) ([C. 52:27D-198.2](#)), the fee authorized therein shall cover the costs of complying with this section.

d. For the purposes of this section:

“Carbon monoxide sensor device” means a carbon monoxide alarm or detector that bears the label of a nationally recognized testing laboratory, and has been tested and listed as complying with the most recent Underwriters Laboratories standard 2034 or its equivalent.

“Dwelling unit” means a structure, or a room or group of rooms within a structure, used or intended for use, in whole or in part, for residential purposes.

e. An owner who sells, leases or otherwise permits occupancy of a dwelling unit without complying with the provisions of this section shall be subject to a fine of not more than \$100, which may be collected and enforced by the local enforcing agency by summary proceedings pursuant to “The Penalty Enforcement Law of 1999,” [P.L. 1999, c. 274](#) ([C. 2A:58-10](#) et seq.).

f. This section shall become operative on the 61st day after enactment of [P.L. 2003, c. 44](#) ([C. 52:27D-133.5](#) et al.).

History

§ 52:27D-133.3. Carbon monoxide sensor device required for issuance of certificate of occupancy; terms defined

L. [1999, c. 15](#), § 2, eff. Feb. 8, 1999; amended [2003, c. 44](#), § 1, eff. Apr. 16, 2003.

Annotations

Research References & Practice Aids

Cross References:

Rules, regulations, see [52:27D-133.4](#).

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§ 52:27D-133.4. Rules, regulations

Within six months of the effective date of [P.L.1999, c.15](#) ([C.52:27D-133.3](#) et al.), the Commissioner of Community Affairs shall promulgate pursuant to the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.) the rules and regulations necessary to effectuate sections 2 and 3 of [P.L.1999, c.15](#) ([C.55:13A-7.17](#) and [C.55:13B-6.1](#)) which shall substantially comport with National Fire Protection Association 720, Recommended Practice for the Installation of Household Carbon Monoxide (CO) Warning Equipment.

History

L. [1999, c. 15](#), § 6, eff. Feb. 8, 1999.

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N.J. Stat. § 52:27D-133.5

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§ 52:27D-133.5. Rules, regulations

Notwithstanding any provision of law, rule or regulation to the contrary, within two months of the effective date of [P.L. 2003, c. 44](#) ([C. 52:27D-133.5](#) et al.) the Commissioner of Community Affairs shall promulgate pursuant to the “Administrative Procedure Act,” P.L. 1968, c. 410 ([C. 52:14B-1](#) et seq.) the rules and regulations necessary to effectuate this act.

History

L. [2003, c. 44](#), § 3, eff. Apr. 16, 2003.

Annotations

Research References & Practice Aids

Cross References:

Carbon monoxide sensor device required for issuance of certificate of occupancy; terms defined, see [52:27D-133.3](#).

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N.J. Stat. § 52:27D-134

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§ 52:27D-134. Appeal not automatic stay of order to stop construction

a. An appeal to a county, municipal or joint construction board of appeals, a departmental appeal, or an appeal to a court of competent jurisdiction shall not automatically stay any order to stop construction issued pursuant to this act or prevent the seeking of an order in a court of competent jurisdiction to enjoin the violation of a stop construction order.

b. Upon the 121st day subsequent to its filing, an appeal to a county, municipal or joint construction board of appeals, a departmental appeal, or an appeal to a court of competent jurisdiction shall not automatically stay any order, including orders to pay a penalty imposed pursuant to section 20 of P.L. 1975, c. 217 ([C. 52:27D-138](#)) or prevent the seeking of an order in a court of competent jurisdiction to enjoin the violation of any order of an enforcing agency, in connection with any property which is certified by a code enforcement official to be unoccupied. For the purposes of this section, a building may not be certified as unoccupied unless it has been unoccupied for a period of not less than six months.

Any party filing an appeal with a court of competent jurisdiction regarding violations assessed against property which has been certified as unoccupied pursuant to this section shall file a motion upon the initiation of the appeal requesting expedited consideration of the appeal on the ground that acceleration is warranted because the subject of the appeal involves matters of public safety. In the event the appeal is granted, the court shall grant the motion to expedite.

History

L. 1975, c. 217, § 16; amended [1999, c. 401](#), § 1, eff. Jan. 18, 2000.

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§ 52:27D-135. Premanufactured systems

The commissioner shall by rules promulgated hereunder establish a procedure whereby premanufactured systems intended for use in the State may, if entitled thereto, be issued a certificate of acceptability by the department at its place of manufacture. The procedure shall include a requirement that the manufacturer submit to the department detailed plans and specifications for the premanufactured system for approval in compliance with the requirements of the code.

It may also include a requirement that the manufacturer submit to the department test results on the premanufactured system, or its components, or any other material or information that the department considers relevant, or one or more of the premanufactured systems for testing and evaluation. The procedure shall require that premanufactured systems be inspected by the department or a qualified person selected by it, to determine that the premanufactured systems have been manufactured in accordance with the code and with the plans and specifications submitted to the department. Alternatively, the commissioner, after consultation with the code advisory board, may require that each premanufactured system bear the approved label of a qualified body selected by the commissioner. Said body shall have such follow-up inspection services as are satisfactory to the commissioner and shall certify that the premanufactured system complies with the code and with the plans and specifications submitted to the department. If an application for a construction permit specifying the use of a premanufactured system with a certificate of acceptability is submitted to an enforcing agency, and if the application complies in all respects with this act, the code and other applicable laws and ordinances, then the enforcing agency shall issue the construction permit within the time specified in section 13 hereof. At the time of installation, a premanufactured system with a certificate of acceptability shall be subject only to such nondestructive tests approved by the department as may be necessary to determine that it has not been damaged in transit or installation, and that it has been installed in accordance with the applicable construction permit and the code. The fees established and charged by an enforcing agency in connection with the granting of a construction permit on the basis of an application therefor specifying the use of a premanufactured system with a certificate of acceptability, or in connection with the inspection of the installation of such systems, shall bear a reasonable relationship to the costs incurred by the enforcing agency in performing such acts.

History

L. 1975, c. 217, 17.

Annotations

CASE NOTES

Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development**Real Property Law: Zoning & Land Use: Building & Housing Codes****Real Property Law: Mobilehomes & Mobilehome Parks: Construction & Development**

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

Real Property Law: Zoning & Land Use: Building & Housing Codes

Department of Community Affairs' interpretive regulation, [N.J. Admin. Code § 5:23-9.3](#), which determined that recreational park trailers are subject to the Uniform Construction Code, [N.J. Stat. Ann. §§ 52:27D-119](#) to -141, is valid. The Department's regulation of recreational park trailers under the Code is not preempted by the National Manufactured Housing Construction and Safety Standards Act, [42 U.S.C.S. §§ 5401-5426](#), because the Department of Housing and Urban Development has not yet adopted regulations establishing safety standards for such trailers. [Tall Timbers Property Owners Ass'n, Inc. v. New Jersey Dept. of Community Affairs, 413 N.J. Super. 54, 992 A.2d 811, 2010 N.J. Super. LEXIS 67 \(App.Div. 2010\)](#).

N.J. Stat. § 52:27D-136

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§ 52:27D-136. Extension of reciprocity

- a. The commissioner, after consultation with the code advisory board, is empowered to extend to and accept from any state, group of states, or the United States of America, reciprocal recognition, certification or approval as enumerated in subsection b. of this section, provided such action is otherwise consistent with the basic purposes of this act and the code.
- b. The commissioner, after consultation with the code advisory board, is authorized to accept the findings of any other state, the Federal Government, or nationally recognized organizations, in matters involving or related to the certification of premanufactured systems, assemblies, subsystems, subassemblies and related materials; and the findings of any state or states, the United States, or nationally recognized organizations in the matters of the approval of products, plans, modes and techniques of construction and testing. The commissioner shall certify that such findings are in compliance with the code and this act.

History

L. 1975, c. 217, 18.

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N.J. Stat. § 52:27D-137

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§ 52:27D-137. Review of plans and specifications and inspection of construction by the department

At the request of an enforcing agency, the department or an agency approved by the commissioner may assist an enforcing agency in the inspection of any construction of buildings or structures, provided that the enforcing agency has submitted the plans and specifications for such construction to the department or such agency, as the case may be, for review as to compliance with the code and this act. In such cases the commissioner shall provide by regulation for fees to the department to cover the cost of providing such services, to be borne ultimately by applicants for construction permits. The commissioner shall also provide for the readjustment of municipal fees in accordance with the cost of services performed.

History

L. 1975, c. 217, 19.

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N.J. Stat. § 52:27D-138

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§ 52:27D-138. Penalties

a. Any person or corporation, including an officer, director or employee of a corporation, who:

- (1) Violates any of the provisions of this act or rules promulgated hereunder;
- (2) Constructs a structure or building in violation of a condition of a building permit;
- (3) Fails to comply with any order issued by an enforcing agency or the department;
- (4) Makes a false or misleading written statement, or omits any required information or statement in any application or request for approval to an enforcing agency or the department;
- (5) Knowingly sells or offers for retail sale any item, device or material, the regular and intended use of which would violate any provision of the State Uniform Construction Code;

Shall be subject to a penalty of not more than \$2,000; provided, however, that any penalties in excess of \$500.00 per violation may be levied by an enforcing agency only in accordance with subsection e. below.

Paragraph (5) above does not prohibit the retail sale or offering for retail sale of any item, device or material which has more than one regular and intended use, if one of those uses does not violate the code, provided that the item, device or material is not publicly advertised or otherwise promoted by the seller or manufacturer as suitable for a use that would violate any provisions of the code.

b. Anyone who knowingly refuses entry or access to an inspector lawfully authorized to inspect any premises, building or structure pursuant to this act or who unreasonably interferes with such an inspection shall be subject to a fine of not more than \$250.00.

c. With respect to subsection a. (3) of this section, a person shall be guilty of a separate offense for each day that he fails to comply with a stop construction order validly issued by an enforcing agency or the department and for each week that he fails to comply with any other order validly issued by an enforcing agency or the department. With respect to subsections a. (1) and a. (4) of this section, a person shall be guilty of a separate offense for each violation of any provision of this act or rules promulgated hereunder and for each false or misleading written statement or omission of required information or statement made in any application or request for approval to an enforcing agency or the department. With respect to subsection a. (2) of the section, a person shall be guilty of a separate offense for each violation of the conditions of a construction permit.

d. The penalties pursuant to this section may be collected in a summary proceeding pursuant to the "Penalty Enforcement Law of 1999," [P.L. 1999, c. 274 \(C. 2A:58-10 et seq.\)](#). Jurisdiction to enforce such penalties is hereby conferred upon judges of the municipal court, in addition to the courts specified by [N.J.S. 2A:58-2](#). Suit may be brought by a municipality or the State of New Jersey. Payment of a money judgment pursuant hereto shall be remitted, in the case of a suit brought by a municipality, to the municipal treasurer and in the case of a suit brought by the State of New Jersey, to the State Treasurer.

e. Penalties in excess of \$500.00 per violation may be levied by an enforcing agency only as follows:

§ 52:27D-138. Penalties

- (1) A penalty for failure or refusal to comply with any lawful order shall not exceed \$1,000.00 per violation, unless the failure or refusal to comply is done with the knowledge that it will endanger the life or safety of any person, in which case the penalty shall not exceed \$2,000.00 per violation;
- (2) A penalty for failure to obtain a required permit prior to commencing construction or for allowing a building to be occupied without a certificate of occupancy shall not exceed \$2,000.00 per violation;
- (3) A penalty for failure to comply with a stop construction order shall not exceed \$2,000.00 per violation;
- (4) A penalty for willfully making a false or misleading written statement, or willfully omitting any required information or statement in any application or request for approval, shall not exceed \$2,000.00 per violation;

For purposes of this subsection, in an occupied building, only a code violation involving fire safety, structural soundness or the malfunctioning of mechanical equipment that would pose a life safety hazard shall be deemed to endanger the life or safety of a person. In an unoccupied building only a code violation of a requirement intended to protect members of the public who are walking by the property shall be deemed to endanger the life or safety of a person.

History

L.1975, c. 217, § 20; amended 1983, c. 83, § 1; [2003, c. 228](#), § 1, eff. Jan. 9, 2004.

Annotations

CASE NOTES

Governments: Local Governments: Licenses

[N.J. Stat. Ann. § 52:27D-138](#) creates a variety of penalties or sanctions to punish violators of either the specific provisions of the Uniform Construction Code Act, [N.J. Stat. Ann. § 52:27D-119](#) to -141 (UCC Act), or its regulatory requirements. Some of the penalties are coercive, due to their ongoing and accruing nature until compliance is secured, and some are punitive, punishing particular violations by a discrete fine, but both types of penalties promote the purposes of the UCC Act by punishing to secure compliance as well as to deter future noncompliance with the UCC Act. [DKM Residential Props. Corp. v. Twp. of Montgomery, 182 N.J. 296, 865 A.2d 649, 2005 N.J. LEXIS 3 \(N.J. 2005\)](#).

Research References & Practice Aids

Cross References:

Appeal not automatic stay of order to stop construction, see [52:27D-134](#).

Definitions relative to testing, inspecting elevator devices; alternative testing; rules, regulations; review, analysis, see [52:27D-126f](#).

End of Document

N.J. Stat. § 52:27D-138.1

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§ 52:27D-138.1. Surcharge for violation of State Uniform Construction Code

In addition to any other penalty, fine or charge imposed pursuant to law, a person convicted of a violation of the State Uniform Construction Code adopted pursuant to the “State Uniform Construction Code Act,” P.L. 1975, c. 217 ([C. 52:27D-119](#) et seq.), shall be subject to a surcharge in the amount of \$100, of which amount \$50 shall be payable to the municipality in which the violation shall have occurred and \$50 shall be payable to the Treasurer of the State of New Jersey for deposit into the General Fund; except that in the case of a violation occurring in a municipality in which the enforcement of the State Uniform Construction Code is performed exclusively by the State, the entire amount of the surcharge shall be payable to the State Treasurer for deposit into the General Fund.

History

L. [2002, c. 34](#), § 52, eff. July 1, 2002.

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N.J. Stat. § 52:27D-139

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§ 52:27D-139. Effect of the promulgation of the code

All construction regulations incorporated in any act of the State of New Jersey, or of any municipality presently in effect, or validly promulgated or enacted by any board, department, commission or agency thereof shall continue in effect until such time as any such regulation is superseded by appropriate regulations promulgated pursuant to this act, at which time they shall be deemed repealed and superseded, and of no further force and effect. A construction permit issued under valid construction regulations prior to the promulgation of the code shall remain valid, and the construction of any building or structure may be completed pursuant to and in accordance with said permit. The construction of any building or structure started before the promulgation of the code that did not as of the date of the beginning of the construction require a construction permit may be completed without a construction permit. Nothing contained in this act or the code shall be deemed to affect, repeal or invalidate local zoning ordinances or the regulation or licensing of any trade or profession engaged in construction work.

History

L. 1975, c. 217, 21.

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N.J. Stat. § 52:27D-139.1

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§ 52:27D-139.1. Fire safety maintenance code; municipalities or fire districts; adoption; enforcement

Notwithstanding any provisions of the act to which this act is a supplement, a municipality or the commissioners of a fire district pursuant to [N.J.S. 40A:14-81](#) may adopt and provide for the enforcement of a fire safety maintenance code or continue to enforce an existing fire safety maintenance code. The provisions of the "State Uniform Construction Code Act," P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.) providing for the adoption and enforcement of a fire prevention subcode as part of the State Uniform Construction Code shall apply to fire prevention-related construction activities which are defined as those fire prevention-related construction activities, which in any way may affect, pertain to, or involve the issuance of a construction permit or initial certificate of occupancy under said act. No fire safety maintenance code or the enforcement thereof by any municipality or commissioners of a fire district pursuant to [N.J.S. 40A:14-81](#) shall in any way conflict with or otherwise affect the terms and enforcement of the State Uniform Construction Code adopted pursuant to the "State Uniform Construction Code Act," P.L.1975, c. 217 ([C. 52:27D-119](#) et seq.).

History

L. 1975, c. 317, 2.

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N.J. Stat. § 52:27D-140

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§ 52:27D-140. Partial invalidity; severability

If any clause, sentence, subdivision, paragraph, subsection or section of this act be adjudged unconstitutional or invalid, such judgment shall not affect, impair or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, subdivision, subsection or section thereof directly involved in the controversy in which said judgment shall have been rendered.

History

L. 1975, c. 217, 22.

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§ 52:27D-141. Interpretation of powers

The powers enumerated in this act shall be interpreted broadly to effectuate the purposes thereof.

History

L. 1975, c. 217, 23.

Annotations

CASE NOTES

Governments: Local Governments: Finance

Governments: Local Governments: Licenses

Governments: Local Governments: Ordinances & Regulations

Tax Law: State & Local Taxes: Administration & Proceedings: General Overview

Governments: Local Governments: Finance

[N.J. Stat. Ann. § 52:27D-141](#) preempted a borough's ordinance requiring, as a condition for the issuance of a building permit, that past-due real estate taxes on the property be paid; [N.J. Stat. Ann. § 40:52-1.2](#) did not provide the borough with authority for the ordinance because it was limited to authorizing the licensing of specifically enumerated merchants and businesses for the purpose of regulating them and generating revenue. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

Governments: Local Governments: Licenses

Uniform Construction Code Act, [N.J. Stat. Ann. § 52:27D-119](#) to -141 (UCC Act), is designed to protect the health, safety, and welfare of people, and therefore its powers should be given liberal interpretation so the various enforcing authorities can act. The Act's provisions specifically include a legislative direction to be generous when in doubt about its powers, [N.J. Stat. Ann. § 52:27D-141](#). [DKM Residential Props. Corp. v. Twp. of Montgomery, 182 N.J. 296, 865 A.2d 649, 2005 N.J. LEXIS 3 \(N.J. 2005\)](#).

Governments: Local Governments: Ordinances & Regulations

[N.J. Stat. Ann. § 52:27D-141](#) preempted a borough's ordinance requiring, as a condition for the issuance of a building permit, that past-due real estate taxes on the property be paid; [N.J. Stat. Ann. § 40:52-1.2](#) did not provide the borough with authority for the ordinance because it was limited to authorizing the licensing of specifically enumerated merchants and businesses for the purpose of regulating them and generating revenue. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

Tax Law: State & Local Taxes: Administration & Proceedings: General Overview

[N.J. Stat. Ann. § 52:27D-141](#) preempted a borough's ordinance requiring, as a condition for the issuance of a building permit, that past-due real estate taxes on the property be paid; [N.J. Stat. Ann. § 40:52-1.2](#) did not provide the borough with authority for the ordinance because it was limited to authorizing the licensing of specifically enumerated merchants and businesses for the purpose of regulating them and generating revenue. [Builders League of S. Jersey v. Borough of Pine Hill, 286 N.J. Super. 348, 669 A.2d 279, 1996 N.J. Super. LEXIS 7 \(App.Div. 1996\)](#).

N.J. Stat. § 52:27D-141.1

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§ 52:27D-141.1. Short title [Residential Development Solar Energy Systems Act]

This act shall be known and may be cited as the “Residential Development Solar Energy Systems Act.”

History

L. [2009, c. 33](#), § 1, eff. Mar. 31, 2009.

Annotations

Notes

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act.” Chapter 33, L. 2009, was approved on March 31, 2009.

Research References & Practice Aids

Cross References:

Adoption of standards relative to solar energy systems, see [52:27D-141.7](#).

Enforcement, penalties, see [52:27D-141.8](#).

Orders, rules, regulations, see [52:27D-141.9](#).

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N.J. Stat. § 52:27D-141.2

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§ 52:27D-141.2. Findings, declarations relative to solar energy systems

The Legislature finds and declares that:

- a. New Jersey residents primarily rely on fossil fuels for their energy needs;
- b. Fossil fuels are nonrenewable fuels since they are derived from finite resources that will inevitably dwindle over time, becoming too expensive or too environmentally damaging to extract;
- c. Unlike fossil fuels, renewable energy sources have minimal environmental impact since, for example, energy produced from photovoltaic cells does not result in air or water pollution, deplete natural resources, or endanger animal and human health;
- d. The use of renewable energy equipment also reduces the nation's dependency on foreign sources of energy, which is an important strategy in the process of creating a secure and sustainable energy future;
- e. The use of renewable energy technology would benefit New Jersey's economy since jobs evolve directly from the manufacture, design, installation, service and repair, and marketing of renewable energy products;
- f. The State has adopted a renewable energy portfolio standard that requires twenty percent of the State's electricity demand to be produced from renewable sources by the year 2020, and requires a specific percentage of these renewable energy sources to be from solar photovoltaic systems;
- g. Generating electricity from solar energy reduces consumption of fossil fuels, which decreases pollution and greenhouse gas emissions; and
- h. The installation of even small scale solar energy systems will combat global warming and reduce the nation's dependence on foreign energy sources, resulting in a significant environmental benefit.

History

L. [2009, c. 33](#), § 2, eff. Mar. 31, 2009.

Annotations

Notes

OLS Corrections:

§ 52:27D-141.2. Findings, declarations relative to solar energy systems

Pursuant to [R.S.1:3-1](#), the Office of Legislative Services, through its Legislative Counsel and with the concurrence of the Attorney General, substituted “fossil fuels” for “fossils fuels” in subsection a. of L. [2009, c. 33](#), § 2.

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act.” Chapter 33, L. 2009, was approved on March 31, 2009.

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N.J. Stat. § 52:27D-141.3

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§ 52:27D-141.3. Definitions relative to solar energy systems

As used in this act:

“Advertising” means the same as the term is defined in section 3 of P.L.1977, c.419 ([C.45:22A-23](#)).

“Commissioner” means the Commissioner of Community Affairs.

“Developer” means any person who constructs or offers to construct a dwelling unit as part of a residential development.

“Dwelling unit” means a single-family residence constructed as part of a development, the roof of which is exclusive to that residence and not a common element or common area.

“Owner” means any person who acquires a legal or equitable interest in a dwelling unit.

“Prospective owner” means any person who contemplates acquiring a legal or equitable interest in a dwelling unit.

“Residential development” means development undertaken for the purpose of creating 25 or more dwelling units for owner occupancy.

“Solar energy system” means any system which uses solar energy to provide all or a portion of the heating, cooling, or general energy needs of a dwelling unit, including, but not limited to, nocturnal heat radiation, flat plate or focusing solar collectors, or photovoltaic solar cells.

History

L. [2009, c. 33](#), § 3, eff. Mar. 31, 2009.

Annotations

Notes

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act.” Chapter 33, L. 2009, was approved on March 31, 2009.

§ 52:27D-141.3. Definitions relative to solar energy systems

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[N.J. Stat. § 52:27D-141.4](#)

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§ 52:27D-141.4. Developer to offer to install solar energy system

- a. Where technically feasible, as determined by the commissioner in consultation with the Board of Public Utilities, a developer shall offer to install, or to provide for the installation of, a solar energy system into a dwelling unit when a prospective owner enters into negotiations with the developer to purchase a dwelling unit.
- b. A developer shall disclose in any advertising, in a manner and form determined by the commissioner pursuant to the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.):
- (1) that a prospective owner may have a solar energy system installed in any dwelling unit;
 - (2) the total cost of installing a solar energy system into a dwelling unit that will be charged to the owner by the developer;
 - (3) general information on the environmental benefits of, and potential energy cost savings associated with, solar energy systems; and
 - (4) information concerning any applicable credits, rebates, or other incentives that may be available for the installation of solar energy systems, as provided to the developer by the commissioner and the Board of Public Utilities pursuant to subsection b. of section 7 [[C.52:27D-141.7](#)] of this act.

History

L. [2009, c. 33](#), § 4, eff. Mar. 31, 2009.

Annotations

Notes

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act.” Chapter 33, L. 2009, was approved on March 31, 2009.

Research References & Practice Aids

Cross References:

Adoption of standards relative to solar energy systems, see [52:27D-141.7](#).

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N.J. Stat. § 52:27D-141.5

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§ 52:27D-141.5. Installation of solar energy system

If the prospective owner accepts, pursuant to a written contract, the developer's offer to install, or to provide for the installation of, a solar energy system into the dwelling unit, then the developer shall install, or provide for the installation of, a solar energy system into the dwelling unit prior to the completion of the construction of that unit.

History

L. [2009, c. 33](#), § 5, eff. Mar. 31, 2009.

Annotations

Notes

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: "This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act." Chapter 33, L. 2009, was approved on March 31, 2009.

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N.J. Stat. § 52:27D-141.6

Current through New Jersey 221st Second Annual Session, L. 2025, c. 152 and J.R. 11

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§ 52:27D-141.6. Rights of homeowner association

If the dwelling unit is located within a residential development for which a homeowner association or other owner or membership association will be responsible for the maintenance, repair or replacement of the roof of the dwelling unit or other area upon which a solar energy system is installed, and the association incurs any additional cost or expense resulting from the installation of a solar energy system, such as the additional cost to remove and reinstall the system in the course of maintenance, repair or replacement, then the association shall have the right to:

- a. impose and collect the additional cost or expense from the owner of the dwelling unit, which shall be collectible in the same manner as any other common expense or fee of the development;
- b. access the dwelling unit as may be reasonably required to perform such maintenance, repair or replacement; and
- c. record a declaration or similar instrument, in the same manner as a deed, with the county clerk for the purpose of advising current and prospective owners of the dwelling unit that they may be responsible for the additional costs and expenses described in this section.

History

L. [2009, c. 33](#), § 6, eff. Mar. 31, 2009.

Annotations

Notes

OLS Corrections:

Pursuant to [R.S.1:3-1](#), the Office of Legislative Services, through its Legislative Counsel and with the concurrence of the Attorney General, inserted “a” preceding “homeowner association” in the opening paragraph of L. [2009, c. 33](#), § 6.

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [\[C.52:27D-141.7\]](#) of this act.” Chapter 33, L. 2009, was approved on March 31, 2009.

§ 52:27D-141.6. Rights of homeowner association

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N.J. Stat. § 52:27D-141.7

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§ 52:27D-141.7. Adoption of standards relative to solar energy systems

a. The commissioner, in consultation with the Board of Public Utilities, shall adopt, pursuant to the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), standards with respect to the technical sufficiency of solar energy systems to be installed pursuant to this act ([C.52:27D-141.1](#) et seq.). These standards, at a minimum, shall provide:

- (1) that the solar energy system is to be installed in conformance with the manufacturer's specifications and in compliance with all applicable electrical and building code standards;
- (2) that the solar energy system is intended primarily to offset part or all of the consumer's own electricity demand;
- (3) that all components in the solar energy system are to be new and unused, and shall not have previously been placed in service in any other location or for any other application;
- (4) that the solar energy system shall have a warranty of not less than 10 years provided by the solar energy system manufacturer, and shall be subject to coverage afforded under “The New Home Warranty and Builders' Registration Act,” P.L.1977, c.467 ([C.46:3B-1](#) et seq.) to protect the integrity of the roof of the home and to protect against defects and undue degradation of electrical generation output;
- (5) that the solar energy system shall have meters or other devices in place to monitor and measure the system's performance and the quantity of electricity generated by the system;
- (6) that the solar energy system shall comply with adopted energy codes for the dwelling unit where the solar energy system is installed;
- (7) for rating criteria for equipment, components, and systems to assure reasonable performance and criteria for complying with these minimum ratings;
- (8) that the solar energy system shall be consistent with the net metering standards and safety and power quality interconnection standards adopted by the Board of Public Utilities pursuant to subsection e. of section 38 of [P.L.1999, c.23](#) ([C.48:3-87](#)); and
- (9) for the criteria by which the technical feasibility of the installation of a solar energy system is determined in section 4 ([C.52:27D-141.4](#)) of this act.

b. The commissioner, in consultation with the Board of Public Utilities, shall:

- (1) publish educational materials designed to demonstrate how developers may incorporate solar energy systems during construction as well as energy efficiency measures that best complement solar energy systems; and
- (2) provide developers with information concerning any applicable credits, rebates, or other incentives that may be available for the installation of solar energy systems.

History

L. [2009, c. 33](#), § 7, eff. Mar. 31, 2009.

Annotations

Notes

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: "This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act." Chapter 33, L. 2009, was approved on March 31, 2009.

Research References & Practice Aids

Cross References:

Developer to offer to install solar energy system, see [52:27D-141.4](#).

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N.J. Stat. § 52:27D-141.8

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§ 52:27D-141.8. Enforcement, penalties

The commissioner shall enforce the provisions of this act [[C.52:27D-141.1](#) et seq.] and may assess violators of this act in accordance with the penalties provided for under section 18 of P.L.1977, c.419 ([C.45:22A-38](#)).

History

L. [2009, c. 33](#), § 8, eff. Mar. 31, 2009.

Annotations

Notes

Publisher's Note:

The bracketed material was added by the Publisher to provide a reference.

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: "This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act." Chapter 33, L. 2009, was approved on March 31, 2009.

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N.J. Stat. § 52:27D-141.9

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§ 52:27D-141.9. Orders, rules, regulations

The Board of Public Utilities shall adopt orders, rules, or regulations that provide for solar energy systems installed in accordance with the provisions of [P.L.2009, c.33](#) ([C.52:27D-141.1](#) et seq.) to be eligible for all applicable credits, rebates, or other incentives that may be available for the installation of solar energy systems.

History

L. [2009, c. 33](#), § 9, eff. Mar. 31, 2009.

Annotations

Notes

Effective Dates:

Section 10 of L. [2009, c. 33](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the issuance of the standards adopted pursuant to section 7 [[C.52:27D-141.7](#)] of this act.” Chapter 33, L. 2009, was approved on March 31, 2009.

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N.J. Stat. § 52:27D-141.10

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§ 52:27D-141.10. Definitions relative to installation of electric vehicle charging stations in certain new residential construction

As used in this act:

“Commissioner” means the Commissioner of Community Affairs.

“Designated parking space” means a parking space specifically designated for use by an owner of a particular dwelling unit, including, but not limited to, a garage, a deeded parking space, or a parking space in a limited common element that is restricted for use by one or more dwelling unit owners.

“Developer” means any person who constructs or offers to construct a dwelling unit as part of a residential development.

“Dwelling unit” means a single-family residence constructed as part of a residential development, which includes a designated parking space which is exclusive to that residence and not a common element or common area.

“Electric vehicle charging station” means a station that is designed in compliance with the State Uniform Construction Code, adopted pursuant to P.L.1975, c.217 ([C.52:27D-119](#) et seq.), that delivers electricity from a source outside an electric vehicle into one or more electric vehicles, and that provides, at a minimum, Level 2 charging that is capable of two-way communications, data sharing, and load control functionality with an electric public utility.

“Owner” means any person who acquires a legal or equitable interest in a dwelling unit.

“Prospective owner” means any person who contemplates acquiring a legal or equitable interest in a dwelling unit.

“Residential development” means development undertaken for the purpose of creating 25 or more dwelling units for owner occupancy.

History

L. [2020, c. 80](#), § 1, effective September 14, 2020.

Annotations

Notes

Effective Dates

§ 52:27D-141.10. Definitions relative to installation of electric vehicle charging stations in certain new residential construction

Section 6 of L. [2020, c. 80](#) provides: "This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the date of enactment." Chapter 80, L. 2020, was approved on Sept. 14, 2020.

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N.J. Stat. § 52:27D-141.11

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§ 52:27D-141.11. Developer to offer to install, provide for installation of electric vehicle charging station

- a. A developer shall offer to install, or to provide for the installation of, an electric vehicle charging station into a dwelling unit when a prospective owner enters into negotiations with the developer to purchase a dwelling unit.
- b. Prior to entering into a contract of sale for a dwelling unit, a developer shall:
 - (1) disclose that a prospective owner may have an electric vehicle charging station installed at any dwelling unit, and upon request by the prospective owner, disclose the total cost of installing an electric vehicle charging station at a dwelling unit that will be charged to the owner by the developer; and
 - (2) unless the installation of an electric vehicle charging station is included in the sale of the dwelling unit at no cost to the prospective owner, inform the prospective owner of the availability on the Internet website of the Department of Community Affairs of general information on the environmental benefits of, and potential energy cost savings associated with, electric vehicle usage and any applicable credits, rebates, or other incentives that may be available to the prospective owner for the installation of an electric vehicle charging station.
- c. Every contract of sale for a dwelling unit shall include a notification by the developer to the prospective owner of the offer to install, or to provide for the installation of, an electric vehicle charging station at the dwelling unit pursuant to this section.
- d. The commissioner, in consultation with the Department of Environmental Protection and the Board of Public Utilities, shall compile, and make available on the Internet website of the Department of Community Affairs, information for prospective owners and developers concerning the environmental benefits of, and potential energy cost savings associated with, electric vehicle usage and any applicable credits, rebates, or other incentives that may be available to the prospective owner for the installation of an electric vehicle charging station. The information required pursuant to this subsection shall inform prospective owners and developers of the availability of various types of electric vehicle charging stations.

History

L. [2020, c. 80](#), § 2, effective September 14, 2020.

Annotations

Notes

Effective Dates

§ 52:27D-141.11. Developer to offer to install, provide for installation of electric vehicle charging station

Section 6 of L. [2020, c. 80](#) provides: "This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the date of enactment." Chapter 80, L. 2020, was approved on Sept. 14, 2020.

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N.J. Stat. § 52:27D-141.12

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§ 52:27D-141.12. Installation prior to closing of title

If the prospective owner accepts, pursuant to a written contract, the developer's offer to install, or to provide for the installation of, an electric vehicle charging station at the dwelling unit, then the developer shall install, or provide for the installation of, an electric vehicle charging station at the dwelling unit prior to the closing of title on the sale of the dwelling unit, subject to material availability or acts of force majeure in which case the developer shall complete the installation as soon as reasonably practical.

History

L. [2020, c. 80](#), § 3, effective September 14, 2020.

Annotations

Notes

Effective Dates

Section 6 of L. [2020, c. 80](#) provides: "This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the date of enactment." Chapter 80, L. 2020, was approved on Sept. 14, 2020.

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N.J. Stat. § 52:27D-141.13

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§ 52:27D-141.13. Rights of homeowner association

If the dwelling unit is located within a residential development for which a homeowner association or other owner or membership association will be responsible for the maintenance, repair, or replacement of the area in which an electric vehicle charging station is installed, and the association incurs any additional cost or expense resulting from the installation of an electric vehicle charging station, such as the additional cost to remove and reinstall the equipment in the course of maintenance, repair, or replacement, or the electricity usage associated with the electric vehicle charging station, then the association shall have the right to:

- a. impose and collect the additional cost or expense from the owner of the dwelling unit, which shall be collectible in the same manner as any other common expense or fee of the development;
- b. access the dwelling unit as may be reasonably required to perform such maintenance, repair, or replacement; and
- c. record a declaration or similar instrument, in the same manner as a deed, with the county clerk for the purpose of advising current and prospective owners of the dwelling unit that they may be responsible for the additional costs and expenses described in this section.

History

L. [2020, c. 80](#), § 4, effective September 14, 2020.

Annotations

Notes

Effective Dates

Section 6 of L. [2020, c. 80](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the date of enactment.” Chapter 80, L. 2020, was approved on Sept. 14, 2020.

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N.J. Stat. § 52:27D-141.14

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§ 52:27D-141.14. Violations, penalties

The commissioner shall enforce the provisions of this act and may assess violators of this act [[C.52:27D-141.10](#) et seq.] in accordance with the penalties provided for under section 18 of P.L.1977, c.419 ([C.45:22A-38](#)).

History

L. [2020, c. 80](#), § 5, effective September 14, 2020.

Annotations

Notes

Publisher's Notes

The bracketed material was added by the Publisher to provide a reference.

Effective Dates

Section 6 of L. [2020, c. 80](#) provides: “This act shall take effect immediately and shall apply to any dwelling unit for which a construction permit is issued on or after the 90th day following the date of enactment.” Chapter 80, L. 2020, was approved on Sept. 14, 2020.

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N.J. Stat. § 52:27D-141.15

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§ 52:27D-141.15. Findings, declarations relative to fossil fuels

The Legislature finds and declares that the burning of fossil fuels and other industrial processes release harmful greenhouse gases into the atmosphere, which in turn contribute to climate change; that, in the coming years, New Jersey is likely to experience increased flooding, drought, and other severe weather effects caused by climate change; and that, in order to help mitigate the serious impacts of climate change, the State must drastically reduce its consumption of fossil fuels and its greenhouse gas emissions.

The Legislature further finds that concrete is the most widely used construction material in the world due to its low cost, strength, and durability; that the production of ordinary Portland cement, the critical ingredient in concrete, is responsible for almost eight percent of the world's carbon dioxide emissions; that ordinary Portland cement requires significant amounts of energy to produce, resulting in high carbon dioxide emissions; that modern technology allows concrete to be produced utilizing less energy, and the emission of carbon dioxide from cement manufacturing can be greatly reduced by capturing and utilizing carbon dioxide in the unit concrete product manufacturing process, including the chemical reaction that results in strength and durability of concrete; and that this process can sequester carbon dioxide in the unit concrete product or chemically transform the carbon dioxide into mineral form, embedding it into the concrete and preventing its release as a gas.

The Legislature therefore determines that it is in the public interest to encourage and support the purchase of unit concrete products that utilize carbon footprint-reducing technology in the State; that unit concrete products that utilize carbon footprint-reducing technology will greatly reduce greenhouse gas emissions from the concrete and construction industries; and that incentives for permeable pavers that are unit concrete products that utilize carbon footprint-reducing technology will further help enhance stormwater management, reduce stormwater runoff, and decrease the risk of flooding in the State.

History

L. [2021, c. 278](#), § 1, effective November 8, 2021.

Annotations

Notes

Effective Dates

§ 52:27D-141.15. Findings, declarations relative to fossil fuels

Section 11 of L. [2021, c. 278](#) provides: "This act shall take effect immediately and sections 4 and 5 shall apply to purchases of unit concrete products that utilize carbon footprint-reducing technology made on or after the first day of the second month next following the date of enactment." Chapter 278, L. 2021, was approved on Nov. 8, 2021.

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N.J. Stat. § 52:27D-141.16

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§ 52:27D-141.16. Use of unit concrete products that utilize carbon footprint-reducing technology

a. A builder shall, for any new construction that requires the use of unit concrete products, where technically feasible, offer as an option unit concrete products that utilize carbon footprint-reducing technology in the new construction, whenever a prospective client enters into negotiations with the builder to construct or purchase a new residential dwelling or commercial building in the State.

The requirements of this section shall not apply whenever a prospective client enters into negotiations with a builder for new construction of an individual unit of condominiums as defined in the “Condominium Act,” P.L.1969, c.257 ([C.46:8B-1](#) et seq.) or attached single-family townhouses or row houses for which title to the individual condominium, townhouse, or row house unit will be held in fee simple but the maintenance, repair, or replacement of improvements constructed with unit concrete products are the responsibility of a non-profit homeowners association.

b. A builder shall disclose in writing pursuant to paragraph (3) of subsection c. of this section, in a form and manner as determined by the commissioner:

- (1)** that the prospective client may choose to use unit concrete products that utilize carbon footprint-reducing technology in the new construction;
- (2)** the total cost to be charged by the builder to the prospective client of using unit concrete products that utilize carbon footprint-reducing technology in the new construction;
- (3)** general information on the environmental and other benefits of using unit concrete products that utilize carbon footprint-reducing technology; and
- (4)** information concerning any applicable tax credits, rebates, or other incentives that may be available for the use of unit concrete products that utilize carbon footprint-reducing technology pursuant to [P.L.2021, c.278](#) ([C.52:27D-141.15](#) et al.).

c. The commissioner, in consultation with the Department of Environmental Protection, shall:

- (1)** publish educational materials to demonstrate how builders may incorporate unit concrete products that utilize carbon footprint-reducing technology into new construction;
- (2)** provide builders with information concerning applicable tax credits, rebates, or other incentives that may be available for the use of unit concrete products that utilize carbon footprint-reducing technology pursuant to [P.L.2021, c.278](#) ([C.52:27D-141.15](#) et al.) or any other law; and
- (3)** provide builders with a separate form that the builder shall present, along with the materials required pursuant to subsection b. and c. of this section, to the prospective client prior to entering into a contract, which form shall allow a prospective client to accept or decline the option to use unit concrete products that utilize carbon footprint-reducing technology in the new construction.

§ 52:27D-141.16. Use of unit concrete products that utilize carbon footprint-reducing technology

d. Notwithstanding the provisions of the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.), to the contrary, the commissioner, in consultation with the Department of Environmental Protection, may adopt, immediately upon filing the proper notice with the Office of Administrative Law, rules and regulations that the commissioner determines to be necessary to implement this section. These rules and regulations shall be in effect for a period not to exceed 365 days after the date of the filing. The rules and regulations shall thereafter be amended, adopted, or readopted in accordance with the requirements of the “Administrative Procedure Act,” P.L.1968, c.410 ([C.52:14B-1](#) et seq.).

e. The commissioner shall enforce the provisions of this section and may penalize and assess violators of this section in accordance with the penalties and procedures provided for under section 18 of P.L.1977, c.419 ([C.45:22A-38](#)).

f. If a prospective client accepts, pursuant to a written contract, the builder’s offer to use unit concrete products that utilize carbon footprint-reducing technology in the new construction, then the builder shall use unit concrete products that utilize carbon footprint-reducing technology subject to material availability or acts of force majeure, in which case the builder shall complete construction as soon as reasonably practical.

g. As used in this section:

“Advertising” means the same as the term is defined in section 3 of P.L.1977, c.419 ([C.45:22A-23](#)).

“Builder” means a person who constructs, or offers to construct, a new residential dwelling or commercial building in the State.

“Commissioner” means the Commissioner of Community Affairs.

“Prospective client” means a person who contemplates acquiring a legal or equitable interest in or constructing a new residential dwelling or commercial building.

“Unit concrete product” means a concrete building product that is fabricated under controlled conditions separate and remote from the intended point of use and is produced in a wet cast or dry cast method in a factory setting and then transported to the location of intended use for installation, including, but not limited to, all concrete pavers, whether permeable or non-permeable, and concrete block. “Unit concrete product” shall not include ready mix concrete, sand, stone, gravel, or bituminous concrete or asphalt.

“Unit concrete product that utilizes carbon footprint-reducing technology” means a unit concrete product that is certified by the Department of Environmental Protection, or any independent third party authorized by the department, pursuant to section 10 of [P.L.2021, c.278](#) ([C.52:27D-141.17](#)), as generating at least 50 percent less carbon dioxide emissions in the production and utilization of the unit concrete product than conventional unit concrete products made with ordinary Portland cement. Such products shall also conform with the relevant requirements of the “State Uniform Construction Code Act,” P.L.1975, c.217 ([C.52:27D-119](#) et seq.) that incorporate by reference TMS 402/602 Building Code Requirements and Specification for Masonry Structures.

History

L. [2021, c. 278](#), § 2, effective November 8, 2021.

Annotations

Notes

Effective Dates

§ 52:27D-141.16. Use of unit concrete products that utilize carbon footprint-reducing technology

Section 11 of L. [2021, c. 278](#) provides: "This act shall take effect immediately and sections 4 and 5 shall apply to purchases of unit concrete products that utilize carbon footprint-reducing technology made on or after the first day of the second month next following the date of enactment." Chapter 278, L. 2021, was approved on Nov. 8, 2021.

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§ 52:27D-141.17. Standards, procedures, implementation

- a. The Commissioner of Environmental Protection shall establish any standards and procedures necessary to implement the provisions of [P.L.2021, c.278](#) ([C.52:27D-141.15](#) et al.), including, but not limited to, production and use standards, and a process for certifying whether the production and use of a unit concrete product generates at least 50 percent less carbon dioxide emissions than conventional unit concrete products made with ordinary Portland cement. The commissioner shall publish on the department's Internet website a list of unit concrete products certified by the department pursuant to this subsection. The Department of Environmental Protection shall consider a consensus evaluation and reporting standard developed by an independent private organization such as the International Organization for Standardization or the American National Standards Institute that creates a uniform system for self-evaluation and self-reporting by unit concrete product manufacturers, and shall give preference to a standard supported by the unit concrete product industry or industry associations.
- b. Notwithstanding the provisions of the "Administrative Procedure Act," P.L.1968, c.410 ([C.52:14B-1](#) et seq.), to the contrary, the State Treasurer, the Commissioner of Environmental Protection, the Commissioner of Transportation, the Commissioner of Community Affairs, and the Secretary of Higher Education may adopt, immediately upon filing the proper notice with the Office of Administrative Law, any rules and regulations necessary to implement the provisions of [P.L.2021, c.278](#) ([C.52:27D-141.15](#) et al.). These rules and regulations shall be in effect for a period not to exceed 365 days after the date of the filing. The rules and regulations shall thereafter be amended, adopted, or readopted in accordance with the requirements of the "Administrative Procedure Act," P.L.1968, c.410 ([C.52:14B-1](#) et seq.).

History

L. [2021, c. 278](#), § 10, effective November 8, 2021.

Annotations

Notes

Effective Dates

Section 11 of L. [2021, c. 278](#) provides: "This act shall take effect immediately and sections 4 and 5 shall apply to purchases of unit concrete products that utilize carbon footprint-reducing technology made on or after the first day of the second month next following the date of enactment." Chapter 278, L. 2021, was approved on Nov. 8, 2021.

§ 52:27D-141.17. Standards, procedures, implementation

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N.J. Stat. § 52:27D-141.18

Current through New Jersey 221st Second Annual Session, L. 2025, c. 152 and J.R. 11

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§ 52:27D-141.18. Findings, declarations

The Legislation finds and declares that:

- (a) Energy efficiency standards for certain products sold or installed in the State assure consumers and businesses that such products meet minimum efficiency performance levels, thereby reducing energy and water waste and saving consumers and businesses money on their utility bills;
- (b) Energy efficiency standards save energy and therefore reduce climate-changing emissions and other environmental impacts associated with the production, distribution, and use of electricity, natural gas, and other fuels;
- (c) Energy efficiency standards save water, mitigate the effects of short- and long-term droughts, and help to conserve fresh water supplies;
- (d) Energy efficiency standards produce savings resulting from more efficient products that benefit all consumers but are especially important to low-income families which spend a disproportionate share of their income on utilities. Such standards also help the State and local economy since savings can be instead spent on local goods and services; and
- (e) Energy and water savings help reduce or delay the need for expensive investments in new power plants, transmission lines, distribution system upgrades, new and expanded gas pipelines, and water and sewer infrastructure improvements.

History

L. [2021, c. 464](#), § 1, effective January 18, 2022.

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N.J. Stat. § 52:27D-141.19

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§ 52:27D-141.19. Definitions

As used in this act [[C.52:27D-141.18](#) et seq.]:

“Air purifier” means an electric, cord-connected, portable appliance with the primary function of removing particulate matter from the air and which can be moved from room to room.

“Cold temperature fluorescent lamp” means a fluorescent bulb or lamp that is not a compact fluorescent lamp and which:

(a) is designed to start at -20° F when used with a ballast conforming to the requirements of the American National Standard ANSI C78.81 and ANSI C78.901; and

(b) is designated as a cold temperature lamp both in markings on the lamp and in marketing materials, including catalogs, sales literature, and promotional material.

“Commercial dishwasher” means a machine designed to clean and sanitize plates, pots, pans, glasses, cups, bowls, utensils, and trays by applying sprays of detergent solution and a sanitizing rinse.

“Commercial fryer” means an appliance in which oil is placed to such a depth that the cooking food is supported by displacement of the cooking fluid rather than by the bottom of the vessel, and in which heat is delivered to the cooking fluid by means of an immersed electric element or by heat transfer from gas burners.

“Commercial hot-food holding cabinet” means a heated, fully enclosed compartment with one or more solid or transparent doors designed to maintain the temperature of cooked food.

“Commercial hot-food holding cabinet” shall not include heated glass merchandizing cabinets, drawer warmers, or cook-and-hold appliances.

“Commercial oven” means a chamber designed for heating, roasting, or baking food by conduction, convection, radiation, or electromagnetic energy.

“Commercial steam cooker,” means a device also known as a “compartment steamer,” with one or more food-steaming compartments in which the energy in the steam is transferred to the food by direct contact.

“Commissioner” means the Commissioner of Environmental Protection.

“Computer” means a computer as defined in California Code of Regulations, Title 20, Section 1602(v).

“Computer monitor” means a computer monitor as defined in California Code of Regulations, Title 20, Section 1602(v).

“Department” means the Department of Environmental Protection.

“Dual-flush effective flush volume” means the average flush volume of two reduced flushes and one full flush.

§ 52:27D-141.19. Definitions

“Dual-flush tank-type toilet” means a toilet that allows the user to flush the toilet with either a reduced or a full volume of water.

“Electric vehicle service equipment” means the same as the term is defined in section 2 of [P.L.2019, c.362 \(C.48:25-2\)](#).

“Faucet” means a private lavatory faucet, residential kitchen faucet, metering faucet, public lavatory faucet, or replacement aerator for a private lavatory, public lavatory or residential kitchen faucet.

“General service lamp” means a light bulb, including a general service incandescent lamp, compact fluorescent lamp, general service light-emitting diode lamp, organic light-emitting diode lamp, and any other lamps or bulbs that are used to satisfy lighting applications traditionally served by general service incandescent lamps.

“Hand-held showerhead” means a showerhead that can be held or fixed in place for the purpose of spraying water onto a bather and that is connected to a flexible hose.

“High color rendering index fluorescent lamp” means a fluorescent lamp with a color rendering index of 87 or greater that is not a compact fluorescent lamp.

“Impact-resistant fluorescent lamp” means a fluorescent lamp or bulb that is not a compact fluorescent lamp and which:

- (a)** has a coating or equivalent technology that is compliant with ANSI 51 and is designed to contain the glass if the glass envelope of the lamp is broken; and
- (b)** is designated and marketed as being impact-resistant, shatter-resistant, shatter-proof, or shatter-protected.

“Industrial air purifier” means an indoor air cleaning device manufactured, advertised, marketed, labeled, and used solely for industrial use that are marketed solely through industrial supply outlets or businesses and prominently labeled as “Solely for industrial use. Potential health hazard: emits ozone.”

“Lamp efficacy” or “luminous efficacy” means the measure of how well a light source produces visible light, and which is the ratio of luminous flux to power, measured in lumens per watt.

“Metering faucet” means a fitting that, when turned on, will gradually shut itself off over a period of several seconds.

“On demand water cooler” means the water cooler heats water as it is requested, which typically takes a few minutes to deliver water.

“Person” means an individual, corporation, company, association, society, firm, partnership, or joint stock company.

“Portable electric spa” means a factory-built electric spa or hot tub which may include any combination of integral controls, water heating, or water circulating equipment.

“Pressure regulator” means a device that maintains constant operating pressure immediately downstream from the device, given higher pressure upstream.

“Public lavatory faucet” means a fitting designed to be installed in nonresidential lavatories that are exposed to walk-in traffic.

“Replacement aerator” means an aerator sold as a replacement, separate from the faucet to which it is intended to be attached.

“Residential ventilating fan” means a ceiling, wall-mounted, or remotely mounted in-line fan designed to be used in a lavatory or utility room, whose purpose is to move air from inside the building to the outdoors.

“Showerhead” means a device through which water is discharged for a shower bath and includes a hand-held showerhead but does not include a safety shower showerhead.

§ 52:27D-141.19. Definitions

“Spray sprinkler body” means the exterior case or shell of a sprinkler incorporating a means of connection to the piping system designed to convey water to a nozzle or orifice.

“State-regulated general service lamp” means any of the following medium-based incandescent light bulbs:

- (1) Shatter-resistant lamps;
- (2) Three-way lamps;
- (3) Reflector lamps that are:
 - (a) ER30, BR30, BR40, or ER40 lamps rated at 50 watts or less;
 - (b) BR30, BR40, or ER40 lamps rated at 65 watts; or
 - (c) R20 lamps rated at 45 watts or less;
- (4) B, BA, CA, F and G shape lamps as defined in ANSI C79.1:2002 with a lumen output of greater than or equal to 200 and rated at 40 watts or less.
- (5) A and C shape lamps as defined in ANSI C79.1:2002 with lumen output greater than or equal to 200 and less than 310.

“Trough-type urinal” means a urinal designed for simultaneous use by two or more persons.

“Urinal” means a plumbing fixture that receives only liquid body waste and conveys the waste through a trap into a drainage system.

“Water cooler” means a freestanding device that consumes energy to cool or heat potable water.

History

L. [2021, c. 464](#), § 2, effective January 18, 2022.

Annotations

Notes

Publisher's Notes

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N.J. Stat. § 52:27D-141.20

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§ 52:27D-141.20. Efficiency standards established for certain products

a. Beginning one year after the date of enactment of this act, no person shall sell, offer for sale, or lease a new air purifier, cold temperature fluorescent lamp, commercial dishwasher, commercial fryer, commercial hot-food holding cabinet, commercial oven, commercial steam cooker, computer, computer monitor, electrical vehicle service equipment, high color rendering index fluorescent lamp, impact-resistant fluorescent lamp, faucet, showerhead, toilet, urinal, portable electric spa, residential ventilating fan, State-regulated general service lamp; spray sprinkler body, urinal, or water cooler in the State unless the new product includes a mark, label, or tag required pursuant to subsection c. of section 7 [[C.52:27D-141.24](#)] of this act, denoting that the product meets or exceeds the efficiency standards established in section 4 [[C.52:27D-141.21](#)] of this act.

b. Beginning one year after the date of enactment of this act, no product identified in subsection a. of this section may be installed for compensation in the State unless the new product includes a mark, label, or tag required pursuant to subsection c. of section 7 of this act, denoting that the product meets or exceeds the efficiency standards established in section 4 of this act.

c. Beginning one year after the date of enactment of this act, upon final inspection of the installation of any appliance or product subject to the State Uniform Construction Code, the appropriate subcode official shall ensure that any product identified in subsection a. of this section contains a mark, label, or tag denoting that the product meets or exceeds the efficiency standards established in section 4 [[C.52:27D-141.21](#)] of this act.

d. No person shall affix a mark, label, or tag to a product denoting compliance with this act unless the product meets or exceeds the efficiency standards established in section 4 of this act.

History

L. [2021, c. 464](#), § 3, effective January 18, 2022.

Annotations

Notes

Publisher's Notes

The bracketed material was added by the Publisher to provide a reference.

Editor's Notes

§ 52:27D-141.20. Efficiency standards established for certain products

Section 8 of L. [2021, c. 464](#) provides: “No later than three years after the date of enactment of this act, the department, in consultation with the Board of Public Utilities and the Department of Community Affairs, shall conduct a study to evaluate whether to add additional products to those regulated pursuant to this act, and whether to adopt more stringent energy standards or water conservation standards. The commissioner shall submit a written report thereon to the Governor and, pursuant to section 2 of [P.L.1991, c.164](#) ([C.52:14-19.1](#)), to the Legislature with recommendations for legislative action.”

Section 9 of L. [2021, c. 464](#) provides: “The department may adopt rules and regulations, pursuant to the ‘Administrative Procedure Act,’ P.L.1968, c.410 ([C.52:14B-1](#) et seq.), as necessary to implement the provisions of this act.”

N.J. Stat. § 52:27D-141.21

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§ 52:27D-141.21. Criteria established for efficiency standards of certain products

Except as provided in section 5 [\[C.52:27D-141.22\]](#) of this act, products identified in subsection a. of section 3 [\[C.52:27D-141.20\]](#) of this act shall, at a minimum, meet the following efficiency standards:

- a.** Air purifiers, except industrial air purifiers, shall meet the following requirements as measured in accordance with the ENERGY STAR Program Requirements Product Specification for Room Air Cleaners, Version 2.0:
 - (1)** Clean air delivery rate for smoke shall be 30 or greater;
 - (2)** For models with a clean air delivery rate for smoke less than 100, clean air delivery rate per watt for smoke shall be greater than or equal to 1.7;
 - (3)** For models with a clean air delivery rate for smoke greater than or equal to 100 and less than 150, clean air delivery rate per watt for smoke shall be greater than or equal to 1.9;
 - (4)** For models with a clean air delivery rate for smoke greater than or equal to 150, clean air delivery rate per watt for smoke shall be greater than or equal to 2.0;
 - (5)** For ozone-emitting models, measured ozone shall be less than or equal to 50 parts per billion (ppb);
 - (6)** For models with a Wi-Fi network connection enabled by default when shipped, partial on mode power shall not exceed two watts; and
 - (7)** For models without a Wi-Fi network connection enabled by default when shipped, partial on mode power shall not exceed one watt.
- b.** A commercial dishwasher shall meet the product specifications of the “Energy Star Program Requirements for Commercial dishwashers Version 2.0” developed by the United States Environmental Protection Agency;
- c.** A commercial fryer shall meet the product specifications of the “Energy Star Program Requirements for Commercial Fryers Version 2.0” developed by the United States Environmental Protection Agency;
- d.** A commercial hot-food holding cabinet shall meet the product specifications of the “Energy Star Program Requirements for Commercial Hot Food Holding Cabinets Version 2.0” developed by the United States Environmental Protection Agency;
- e.** A commercial oven shall meet the product specifications of the “Energy Star Program Requirements for Commercial Oven Version 2.2” developed by the United States Environmental Protection Agency;
- f.** A commercial steam cooker shall meet the product specifications of the “Energy Star Program Requirements for Commercial Steam Cookers, Version 1.2” developed by the United States Environmental Protection Agency;

§ 52:27D-141.21. Criteria established for efficiency standards of certain products

- g.** A computer or computer monitor shall meet the requirements of the California Code of Regulations, Title 20, Section 1605.3(v) and compliance with those requirements shall be measured in accordance with test methods prescribed in the California Code of Regulations, Title 20, Section 1604(v);
- h.** Electric vehicle service equipment shall meet the product specifications of the “Energy Star Program Requirements Product Specification for Electric Vehicle Supply Equipment, Version 1.0” developed by the United States Environmental Protection Agency;
- i.** A faucet, except for a metering faucet, shall meet the standards in this subsection when tested in accordance with Appendix S to Subpart B of Part 430 of Title 10, Code of Federal Regulations and compliance with those requirements shall be in accordance with the “Uniform Test Method for Measuring the Water Consumption of Faucets and Showerheads”:
- (1)** A lavatory faucet or a replacement aerator for a lavatory faucet shall not exceed a maximum flow rate of 1.5 gallons per minute at 60 pounds per square inch;
 - (2)** A residential kitchen faucet or replacement aerator for a residential kitchen faucet shall not exceed a maximum flow rate of 1.8 gallons per minute at 60 pounds per square inch, with an optional temporary flow rate of 2.2 gallons per minute, provided the faucet or replacement aerator defaults to a maximum flow rate of 1.8 gallons per minute at 60 pounds per square inch after each use; and
 - (3)** A public lavatory faucet or a replacement aerator for a public lavatory faucet shall not exceed a maximum flow rate of 0.5 gallons per minute at 60 pounds per square inch.
- j.** A State-regulated general service lamp shall meet a lamp efficacy of 45 lumens per watt, when tested in accordance with the applicable federal test procedures for general service lamps, prescribed in [Section 430.23\(gg\) of Title 10, Code of Federal Regulations](#);
- k.** A high color rendering index, cold temperature, or impact-resistant fluorescent lamp shall meet the minimum efficacy requirements contained in [Section 430.32\(n\)\(4\) of Title 10, Code of Federal Regulations](#), as measured in accordance with the “Uniform Test Method for Measuring Average Lamp Efficacy (LE), Color Rendering Index (CRI), and Correlated Color Temperature (CCT) of Electric Lamps” in Appendix R to Subpart B of Part 430 of Title 10, Code of Federal Regulations;
- l.** A portable electric spa shall meet the requirements of the “American National Standard for Portable Electric Spa Energy Efficiency 14-2019”;
- m.** An in-line residential ventilating fan shall have a fan motor efficacy of no less than 2.8 cubic feet per minute per watt. All other residential ventilating fans shall have a fan motor efficacy of no less than 1.4 cubic feet per minute per watt for airflows less than 90 cubic feet per minute and no less than 2.8 cubic feet per minute per watt for other airflows when tested in accordance with Home Ventilation Institute Publication 916 “HVI Airflow Test Procedure”;
- n.** A showerhead shall not exceed a maximum flow rate of 2.0 gallons per minute at 80 pounds per square inch when tested in accordance with Appendix S to Subpart B of Part 430 of Title 10, Code of Federal Regulations and compliance with those requirements shall be the “Uniform Test Method for Measuring the Water Consumption of Faucets and Showerheads”;
- o.** A spray sprinkler body that is not specifically excluded from the scope of the United States Environmental Protection Agency’s WaterSense program “Specification for Spray Sprinkler Bodies, Version 1.0,” shall include an integral pressure regulator and shall meet the water efficiency and performance criteria and other requirements of the “Specification for Spray Sprinkler Bodies, Version 1.0”;
- p.** A urinal or toilet, other than those designed and marketed exclusively for use at prisons or mental health facilities, shall meet the standards in paragraphs (1) through (4) of this subsection when tested in accordance with Appendix T to Subpart B of Part 430 of Title 10, Code of Federal Regulations “Uniform Test Method for Measuring the Water Consumption of Water Closets and Urinals.” A toilet

§ 52:27D-141.21. Criteria established for efficiency standards of certain products

shall be required to pass the waste extraction test for toilets in the American Society of Mechanical Engineers standard A112.19.2, Section 7.9:

- (1) A wall-mounted urinal, except for a trough-type urinal, shall have a maximum flush volume of 0.5 gallons per flush;
- (2) A floor-mounted urinal, except for a trough-type urinal, shall have a maximum flush volume of 0.5 gallons per flush;
- (3) A toilet, except for a dual-flush tank-type toilet, shall have a maximum flush volume of 1.28 gallons per flush; and
- (4) A dual-flush tank-type toilet shall have a maximum dual-flush effective flush volume of 1.28 gallons per flush.

q. A water cooler shall meet the product specifications of the “Energy Star Program Requirements Product Specification for Water Coolers, Version 2.0” developed by the United States Environmental Protection Agency.

History

L. [2021, c. 464](#), § 4, effective January 18, 2022.

Annotations

Notes

Publisher's Notes

The bracketed material was added by the Publisher to provide a reference.

Editor's Notes

Section 8 of L. [2021, c. 464](#) provides: “No later than three years after the date of enactment of this act, the department, in consultation with the Board of Public Utilities and the Department of Community Affairs, shall conduct a study to evaluate whether to add additional products to those regulated pursuant to this act, and whether to adopt more stringent energy standards or water conservation standards. The commissioner shall submit a written report thereon to the Governor and, pursuant to section 2 of [P.L.1991, c.164 \(C.52:14-19.1\)](#), to the Legislature with recommendations for legislative action.”

Section 9 of L. [2021, c. 464](#) provides: “The department may adopt rules and regulations, pursuant to the ‘Administrative Procedure Act,’ P.L.1968, c.410 ([C.52:14B-1](#) et seq.), as necessary to implement the provisions of this act.”

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N.J. Stat. § 52:27D-141.22

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§ 52:27D-141.22. Exceptions

The provisions of this act [[C.52:27D-141.18](#) et seq.] shall not apply to:

- (1) new products manufactured in the State and sold outside the State;
- (2) new products manufactured outside the State and sold outside the State or at wholesale inside the State for final retail sale and installation outside the State;
- (3) products installed in mobile manufactured homes at the time of construction; or
- (4) products designed expressly for installation and use in recreational vehicles.

History

L. [2021, c. 464](#), § 5, effective January 18, 2022.

Annotations

Notes

Publisher's Notes

The bracketed material was added by the Publisher to provide a reference.

Editor's Notes

Section 9 of L. [2021, c. 464](#) provides: "The department may adopt rules and regulations, pursuant to the 'Administrative Procedure Act,' P.L.1968, c.410 ([C.52:14B-1](#) et seq.), as necessary to implement the provisions of this act."

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N.J. Stat. § 52:27D-141.23

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§ 52:27D-141.23. Liability not imposed, news media

Nothing in this act [[C.52:27D-141.18](#) et seq.] shall be construed to impose liability on any news media that accepts or publishes advertising for any product that may fall within the scope of this act.

History

L. [2021, c. 464](#), § 6, effective January 18, 2022.

Annotations

Notes

Publisher's Notes

The bracketed material was added by the Publisher to provide a reference.

Editor's Notes

Section 9 of L. [2021, c. 464](#) provides: “The department may adopt rules and regulations, pursuant to the ‘Administrative Procedure Act,’ P.L.1968, c.410 ([C.52:14B-1](#) et seq.), as necessary to implement the provisions of this act.”

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N.J. Stat. § 52:27D-141.24

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§ 52:27D-141.24. Manufacturer to test product samples for compliance

- a. A manufacturer of a product regulated pursuant to section 4 [\[C.52:27D-141.21\]](#) of this act shall annually test samples of its products in order to ensure compliance with the efficiency standards established therein.
- b. A manufacturer of a product regulated pursuant to section 4 of this act shall annually certify to the commissioner that the product is in compliance with the provisions of this act.
- c. A manufacturer of a product regulated pursuant to section 4 [\[C.52:27D-141.21\]](#) of this act shall identify that each product offered for sale in the State is in compliance with the provisions of this act by means of a mark, label, or tag on the product and packaging at the time of sale. An existing mark, label, or tag may be used to satisfy this requirement, provided that it clearly expresses that the product meets the applicable efficiency standard. A manufacturer shall include information about the mark, label, or tag used to comply with the provisions of this subsection in its annual certification to the commissioner required by subsection b. of this section.
- d. With prior notice, the commissioner may periodically inspect distributors or retailers of new products regulated pursuant to this act in order to determine compliance with the provisions of this act.
- e. The commissioner shall investigate complaints received concerning violations of this act [\[C.52:27D-141.18 et seq.\]](#). A manufacturer, distributor, retailer, or person who violates the provisions of this act shall be issued a warning by the commissioner for a first violation and shall be subject to a civil penalty of up to \$1,000 for each subsequent offense. Third and subsequent violations shall be subject to a civil penalty of not more than \$5,000 for each offense. Each violation shall constitute a separate offense, and each day that such violation continues shall constitute a separate offense. The department may institute an action or proceeding in the Superior Court for injunctive and other relief for any violation of this act or of any rule or regulation adopted pursuant thereto, and the court may proceed in the action in a summary manner. Such relief may include prohibiting the person from selling or offering for sale the non-compliant product in the State.
- f. In addition the penalties provided in subsection e. of this section, if a product regulated pursuant to this act is found not to be in compliance with the minimum efficiency standards established under this act, the commissioner shall issue a violation to the manufacturer of such product which shall subject the manufacturer to a civil penalty equal to twice the cost of product purchase and testing. The commissioner shall make information available to the public on products found not to be in compliance with the standards.
- g. A civil penalty imposed pursuant to this section shall be collected in a summary manner under the "Penalty Enforcement Law of 1999," [P.L.1999, c.274 \(C.2A:58-10 et seq.\)](#). All monies collected by the department may be retained by the department for the costs of administering and enforcing the provisions of this act.

History

§ 52:27D-141.24. Manufacturer to test product samples for compliance

L. [2021, c. 464](#), § 7, effective January 18, 2022.

Annotations

Notes

Publisher's Notes

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Editor's Notes

Section 9 of L. [2021, c. 464](#) provides: "The department may adopt rules and regulations, pursuant to the 'Administrative Procedure Act,' P.L.1968, c.410 ([C.52:14B-1](#) et seq.), as necessary to implement the provisions of this act."

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